

1 SUPERIOR COURT OF NEW JERSEY
2 LAW DIVISION: ESSEX COUNTY
3 DOCKET NO.: ESX-L-7200-19
4 CIVIL ACTION

5 -----X

6 B.B.

7 Plaintiff,

8 v.

9 S. BRADLEY MELL, KIMBERLY RUGGLES MELL,
10 individually, and as guardian of W. H. MELL
11 ASSOCIATES, INC., GULFSTREAM CM, L.L.C., GULFSTREAM
12 GM, L.L.C., AERO CARE SERVICES, L.L.C. EMILY MELL,
13 ELIZA MELL, STEVEN BRADLEY MELL 2012 FAMILY TRUST,
14 KIMBERLY MELL 2012 FAMILY TRUST and MOUNTAIN
15 INSIDE SECURITIES, LLC,

16 Defendants.

17 -----X

18 KIMBERLY RUGGLES MELL, STEVEN BRADLEY MELL 2012
19 FAMILY TRUST, GULFSTREAM CM, L.L.C., GULFSTREAM GM,
20 L.L.C., AERO CARE SERVICES, L.L.C., EMILY MELL,
21 ELIZA MELL, KIMBERLY MELL 2012 FAMILY TRUST,
22 Third-Party Plaintiffs,

23 vs.

24 D.D. and E.E.,

25 Third-Party Defendants.

-----X

August 22, 2025
10:13 a.m.

VIRTUAL DEPOSITION OF STEVEN BRADLEY MELL,
pursuant to Notice, taken at the above date and
time, before MARIA ACOCELLA, a Notary Public within
and for the State of New Jersey.

1 APPEARANCES: 2 STEVEN BRADLEY MELL, PRO SE 3 P.O. Box 835 4 Far Hills, New Jersey 07931 5 MARSHALL DENNEHEY, P.C. 6 Attorneys for Third-Party Defendants 7 D.D. and E.E. 8 425 Eagle Rock Avenue - Suite 302 9 Roseland, New Jersey 07068 10 BY: ROBERT T. EVERS, ESQ. 11 NATALIANA GUIDA, ESQ. 12 RIKER DANZIG, L.L.P. 13 Attorneys for Defendant 14 MOUNTAINSIDE SECURITIES 15 7 Giralda Farms - Suite 250 16 Madison, New Jersey 17 BY: ROBERT MAGRANE, ESQ. 18 HARDIN, KUNDIA McKEON & POLETTTO 19 Attorneys for Defendant and Third-Party 20 Defendant 21 673 Morris Avenue 22 Springfield, New Jersey 23 BY: PAUL DALY, ESQ. 24 PATRICK HAGERTY, ESQ. 25 NAGEL RICK, L.L.P. Attorneys for Plaintiff, B.B. 103 Eisenhower Parkway Roseland, New Jersey 07068 BY: DIANE E. SAMMONS, ESQ. MICHAEL PARAGANO, ESQ. (Continued on the following page.)	Page 2 1 S. B. Mell 2 STEVEN BRADLEY MELL, the 3 Witness herein, having been first duly sworn 4 by a Notary Public within and for the State 5 of New Jersey, was examined and testified as 6 follows: 7 EXAMINATION BY 8 MR. EVERS: 9 Q. Good morning, Mr. Mell. My name 10 is Bob Evers. I represent D.D. and E.E. in 11 connection with a third-party complaint you 12 have filed in a matter filed by B.B. against 13 you. Do you understand that? 14 A. Yes. 15 Q. I am here today to take your 16 deposition. 17 You have been deposed before, 18 correct? 19 A. Correct. 20 Q. You understand that you are under 21 oath today, correct? 22 A. Correct. 23 Q. Your testimony today has the same 24 weight, force and effect as if given in court 25 before a judge and jury. Do you understand
Page 3 1 CHIESA, SHAHINIAN & GIATOMASI, P.C. 2 Attorneys for Defendant and Third-Party 3 Plaintiff 4 KIMBERLY 2012 FAMILY TRUST 5 105 Eisenhower Parkway 6 Roseland, New Jersey 7 BY: ROSS PEARLSON, ESQ. 8 CRAIG WAGENGLAST, ESQ. 9 THOMPSON, McGUIRE, WACHENFELD & BARRY 10 Attorneys for Defendant and Third-Party 11 Plaintiff 12 GULFSTREAM CM and GULFSTREAM GM 13 3 Becker Farm Road - Suite 402 14 Roseland, New Jersey 07068 15 BY: HARRY D. McENROE, ESQ. 16 PATRICK J. WHALEN, ATTORNEY AT LAW, L.L.C. 17 Attorney for Defendant and Third-Party 18 Plaintiffs 19 KIMBERLY MELL and STEVEN BRADLEY MELL 2012 20 FAMILY TRUST 21 109 South Warren Street 22 Trenton, New Jersey 08608 23 BY: PATRICK J. WHALEN, ESQ.	Page 5 1 S. B. Mell 2 that? 3 A. Yes. 4 Q. And if I ask you a question today 5 that you don't understand, I don't want to 6 you answer it, okay? 7 A. Okay. 8 Q. I want you to tell me you don't 9 understand; fair? 10 A. Fair. 11 Q. Because if you answer my 12 questions, I am going to operate under the 13 assumption that you heard the question, you 14 understood the question and you are answering 15 truthfully, okay? 16 A. Okay. 17 Q. Where are you physically located? 18 A. Right now? 19 Q. Yes, sir? 20 A. Roseland, New Jersey. 21 Q. What address? 22 A. 103 Eisenhower Parkway. 23 MR. PEARLSON: No, it is 105 24 Eisenhower Parkway. 25 This is Ross Pearlson. He is at

Page 6 1 S. B. Mell 2 the office of CSG Law in a conference 3 room at 105 Eisenhower. 4 Q. And you are in a conference 5 room -- you are in a conference room by 6 yourself, sir? 7 A. Yes, sir. 8 Q. And what do you have with you? 9 Do you have anything in connection with this 10 deposition, other than two bottles of water? 11 A. No. 12 Q. At any time you want more water, 13 you just let people know. You're allowed as 14 much as you want. 15 A. Thank you. 16 Q. Yup. Can you tell me, what did 17 you review in preparation for today? 18 A. Some personal notes, but that is 19 about it. 20 Q. What personal notes did you 21 review? 22 A. Notes about the case. 23 Q. When were those notes prepared? 24 A. Four years ago, maybe. 25 MR. EVERS: I am going to make a	Page 8 1 S. B. Mell 2 is a joint defense, not that we appeared 3 on his behalf. 4 THE WITNESS: Correct. 5 Q. Joint defense for you 6 individually, Mr. Mell? 7 A. Joint defense. We are all 8 co-defendants, so. 9 I don't think -- I don't 10 understand the distinction of this. 11 Q. That is the answer I want you to 12 give. 13 If you don't understand a 14 question I ask you, you just need to tell me. 15 Have you entered into a joint 16 defense agreement with any of the attorneys 17 involved in this case? 18 A. No. 19 Q. What did you discuss with the 20 attorneys on Monday? 21 A. Just the deposition, and make 22 sure I answer promptly, and that I understand 23 the questions; and if you don't, ask 24 questions. 25 Q. How long did that meeting last?
Page 7 1 S. B. Mell 2 demand for those notes. 3 But I am going to send a letter 4 when we are done with the deposition 5 with whatever, you know, I will follow p 6 on. 7 Q. Did you meet with anyone to 8 prepare for this deposition? 9 A. Met with CSG to talk about 10 co-counsel defense. 11 Q. And when did that meeting take 12 place? 13 A. Monday, I believe. 14 Q. Unless I am missing it, nothing 15 has been filed with the court advising that 16 you have co-counsel in your role as a 17 third-party Plaintiff in this case; am I 18 correct? 19 A. Well, I don't have counsel. 20 Q. Well, you just told me you met 21 with CSG to discuss co-counsel for your 22 defense, correct? 23 MR. PEARLSON: For the record, we 24 don't represent the witness. 25 I think what he was referring to	Page 9 1 S. B. Mell 2 A. Half an hour, maybe. 3 Q. Did you discuss the substance of 4 this deposition with those attorneys? 5 A. No. 6 Q. Did you speak with anyone else 7 about this deposition other than the 8 attorneys at CSG on Monday? 9 A. No. 10 Q. You have been deposed twice 11 already in connection with this matter; am I 12 correct? 13 A. Correct. 14 Q. Have you reviewed those 15 deposition transcripts? 16 A. No. In the past I have, but not 17 recently. 18 Q. All right. So you have reviewed 19 them, though? 20 A. Years -- whenever they occurred, 21 back in 2021 or something. 22 Q. And to your recollection, was the 23 testimony you gave at the time of your prior 24 depositions truthful? 25 A. Yes.

Page 10 1 S. B. Mell 2 Q. Accurate? 3 A. Yes. 4 Q. You understood when you were 5 being deposed on those prior occasions you 6 were under oath, correct? 7 A. Correct. 8 Q. You understood at that time, the 9 importance to tell the truth, correct? 10 A. Correct. 11 Q. And likewise today, I think you 12 told me you understand you are under oath, 13 correct? 14 A. Correct. 15 Q. And you understand the importance 16 of testifying truthfully today, correct? 17 A. Correct. 18 Q. What is the extent of your 19 education? 20 A. Just a college degree. 21 Q. Where did you go to college? 22 A. Boston University. 23 Q. Good school, yes? 24 A. Yes. 25 Q. What is your definition of the	Page 12 1 S. B. Mell 2 daughter? 3 A. Yes. 4 Q. And how old is Emma Merlin today? 5 A. Twenty-six, twenty-seven. 6 Q. Prior to today, had you ever 7 e-mailed, texted or SnapChat'd with Emma 8 Merlin? 9 A. I don't recall. 10 Q. Do you know what SnapChat is? 11 A. Yes. 12 Q. Have you had a SnapChat account? 13 A. Yes. 14 Q. Do you still have a SnapChat 15 account? 16 A. No. 17 Q. Did you delete it? 18 A. No, I think it still exists. 19 Q. Did you ever SnapChat with Emma 20 Merlin? 21 MR. MAGRANE: Objection, just 22 asked. 23 Q. You can answer. 24 A. I don't recall SnapChatting with 25 Emma Merlin.
Page 11 1 S. B. Mell 2 term manipulate? 3 A. To manipulate, I don't know; to 4 get someone to do something for you. 5 Q. Would you agree with the 6 Merriam-Webster Dictionary definition of 7 manipulate that it means to control or play 8 upon by artful, unfair or insidious means, 9 especially to one's own advantage? Would you 10 agree with that? 11 A. If that is what you are reading, 12 yes. 13 Q. You would agree with that 14 definition of the term manipulate? 15 A. If that is what the Webster 16 Dictionary says, yes. 17 Q. I sat through a prior deposition 18 in this case, and a name came up of an Emma 19 Merlin. 20 Are you familiar with that 21 individual? 22 A. I am. 23 Q. Who is she? 24 A. A friend of my daughter's. 25 Q. Is she the same age as your	Page 13 1 S. B. Mell 2 Q. So not that you didn't, you are 3 just telling me today that you don't recall, 4 is that what your answer is? 5 A. Yeah, I don't recall. 6 Q. That is not my question. 7 My question is: You are not 8 telling me that you have never SnapChat'd 9 with an individual named Emma Merlin; what 10 you are telling me is that you don't recall 11 if you have ever done that; is that fair? 12 A. I don't recall ever SnapChatting 13 with Emma Merlin. 14 Q. I will ask it again. 15 Might you have? 16 A. I don't recall. 17 Q. Might have you texted with her? 18 A. I don't recall. 19 Q. So through the course of this 20 matter, I guess you filed a third-party 21 complaint. Do you recall? 22 A. Yes. 23 Q. When is the last time you 24 reviewed that third-party complaint? 25 A. Probably when I filed it.

Page 14 1 S. B. Mell 2 Q. Have you reviewed it since that 3 time? 4 A. No. 5 Q. Can you see that? 6 A. Yes. 7 Q. Is that your third-party 8 complaint? 9 A. Well, it only shows my name. 10 You have to scroll. 11 Q. Yeah. I just want to make sure I 12 have it on the right screen. 13 A. Yes. That appears to be my 14 third-party complaint. 15 Q. So I have this as being at the 16 top here. You see that this is a 39-age 17 document that was filed on December 21st of 18 2023. 19 A. I do, yup. 20 Q. So first question for you, sir, 21 is who prepared this third-party complaint? 22 A. I did. 23 Q. Did you prepare the entire 24 complaint? 25 A. I prepared it, sure, yes.	Page 16 1 S. B. Mell 2 go to what is identified as page 3 here. On 3 the bottom it is marked as page 3. 4 Do you see what I am looking at? 5 A. Yeah. 6 Q. So first thing I want to talk 7 about in paragraph 5, you have identified 8 here as 5. 9 You see where I am looking, sir? 10 A. Yup. 11 Q. You talk on the bottom here that 12 you were provided with the security alarm 13 code to their house where Plaintiff's mother 14 would watch Mr. Mell through their home 15 camera and playfully communicate with him 16 while he was feeding the family dog. 17 Did I read that accurately? 18 A. Yes. 19 Q. What was the code? 20 A. I don't recall. 21 Q. How did you get it? 22 A. From C.C. 23 Q. So D.D. or E.E. gave you that 24 code? 25 A. No.
Page 15 1 S. B. Mell 2 Q. Did anybody assist you in 3 preparing this complaint? 4 A. No. 5 Q. Did any attorney -- 6 MR. PEARLSON: I am sorry, 7 Robert. 8 Are you going to mark this? Are 9 we going to refer to it as an exhibit 10 number? 11 MR. EVERS: Yeah, sure. We can 12 do that. 13 Why don't we mark it as Exhibit 1 14 for today. 15 Just bear with me here while I 16 get rid of some of his stuff here. 17 Q. What I would like to do, sir, is 18 kind of go through your complaint and ask you 19 some questions about it, okay? 20 A. Okay. 21 Q. Just to make it easy, I will 22 leave it up on the screen so we can all see 23 it; fair? 24 A. Fair. 25 Q. All right. Right now I want to	Page 17 1 S. B. Mell 2 Q. Am I correct? 3 A. Correct. 4 Q. And how many dogs did they have? 5 A. Two, I think, at the time. 6 Q. What were their names? 7 A. Ship, and I don't recall the 8 other one. 9 Q. What kind of dogs? 10 A. A Pomeranian, and the other one 11 was maybe -- it was a lab. It was some sort 12 of mix, but a bigger dog. 13 Q. How many times did you go to 14 their home and walk their dog? 15 A. I don't know. Four or five, 16 maybe more. 17 Q. Why did you do that? 18 A. The family would ask me. 19 Q. You didn't have to do it, though, 20 correct? 21 A. Did I have to do it? No. 22 Q. You could have said no, I am not 23 going to walk your dogs, right? You could 24 have done that? 25 A. Yes.

Page 18 1 S. B. Mell 2 Q. And but did you not; am I 3 correct? 4 A. Correct. 5 Q. What was the time period in which 6 you were walking these dogs, month and year? 7 A. I have no idea. It was over a 8 two-year period. 9 Q. So it was not a frequent thing? 10 A. No. It was a handful of times 11 over an extended period. 12 Q. Was it before of June of 2017? 13 A. Yes. 14 Q. Did it ever take place between 15 June of 2017 and November of 2017? 16 A. Yes. 17 Q. How many times? 18 A. Maybe one or two. 19 Q. And I want to continue here. 20 Paragraph 6, where you talk about 21 significant financial benefits they enjoyed 22 from Mr. Mell that allowed them to keep up 23 with the Jones, tens of thousands of dollars 24 in cash and investments, tuition payments for 25 Plaintiff's expensive college preparatory	Page 20 1 S. B. Mell 2 A. Mostly cash. 3 Q. During what time period? 4 A. 2015 through 2017. 5 Q. When did it end in 2017? 6 A. November-ish, sometime in late 7 November of 2017. 8 Q. Why did it end at that time? 9 A. Because I was going back to my 10 wife, and I cut off the money. 11 Q. How much did you give to E.E.? 12 A. It was 75,000, maybe a hundred. 13 Q. Cash or check? 14 A. It would be check and, you know, 15 in that paragraph, you know, you have 16 other -- just cash dollars for E.E. 17 It was probably closer to 50 to 18 60,000, then the other benefits would be the 19 planes, helicopters and all that other, you 20 know. 21 Q. So is it your testimony that you 22 gave -- and you understand E.E. is E.E., 23 correct? 24 A. I do, but there has been a 25 tremendous amount of misfilings over the last
Page 19 1 S. B. Mell 2 school. 3 Goes on to page 4, membership in 4 an exclusive invite only social club. 5 Various other gifts, including box seat 6 concert tickets, free private plane and 7 helicopter rides, fully paid private flying 8 lessons for Plaintiff, and expensive gifts 9 for the family. 10 Did I read that accurately? 11 A. Yes. 12 Q. I am going to back this up now, 13 so we can take this one step at a time here. 14 So you are telling us that you 15 provided tens of thousands of dollars in cash 16 in investments? 17 A. Correct. 18 Q. How much money? 19 A. I estimate over \$200,000. 20 Q. And who did you give that money 21 to? 22 A. It was either C.C. or E.E. 23 Q. How much did you give to C.C.? 24 A. I don't have a breakdown of that. 25 Q. Was it cash or checks?	Page 21 1 S. B. Mell 2 four years of this case, with abbreviations. 3 Q. Yeah, I get it. 4 A. So, you know, I have got a 5 certification of E.E. being C.C., and now all 6 of a sudden E.E. is E.E., so I have to refer 7 to them by name, because I don't -- I am not 8 comfortable with all these acronyms. 9 You can file what you need, and I 10 get that. 11 Q. But those aren't my rules, sir. 12 You understand B.B. to be the 13 plaintiff in this case, correct? 14 A. B.B. is clear, yes. 15 Q. And you understand C.C. to be 16 B.B.'s older sister, correct? 17 A. That is correct. 18 Q. Okay. And D.D. is dad, right? 19 A. Well, if that is what it is going 20 to be today, I will go with that. 21 Q. Yeah. I just stepped into this, 22 right? So when I came in, D.D. was dad. And 23 I have trouble remembering it, too. 24 So in my world, D equals dad. 25 Dad starts with D. We will keep it like

Page 22 1 S. B. Mell 2 that, okay? 3 A. We will go with that today. 4 Q. And my understanding is that E.E. 5 has been identified as the mom. 6 A. Okay. 7 Q. So when we talk about the money 8 given to the mom, you said cash dollars of 50 9 to 60,000 dollars right? 10 A. Correct. 11 Q. Is that paid by cash or check? 12 A. I believe most of that was check. 13 Q. How much was check, and how much 14 was cash? 15 A. Well, there was the \$25,000 into 16 Chase, roughly 25,000 into Mell, W. H. Mell 17 brokerage account. There was \$4,000 to get a 18 car fixed, and that was on a credit card. 19 There were others I can't recall 20 off the top of my head. 21 Q. So there is \$4,000 to get a car 22 fixed. 23 Whose car was it? 24 A. It was E.E. 25 Q. And when was that? When was that	Page 24 1 S. B. Mell 2 A. I don't think I signed her name 3 to the back of it. 4 Q. Who endorsed the check? 5 A. I think it was just deposited 6 into Chase. 7 Q. Without an endorsement on the 8 back? 9 A. You have to show me the check. 10 Q. Okay. Give me a second. 11 You with me now? 12 A. Yes. 13 Q. Okay. Can you see that? 14 A. Yes. 15 Q. So this is a Chase deposit ticket 16 for \$25,000, right? 17 A. Correct. 18 Q. We are going to call this Exhibit 19 2 for today, fair? Okay? 20 A. Okay. 21 MR. EVERS: Court Reporter, when 22 we are done, I will get you all this 23 stuff, and you attach it, okay? 24 THE COURT REPORTER: Okay. 25 Q. There is a signature on this; am
Page 23 1 S. B. Mell 2 month and year? 3 A. I don't know what month. 4 Probably sometime in 2016, is my 5 guess. 6 Q. And why did you pay that car 7 bill? 8 A. She asked me. 9 Q. You didn't have to do that, 10 right? 11 A. I did not have to do that. 12 Q. You could have said no, I am not 13 going to pay your car bill, right? 14 A. Correct. 15 Q. And likewise, this money that we 16 have been talking about for months, this 17 \$25,000 deposited into a Chase account, you 18 deposited that money, correct? 19 A. I deposited that money; that is 20 correct. 21 Q. You filled out the deposit 22 ticket, correct? 23 A. Correct. 24 Q. You signed her name to the back 25 of the check, correct?	Page 25 1 S. B. Mell 2 I correct? 3 A. Yes. 4 Q. Did you sign E.E. -- her name? 5 A. Yes. 6 Q. Did E.E. know you were doing 7 this? 8 A. Yes. 9 Q. How it is she knew you were doing 10 this? 11 A. Because I was in their kitchen 12 with E.E. and C.C. and B.B. when they told me 13 how D.D., the father, had lost money in a 14 trade in the stock market, and B.B. couldn't 15 attend Gill St. Bernard's. 16 It was roughly 25,000 that he 17 lost. 18 Q. When did that conversation take 19 place? 20 A. Sometime in July of 2017. 21 Q. So you are telling me that E.E. 22 knew you were depositing \$25,000 into her 23 Chase account with you filling out the 24 deposit ticket and endorsing her name to the 25 check?

Page 26 1 S. B. Mell 2 A. Correct. 3 Q. Why didn't she endorse the check? 4 A. I have no idea. 5 Q. Did she ask you for the money? 6 A. Did she directly ask me for the 7 money? No. 8 Q. Did she indirectly ask you for 9 the money? 10 A. Yes. 11 Q. How so? 12 A. In tears, that her daughter 13 couldn't attend Gill St. Bernard's because of 14 her husband's trading activity. 15 Q. Now this continues, it says 16 investments. 17 What investments did you provide 18 D.D. and E.E.? 19 A. They opened two investment 20 accounts with my broker/dealer, W. H. Mell 21 Associates. 22 Q. Who opened up accounts? 23 A. C.C. and E.E. 24 Q. Not Dad, correct? 25 A. Correct.	Page 28 1 S. B. Mell 2 Q. So you were assisting a means to 3 that end? 4 A. By opening the accounts correct. 5 Q. And then you also deposited some 6 of your own money in those accounts, correct? 7 A. Correct. 8 Q. Did anybody ask you to deposit 9 your own money into either of those accounts? 10 A. C.C. did. 11 Q. C.C. 12 It is your testimony that C.C. 13 asked you to deposit your own personal funds 14 into her account and her mom's account; is 15 that your testimony? 16 A. That is correct. 17 Q. You didn't have to do that, did 18 you? 19 A. Technically, no. 20 Q. Why did you do it? 21 A. She asked me to do it. 22 Q. If she asked you to jump off the 23 bridge, would you? 24 Because that is what my mom used 25 to say to me all the time when I was kid and
Page 27 1 S. B. Mell 2 Q. And whose suggestion was it that 3 they open up brokerage accounts? 4 A. Theirs, C.C. and E.E. 5 Q. Okay. And you were willing to 6 assist them with opening those accounts, 7 correct? 8 A. Correct. 9 Q. Whose money was deposited in 10 those accounts? 11 A. I deposited money into both those 12 accounts. 13 Q. How much? 14 A. I think roughly \$25,000, plus or 15 minus. 16 Q. In each of those accounts? 17 A. Correct. 18 Q. Why did you do that? 19 A. They were looking for an 20 investment account, and the money was tight 21 at the time. 22 And they wanted to open accounts. 23 E.E. wanted to open an account, because she 24 was in the real estate business and was 25 hoping to grow an investment portfolio.	Page 29 1 S. B. Mell 2 I said, they asked me to do it. 3 A. At that time, I probably would 4 have. 5 Q. Why? 6 A. She was persuasive. 7 Q. Who was persuasive? 8 A. C.C. and E.E. 9 Q. How much time had you spent with 10 E.E. up to that time? 11 A. A lot. 12 Q. What does that mean? 13 A. We saw each other at least once a 14 week, spoke almost every day. 15 Q. So you became friends with her? 16 A. Yeah. 17 Q. So let's continue here. 18 On your third-party complaint, 19 tuition payments for Plaintiff's expense of 20 college preparatory school. 21 Did you pay a tuition bill? 22 A. I did not. 23 Q. So this statement in the 24 complaint is not really accurate. You didn't 25 pay any tuition payments for anybody in this

Page 30 1 S. B. Mell 2 case, correct? 3 MS. PEARLSON: Objection to form. 4 MR. EVERS: That is fine. 5 Q. You can answer the question. 6 A. No. They told me while sitting 7 in their kitchen that the 25,000 that I was 8 depositing was going towards Gill St. 9 Bernard's, so she would attend in the fall. 10 It was explained to me specifically she could 11 not attend in September unless that money was 12 paid. 13 So to me, I made a contribution 14 to Gill St. Bernard's. 15 Q. So who could attend? 16 A. So B.B. could attend. 17 Q. And in response to that, I think 18 I am seeing what you are telling me; you are 19 telling me -- if I am wrong, I am not 20 testifying here -- in response to that, you 21 deposited \$25,000 into E.E's personal 22 account? 23 A. Correct. 24 Q. Is that fair? 25 A. That is fair.	Page 32 1 S. B. Mell 2 Q. And you would agree with me -- 3 and I if I asked you, I apologize -- you 4 didn't have to do that, correct? 5 A. No. 6 Q. You could have said no, I am not 7 going to do that, right? 8 A. Yes. 9 Q. But you did not, did you? 10 A. No. 11 Q. Why not? 12 A. Because they were upset that B.B. 13 couldn't go to school, and they had no other 14 ways to a cure that shortfall, from what I 15 was told by them. 16 Q. But at that time, sir, take 17 yourself back to that day put yourself in 18 your shoes. 19 In that day, why did you care? 20 A. Because I was having a 21 relationship with C.C., or past relationship 22 with C.C., and I was friends with E.E. 23 Q. Nobody forced you to put money 24 into any account, correct? 25 A. Correct.
Page 31 1 S. B. Mell 2 Q. You prepared the deposit ticket, 3 you endorsed the check, correct? 4 A. Yes. I had to call her, because 5 I didn't have their account information, so 6 E.E. and C.C. gave me her account information 7 so I could deposit the check. 8 Q. Did somebody tell you to endorse 9 it? 10 A. That, I don't know. 11 Q. But it is fair for me to say you 12 never paid any college prep school for either 13 B.B. or C.C.? 14 A. Well, Gill St. Bernard's would be 15 considered a preparatory school for college. 16 I think that is my interpretation 17 of what is in front of me on this exhibit. 18 Q. You, yourself, never wrote a 19 check, delivered cash, gave a credit card to 20 Gill St. Bernard's for either B.B. or C.C. to 21 attend, correct? 22 A. That is correct. 23 Q. What you did was you deposited 24 \$25,000 into an account? 25 A. Yes.	Page 33 1 S. B. Mell 2 Q. And you were certainly of sound 3 mind at that time, right? 4 A. Well, that is up for 5 interpretation. 6 Q. All right. So up to this time, 7 this is tens of thousands of dollars in cash 8 and investments and tuition payments for 9 Plaintiff's expensive college preparatory 10 school. 11 Did your wife know you did that? 12 A. No. 13 Q. Why didn't you tell her? 14 A. Because I was having an 15 inappropriate relationship with their 16 daughter. 17 Q. Did you tell your children you 18 had done that? 19 A. No. 20 Q. Why not? 21 A. Same reason. 22 Q. When did your relationship with 23 C.C. end? 24 A. Sometime -- are you talking 25 friendship, or sexual relationship?

Page 34 1 S. B. Mell 2 Q. Sexual relationship. 3 A. I am sorry. Say it again? 4 Q. Sexual relationship. 5 A. Sometime in the spring of '17. 6 Q. And who ended it? 7 A. I did. 8 Q. Why? 9 A. She was off in college, and it 10 just wasn't working. 11 Q. Did you continue to communicate 12 with her after the spring of 2017? 13 A. Yes. 14 Q. Did you continue to text with 15 her? 16 A. Yes. 17 Q. Did you continue to SnapChat with 18 her? 19 A. Yes. 20 Q. Did you ever e-mail her? 21 A. I don't know. 22 If I did, it was very infrequent. 23 Q. When did you stop communicating 24 with C.C.? 25 A. Probably December 4th of 2017.	Page 36 1 S. B. Mell 2 A. No. There is normally a ten year 3 waiting list, and they got in in nine months. 4 Q. Did you pay anything for it? 5 A. No. 6 Q. Did you introduce them to this 7 club? 8 A. They probably heard about it 9 beforehand. 10 Q. Whose idea was it that they join 11 this club? 12 A. E.E. 13 Q. And when was it that they got 14 into this club? 15 A. I believe, sometime in 2016. 16 Q. And you didn't have to assist 17 them by fast tracking their application, 18 right? 19 A. I didn't have to, no. 20 Q. Why did you do it? 21 A. Because they had asked me to. 22 Q. You could have said no, yes? 23 A. I could have. 24 Q. And you didn't; am I correct? 25 A. Correct.
Page 35 1 S. B. Mell 2 Q. That is the day you got caught, 3 right? 4 A. That is the day the picture was 5 given to the school, correct. 6 Q. That is the day you got caught, 7 right? 8 A. That is the day the picture got 9 delivered to the school. 10 Q. This continues your complaint 11 that membership in an exclusive invite only 12 social club, do you see that? 13 A. Yes. 14 Q. What social club are you talking 15 about? 16 A. The Essex Hunt Club. 17 Q. What is the Essex Hunt Club? 18 A. It is a skating club. 19 Q. And where is it? 20 A. Peapack, New Jersey. 21 Q. What did you do to facilitate or 22 assist with their membership in that club? 23 A. I was on the board, and I fast 24 tracked their application. 25 Q. Anything else?	Page 37 1 S. B. Mell 2 Q. Why not? 3 A. Because at that time, I was 4 having a relationship with C.C., and they had 5 asked me to help get this done for them. 6 Q. And then you continue -- well, at 7 some point -- let's take a step back here. 8 At some point you meet mom or 9 have a meeting with mom at this club, right, 10 the Essex Hunt Club? 11 A. Yes. 12 Q. It is after your relationship 13 with C.C. was discovered, correct? 14 A. Yeah, it was that day, yes. 15 Q. And am I correct that you met 16 with mom at the Essex Hunt Club, and you 17 apologized for that relationship? 18 A. I met with E.E. and C.C. at the 19 club the day their grandmother/mother, known 20 as Teta or Pickens, had sent E.E. the video 21 of C.C. and I in her kitchen. 22 Q. That is not my question. 23 My question was: At this meeting 24 at the Essex Hunt Club, did you apologize? 25 A. No.

Page 38 1 S. B. Mell 2 Q. Did you cry? 3 A. No. 4 Q. Did you indicate that you had had 5 a friendship with C.C., and that it changed 6 into something more? 7 A. Yes. 8 Q. Did you tell her how sorry you 9 were? 10 A. No. 11 Q. And what was the date of that 12 meeting? 13 A. I believe it was February-ish, 14 early February 2016. 15 Q. Did you testify -- it is the day 16 that there was -- the grandmother had seen it 17 on video? 18 A. Yes. The grandmother had called 19 E.E. to say that she saw C.C. and a gentleman 20 in her kitchen with C.C., and it was within 21 hours after that that C.C. called me to 22 explain that her grandmother had sent that 23 video to her mother. 24 Q. But my question is because we can 25 figure out when that is.	Page 40 1 S. B. Mell 2 Q. And once again, you didn't have 3 to do that, correct? 4 A. Correct. 5 Q. Why did you do it? 6 A. Because they asked me, and I 7 wanted to, as well. 8 Q. Why did you want to? 9 A. Because I was having a 10 relationship with C.C., and I thought it was 11 a nice thing to do. 12 Q. You talk about free private plane 13 and helicopter rides, do you see that? 14 A. Yes. 15 Q. And once again, you don't have to 16 do that, right? You did not have to offer up 17 any private plane or helicopter rides, fair? 18 A. Fair. 19 Q. You did it because you wanted to, 20 right? 21 A. Yes. 22 Q. Why? 23 A. Same reason for the concert 24 tickets. 25 Q. Because were you everything --
Page 39 1 S. B. Mell 2 And now you are saying you are 3 sitting there and may not know the precise 4 date, but that is the day that you had a 5 meeting at the Hunt Club with E.E., or with 6 mom? 7 A. That is correct. 8 Q. So this complaint continues where 9 it talks about other gifts, including box 10 seat concert tickets. 11 Do you see what I am saying? 12 A. Yes. 13 Q. And later on we are going to talk 14 about, I think you actually identify it, but 15 these are concert tickets that you got and 16 gave to her family? 17 A. Yeah. It could have been E.E., 18 It could have been C.C., but yes. 19 Q. Did anybody ever ask you to go 20 and get these tickets? 21 A. Yes. 22 Q. Who? 23 A. C.C. asked me to get the 24 Springsteen tickets, and E.E. asked me to get 25 Rhianna tickets.	Page 41 1 S. B. Mell 2 A. Sometimes they ask, and sometimes 3 I would offer. 4 Q. And with every ask and every 5 offer, you could have said no, correct? 6 A. Correct. 7 Q. What about this expensive gift 8 for the family? What are you talking about 9 there? 10 A. I paid their oil bill once. I 11 gave them roughly four or five thousand 12 dollars in cash, because they said they were 13 strapped, and didn't have any money to buy 14 Christmas gifts. 15 Q. Anything else? 16 A. Top of my head, no. 17 There may be others, but I don't 18 know off the top of my head, right now. 19 Q. When did you pay this oil bill? 20 A. If I had to guess, it would be 21 sometime in spring of 2016, is my guess. 22 Q. And as far as Christmas gifts, 23 four to five thousand dollars in cash, who 24 did you give that to? 25 A. To C.C.

Page 42 1 S. B. Mell 2 Q. Is that cash? You actually said 3 it was that was cash? 4 A. Yeah, probably cash. Or she used 5 my credit card; I am not sure. One of the 6 two. 7 Q. You gave C.C. your credit card, 8 right? 9 A. Correct. 10 Q. Was that a joint account with 11 anybody? 12 A. No. It was a corporate credit 13 card. 14 Q. So basically, your wife couldn't 15 see who was charging, right? 16 A. Right. 17 You said could, or could not? 18 Q. Could not. 19 A. Yes, could not. 20 Q. So this three to four thousand 21 dollars in cash, you said you had given to 22 C.C. 23 MR. EVERS: And that is just the 24 letter C. It is C period, C period, for 25 the court reporter.	Page 44 1 S. B. Mell 2 Q. So I want to continue now on 7. 3 You see it says, unsurprisingly 4 then, when Plaintiff's mother learned as 5 early as July 2017 that the Plaintiff was 6 having an inappropriate relationship with Mr. 7 Mell, her mother's biggest concern was not 8 her daughter's safety. 9 Do you see that sentence, sir? 10 A. Yes. 11 Q. What is the basis for you stating 12 that Plaintiff's mother learned as early as 13 July 2017 that you were having an 14 inappropriate relationship with her daughter 15 B.B.? 16 A. I believe I was referring to the 17 night she stayed over at our house in July. 18 Q. Who stayed over? 19 A. B.B. stayed over. 20 Q. Stayed over at your house? 21 A. Yes. 22 Q. And how did Mom learn of that? 23 A. I think B.B. told her. 24 Q. Did Mom learn that B.B. was 25 having a sexual relationship with you at that
Page 43 1 S. B. Mell 2 And I am going to ask that we 3 have done in the prior transcripts, that 4 we are not using names in the 5 transcript, that we just use the 6 initials, if that is okay. 7 Q. But is it fair for me to say that 8 when you talk about gifts for the family, you 9 didn't give any money for gifts to the 10 family, to D.D. or E.E., meaning Mom or Dad, 11 correct? 12 A. Well, they benefited from that 13 cash, so I would assume that would be gifts 14 for the family. 15 Q. How do you know that? 16 A. Because C.C. bought things for 17 her mom and her sisters. 18 Q. Like what? 19 A. I remember going to Pelican Ski 20 Shop on Route 22, buying ski equipment for 21 the family. 22 Q. And this was all during the time 23 that you are having an inappropriate 24 relationship with C.C., correct? 25 A. Correct.	Page 45 1 S. B. Mell 2 time? 3 A. No, because there was no sexual 4 relationship at that time. 5 Q. You have children, correct? 6 A. Yes. 7 Q. Were any of them friends with 8 B.B.? 9 A. No. 10 Q. So I want to continue here. 11 It says, but not -- see where I 12 am looking at here -- we are still in 13 paragraph 7. 14 But not once did Plaintiff's 15 parents take steps to prevent Plaintiff from 16 being sexually abused by Mr. Mell. 17 Did I read that accurately? 18 A. Yes. 19 Q. You prepared this complaint in 20 the third person; that is what you did? 21 A. Well, I took out verbiage from 22 other complaints that were filed. 23 Q. So you are the Mr. Mell referred 24 to in this sentence here, correct? 25 A. Yes.

Page 46 1 S. B. Mell 2 Q. You are the Mr. Mell who sexually 3 abused B.B.; did I read that sentence 4 accurately? 5 A. Well, that was their accusations. 6 Q. You have it in here as a 7 statement of fact, don't you? It is in your 8 introduction. You prepared this, correct? 9 A. I prepared this filing, yes. 10 Q. And what you prepared was that 11 the parents didn't take steps to prevent you 12 from -- I am sorry, from B.B. being sexually 13 abused by you; am I correct? 14 A. That is their allegation, yup. 15 Q. You disagree with that allegation 16 that you sexually abused her? 17 A. I do. 18 Q. Now this continues here. Even -- 19 paragraph 8, even when the authorities were 20 alerted, the first and main order of business 21 appeared to have been trying to get money 22 from Mr. Mell and using the criminal charges 23 as leverage to do so. Do you see that? 24 A. Yes. 25 Q. What do you mean by they tried to	Page 48 1 S. B. Mell 2 parents, as well. 3 Q. So this is now their second 4 daughter that you have had an inappropriate 5 sexual relationship with, right? 6 A. Correct. 7 Q. So in paragraph 9, can you see 8 that, sir? 9 A. Yes. 10 Q. Read it to yourself. Just tell 11 me when you are done. 12 A. Okay. 13 Q. Give me one second here. 14 So you prepared this paragraph, 15 sir, paragraph 9? 16 A. I didn't write it, but I used it. 17 Q. Who wrote it? 18 A. I don't know. Probably taken 19 from one of the other filings, as were other 20 paragraphs in this filing. 21 I didn't create it. 22 Q. What you did in preparing this 23 third-party complaint was cut and paste 24 paragraphs from other third-party complaints 25 that were filed in this case?
Page 47 1 S. B. Mell 2 get money from you? 3 A. On December 4th, the family 4 texted me, demanding ten million dollars. 5 Q. Who texted you? 6 A. C.C. 7 Q. So neither Dad nor Mom texted 8 you, correct? 9 A. No. D.D. called me that night 10 too, though. 11 Q. And D.D. called you on 12 December 4th? 13 A. Yes, around 5 p.m. 14 Q. And what did he say? 15 A. He wanted to come to a financial 16 settlement, or they would -- they haven't 17 gone to the police yet, and they might not 18 have to. 19 Q. Okay. But certainly neither D.D. 20 nor E.E. demanded ten million dollars from 21 you; is that fair? 22 A. No, that is not fair. 23 Q. Why do you say that is not fair? 24 A. Because C.C. sent me the text, 25 and D.D. agreed with it, so it came from the	Page 49 1 S. B. Mell 2 A. Yes. 3 Q. And is it your intention, in 4 putting in or including paragraph number 9, 5 you are blaming the parents for your sexual 6 relationship with their daughter? 7 A. I am stating in this paragraph 8 that if I am found to be liable for the 9 actions against B.B., the parents absolutely 10 should be held liable for their actions. 11 Q. You had a sexual relationship 12 with this young girl, didn't you? 13 A. Fostered by the parents. 14 Q. You don't have to have that 15 sexual relationship with her, did you? 16 A. The parents certainly wanted it. 17 Q. Really? 18 A. Yes. 19 Q. And you could have said no, 20 right? 21 A. I could have said no. 22 Q. You were the adult in the room, 23 were you not? 24 A. So were the parents. 25 Q. On July 17th, you were the adult

Page 50 1 S. B. Mell 2 in the room, correct? 3 A. Yes. 4 Q. The parents weren't there, were 5 they? 6 A. No, but nothing happened on the 7 17th. 8 Q. You let her stay at your house, 9 correct? 10 A. She stayed at my house. 11 Q. You were the adult in the room, 12 correct? 13 A. Correct. 14 Q. So I am going to skip ahead, 15 because we don't need to be go through every 16 paragraph. We will be here until September. 17 So as I continue through this, 18 sir, you would agree with me, up to this 19 point in your -- where I am up to page 7, 20 nothing contained in this third-party 21 complaint is yours? This is all cut and 22 pasted from other third-party complaints; 23 would you agree with that? 24 MR. PEARLSON: Objection. 25 Objection. Mischaracterizes what he	Page 52 1 S. B. Mell 2 says Mr. Mell had other discussions with 3 Plaintiff's mother in which she encouraged 4 Mr. Mell to continue his relationship with 5 C.C. while she was away at college. Do you 6 see that? 7 A. Yes. 8 Q. What discussions are you 9 referring to, and when did they occur, and 10 what was discussed? 11 And that is a compound question, 12 and I will object to it myself, but that is 13 going to be the question. 14 A. We had a lot of conversations 15 when C.C. was at college, and I was trying 16 to, in the spring, pull back from the 17 relationship. 18 And the mother would consistently 19 say how much she loved and how wonderful I 20 was, and that she would hope that we can make 21 this work. 22 And those conversations were -- 23 like I say, I spoke to E.E. weekly, if not 24 daily, through text, you know, some other -- 25 mostly texts. Didn't really SnapChat.
Page 51 1 S. B. Mell 2 said. 3 Q. You can answer it. 4 A. I felt they were relevant. 5 If I used them, I felt they were 6 relevant. 7 Q. You are not preparing this, 8 you're taking it from some other lawyer, 9 right? 10 A. Well, I don't know how you define 11 -- I put this document together. I prepared 12 this document. 13 I may have used -- this case is 14 over 1600 docket entries long. Six years 15 have gone by. I have seen cut and paste from 16 every party in this case of using, you know, 17 either exact words or similar words, so I 18 prepared this document. 19 Q. And the information that you 20 included in this document is information you 21 believe to be truthful and accurate, correct? 22 A. Correct. 23 Q. I am going to go to page 11, 24 paragraph 37. 25 You see paragraph 37, sir? It	Page 53 1 S. B. Mell 2 Mostly texts or phone calls. It is not one 3 specific day, it was a continuation for 4 months. 5 Q. Okay. That was the spring of 6 what year? 7 A. Well, it was the spring of 2017, 8 I was trying to pull away from the family. 9 But C.C. went to college in 10 September of '16, so it would be between 11 September '16 and the spring of '17. 12 Q. So I am sorry, between what of 13 '16? 14 A. I would assume she went roughly 15 to school roughly September of '16. 16 Q. You said you were trying to pull 17 away from the family? 18 A. Around spring of '17. 19 Q. So spring of 2017, it is your 20 testimony you are making efforts to pull away 21 from the family? 22 A. Yes. 23 Q. Why? 24 A. Because the relationship just 25 wasn't going anywhere.

Page 54 1 S. B. Mell 2 Q. The relationship with who? 3 A. C.C. 4 Q. So when you say you were trying 5 to pull away in the spring of 2017, what are 6 we talking about, around what month? What 7 are you talking about? 8 A. I don't know. Maybe, I don't 9 know, sometime in the spring. That is the 10 best I can get to. 11 Q. All right. So you are making 12 efforts to pull away from the family, that is 13 what you are telling us? 14 A. Yes. 15 Q. And that is when you are trying 16 to reconcile with your wife? 17 A. Not at that time. 18 Q. So I want to turn to the next 19 page here, right, page 12. And we talk about 20 at paragraph 40, the cost of flights. 21 And we mentioned this earlier, 22 when you testified that you gave free private 23 plane and helicopter rides, so I want to talk 24 about some of this stuff here now. 25 So 40A, do you see where I am	Page 56 1 S. B. Mell 2 A. Yes. 3 Q. And then we go down to 40B. 4 Now we are in the fall of '16, 5 correct? 6 A. Yes. 7 Q. Read that statement 40B of the 8 third-party complaint. Tell me when you are 9 done reading it. 10 A. Okay. 11 Q. Now, what is identified in 40B 12 fall of 2016, why did you do that? 13 A. Well, C.C. and my daughter were 14 attending Colby, so I drove up to Maine in my 15 daughter's car, and E.E. and C.C. drove up in 16 C.C.'s jeep the day before. 17 We drove up and stayed at, I 18 believe it was maybe a Best Western or 19 something like that, in Augusta, Maine, the 20 night before. 21 We got two rooms. I paid for my 22 room, E.E. paid for hers. And we had dinner, 23 three of us had dinner together. 24 C.C. stayed with me that night, 25 and then the next day, my plane flew up the
Page 55 1 S. B. Mell 2 looking, summer of 2016? 3 A. Yes. 4 Q. Read that paragraph 40A, summer 5 of 2016. 6 A. Okay. 7 Q. Now, why did you do this, meaning 8 why did you take them on flights on your 9 private plane? 10 A. Sometimes they asked, and 11 sometimes I would offer. 12 I mean, I went back and forth 13 every weekend, so sometimes they asked to go, 14 and sometimes I would offer. 15 Q. But you didn't have to do this, 16 right? 17 A. No. 18 Q. But you did it? 19 A. Yup. 20 Q. And why? 21 A. Again, I was having a 22 relationship at the time, probably with C.C. 23 and, you know, I was friends with the family. 24 Q. So you would agree, summer of 25 '16, you are friends with the family?	Page 57 1 S. B. Mell 2 Cannon family, and I believe Kim, to settle 3 C.C. and Eliza into school. 4 Q. I am going to ask you the same 5 thing. 6 Why did you go about doing this? 7 A. At that point, we were both 8 driving up, and the plane was flying back. 9 Q. You didn't have to do it, though, 10 right? 11 A. No. 12 Q. So why did you do it? Were you 13 friends with the family? 14 A. Yeah. 15 Q. Right. You get to the next page, 16 which is 12 fall of 2016. Mr. Mell, 17 Plaintiff and E.E. went for a ride around New 18 York City in Mr. Mell's helicopter. 19 Do you see where I am reading? 20 A. Yes. 21 Q. Did anybody ask you to do that? 22 A. E.E. asked me to do that. 23 Q. She did. 24 And what did she ask of you? 25 A. She asked if we can fly around

Page 58 1 S. B. Mell 2 the city at night, to see the city, and I 3 told them I would be happy to do that. 4 Q. You could have said no, correct? 5 A. Correct. 6 Q. But you did it, right? 7 A. Yes. 8 Q. Why? 9 A. They asked, and we were friends. 10 Q. Going down to D, fall of 2016, 11 Mr. Mell, his family and Plaintiff's parents 12 and sisters flew together in Mr. Mell's 13 private plane to family weekend at C.C.'s 14 college. 15 Do you see where I am reading? 16 A. Yes. 17 Q. So why did you do that? 18 A. We were flying up for parents' 19 weekend, and E.E. was saying how long the 20 drive would be, so I offered if they wanted 21 to come up with us, they could. 22 Q. Was it your idea that they go up 23 with you, or did somebody ask you if they 24 could? 25 A. That was probably my idea.	Page 60 1 S. B. Mell 2 C.C. was really distraught. 3 And E.E. at that time, that 4 specific flight, asked me to fly her and her 5 family up to see her, because she, C.C., was 6 having emotional problems. 7 Q. Was your daughter still there? 8 A. Yes, she was. 9 Q. But this is the time you are 10 trying to pull away from the family, right? 11 A. That is correct. 12 Q. You want out, fair? 13 A. That is correct. 14 Q. Yet spring of '17, you are flying 15 them up to Colby? 16 A. For a specific -- the mother was 17 distraught. 18 It was equivalent of when C.C. 19 called me to fly the family up for when B.B. 20 was hit by the boat. It was the same level 21 of distraught panic, so I fly them up. 22 Q. That is because you were friends 23 with the family? 24 A. No, this one was a direct ask. 25 I was not going up, and this one
Page 59 1 S. B. Mell 2 Q. So you offered it up, and they 3 said okay? 4 A. Yes. 5 Q. All right, because you were 6 friends with the family, right? 7 A. Yup. 8 Q. Did Mrs. Mell go on that trip? 9 A. I believe so, yes. 10 Q. Now we get to E, spring of 2017. 11 Read that paragraph please? 12 A. Okay. 13 Q. Now spring of 2017 was when you 14 are trying to pull away from the family, 15 right? 16 A. That is correct. 17 Q. But you flew Plaintiff's mother, 18 plaintiff and her younger sister up to C.C.'s 19 college on his private plane for C.C.'s 20 birthday. Why? 21 A. That is correct. 22 This one was directly. E.E. 23 called me in tears and said C.C. was 24 struggling with the suicide death of a 25 classmate that she was involved with, and	Page 61 1 S. B. Mell 2 was -- there was a real ask. 3 Q. But you could have said no, 4 right? 5 A. I could have, yes. 6 Q. But because you were friends with 7 the family, you said yes? 8 A. We will go with yes. 9 Q. We are not going to go with 10 anything. 11 You would agree with because you 12 were friends with the family, you said sure, 13 I will take you up there? 14 A. No. You are over-generalizing. 15 This was a very specific ask from 16 a distraught parent. 17 Q. Okay. I can appreciate that. I 18 have kids, okay. 19 F, June of 2017, do you see that? 20 Read that paragraph, sir? 21 A. Yes. 22 Q. So once again, June of 2017, this 23 is you are trying to pull away from the 24 family, right? 25 A. On June -- at this time, yes.

Page 62 1 S. B. Mell 2 Q. Why are you flying them? 3 A. Well, this was C.C. reaching out, 4 trying to, I would say, keep me in the mix, 5 and she was the one that requested this. 6 I don't know one of the many now 7 learned to be non-truths was distraught, and 8 Mom needed time in the city, so she asked if 9 I would go and pick them up. 10 Q. But you are trying to pull away 11 from the family, right? 12 A. Yes. 13 Q. You are a grown man. You are the 14 only adult in the room who can fly that 15 plane, right? 16 A. That is correct. 17 MR. EVERS: Can we take a break 18 for ten minutes, five minutes? I got a 19 phone call I gotta just deal with. Take 20 a quick five-minute break? 21 MR. WHALEN: Makes sense. 22 MR. EVERS: Thank you. 23 (Whereupon, a short recess was 24 taken.) 25 (Continued)	Page 64 1 S. B. Mell 2 led to B.B. taking flying lessons? 3 A. We were having a conversation in 4 the Cannon's kitchen with C.C., B.B. and 5 E.E., and the topic came up about flying. 6 And E.E. had mentioned how she 7 took flying lessons when she was younger, but 8 never got her license, and how great it would 9 be for B.B. to be able to do something like 10 that. 11 Obviously, with my love for 12 flying, I said I would be happy to help her 13 get established at Somerset Airport. 14 Q. And this was where? Where did 15 this conversation take place? 16 A. In their kitchen, their house in 17 Whitehouse Station. 18 Q. And who was present? 19 A. E.E., C.C. and B.B. 20 Q. What were you doing there? 21 A. I was at their house a lot. 22 Q. But isn't this at a time when you 23 are trying to pull away from the family? 24 A. Yeah, but I was still at their 25 house.
Page 63 1 S. B. Mell 2 CONTINUED EXAMINATION BY 3 MR. EVERS: 4 Q. Mr. Mell, we just had a break. 5 Did you speak with anybody during 6 that break? 7 A. No. 8 Q. You gotta speak up. 9 A. No. 10 Q. Did you review any documents? 11 A. No. 12 Q. So I want to continue, is the 13 complaint -- can you still see the complaint? 14 Am I still sharing it? 15 A. Yes. 16 Q. Beautiful. Thank you. 17 We get to paragraph 41 here, sir. 18 Talks about flying lessons to the plaintiff. 19 When is it, June of 2017, that 20 you start giving flying lesson is to B.B.? 21 A. I didn't give her flying lessons. 22 Q. Okay. Oh, sign up for flying 23 lessons. Tell me about that. Tell me about 24 that. 25 What were the circumstances that	Page 65 1 S. B. Mell 2 Q. Yeah, but you are trying to pull 3 away from the family, is what you told me, 4 correct? 5 A. I was trying to pull away from 6 the relationship with C.C. and the family, 7 but wasn't obviously successful at it. 8 Q. Now, who gave C.C. -- I am sorry, 9 who gave B.B. flying lessons? 10 A. An instructor at Somerset 11 Airport. 12 Q. How many lessons did she have? 13 A. I have no idea. 14 Q. Who was the instructor? 15 A. I don't know who the instructor 16 was. It might have been the owner of the 17 airport, or I don't know. 18 Q. Was there a flying school there? 19 A. There was a flight school there, 20 yes. 21 Q. And is that where she took 22 lessons? 23 A. Yes. 24 Q. Did you arrange for those 25 lessons?

Page 66 1 S. B. Mell 2 A. Yes. 3 Q. Did you pay for those lessons? 4 A. Yes. 5 Q. Was there a discussion with Mom 6 or Dad that they wanted to pay you back for 7 those lessons? 8 A. I don't recall if they ever 9 discussed paying me back. 10 Q. Why would you pay for those 11 lessons? 12 A. Because I love flying. 13 Q. I will tell you what there, sir, 14 if I said to you I wanted to take flying 15 lessons, would you pay for my lessons? 16 A. You are not the Cannon family. 17 Q. No, I am not, and I am not a 18 16-year-old girl. 19 So why did you pay for her flying 20 lessons? 21 A. Because of my love for flying. 22 Q. So paragraph 43, it says, quote, 23 at some point in June of 2017, Mr. Mell 24 texted Plaintiff's mother and requested her 25 permission to allow Plaintiff to fly with him	Page 68 1 S. B. Mell 2 A. Correct. 3 Q. And you did not, did you? 4 A. Nope. 5 Q. Now it continues. 6 And the way this third-party 7 complaint is set up, there is the 8 introduction, and some statement of facts, 9 and then you get into more detail about 10 allegations. 11 We are not going to repeat 12 everything, but paragraph 48 says Mr. Mell 13 deposited approximately \$25,000 into each of 14 C.C. and Plaintiff's mother's investment 15 accounts. Did I read that accurately? 16 A. Yes. 17 Q. Is that also known as a Pershing 18 account? 19 A. Correct. Pershing was W. H. 20 Mell's clearing firm. 21 Q. Then on 49, 49 talks about 22 Mr. Mell deposited a check in the amount of 23 \$25,000 in Plaintiff's mother's Chase Bank 24 account. 25 We talked about that already
Page 67 1 S. B. Mell 2 on his private plane to Princeton. 3 Plaintiff's mother stunningly agreed. 4 Did I read that accurately? 5 A. Yes. 6 Q. This was after the spring of 7 2017, right? 8 A. Correct. 9 Q. You are trying to pull away from 10 the family, correct? 11 A. Correct. 12 Q. Yet you text E.E., meaning Mom, 13 and request permission to take her daughter 14 on your plane, correct? 15 A. Yeah. This was at E.E's request, 16 that if I could take B.B. flying as much as I 17 could, because she loved it. 18 Q. Now this is at a time where you 19 have told me you are trying to pull away from 20 the family; is that correct? 21 A. That is correct. 22 Q. You don't have to take her 23 flying, right? 24 You can say no, I am sorry I 25 can't do it. You could have done that?	Page 69 1 S. B. Mell 2 correct, sir? 3 A. Correct. 4 Q. Did Mom ever tell you she 5 couldn't keep that money, and ask you to take 6 it back? 7 A. No. 8 Q. And 49 says on or around July 27, 9 2017-during the time Plaintiff alleges she 10 and Mr. Mell were in a sexual relationship, 11 Mr. Mell deposited a check in the amount of 12 \$25,000 into Plaintiff's mother's Chase Bank 13 account. 14 Did I read that accurately? 15 A. Yes. 16 Q. So in July, on or around July 27, 17 2017 you would agree is a time that you were 18 having a sexual relationship with B.B.? 19 A. No. 20 Q. No? 21 A. No. 22 Q. When did that sexual relationship 23 start and end? 24 A. At the advice of my criminal 25 counsel, being on appeal, I can't answer any

Page 70 1 S. B. Mell 2 questions that relate to the criminal 3 allegations. 4 Q. I am not asking you about 5 criminal allegations. 6 I am asking you that you are 7 making a statement, and you just testified 8 that July 27th of 2017 that you were not 9 having a sexual relationship with the 10 Plaintiff. That is what you just told me, 11 right? 12 A. I said I was not; that is 13 correct. 14 Q. Yet this is your third-party 15 complaint that you filed against my clients, 16 right? 17 A. Correct. 18 It is at the time Plaintiff 19 alleges. I didn't say it happened. 20 Q. Did it happen? 21 A. Again, at the advice of counsel, 22 I am not answering any of these questions 23 that relate to any of the criminal potential 24 conduct on appeal. 25 Q. So you can answer as many	Page 72 1 S. B. Mell 2 So 51A, we talked about this already, right? 3 2016 this is about the Essex Hunt 4 Club, right? 5 A. Yes. 6 Q. Okay. Then we get to June of 7 '17, talks about a Zac Brown concert, right? 8 A. Yes. 9 Q. Who got the tickets? 10 A. I got the tickets. 11 Q. Who paid for the tickets? 12 A. I paid for the tickets. 13 Q. Do you invite Plaintiff, her two 14 sisters and their parents to go to this 15 concert in June of 2017? 16 A. They wanted to go to the concert, 17 and I got the tickets for them. 18 Q. This is at a time when you are 19 telling me you are trying to pull away from 20 the family, right? 21 A. Yup. 22 Q. Yup. Yet you still went and did 23 that, right? 24 A. Correct. 25 Q. Meaning you got these tickets?
Page 71 1 S. B. Mell 2 questions as you want in that fashion, and 3 what I am going to do is I will file an 4 application, and we will come back. 5 But that is okay. I get what you 6 are doing, man. 7 And I am going to assume that you 8 relying on the Pensky case. 9 I understand that. And if that 10 is what you are relying on, you tell me, and 11 I will move on? 12 A. I am relying on the advice of 13 counsel. 14 Q. Okay. What is the name of your 15 attorney, sir? 16 A. Michael Roberts. 17 THE COURT REPORTER: Repeat the 18 last name, sir, Michael? 19 THE WITNESS: Roberts. 20 THE COURT REPORTER: Thank you. 21 Q. Did you have any conversations 22 with him about this deposition? 23 A. No. 24 Q. Okay. All right. 25 So let's go down to paragraph 51.	Page 73 1 S. B. Mell 2 A. Yup. 3 Q. You did not have to do that, did 4 you? 5 A. No. 6 Q. You could have told them no, 7 right? 8 A. Yup. 9 Q. You could have said to them, hey 10 look, folks, based on what has happened, I 11 have to distance myself from you, correct? 12 You could have done that? 13 A. And I was trying to do that. 14 Q. No, no. You never said that to 15 them, did you? 16 A. Absolutely. 17 Q. You did? 18 A. Yes. 19 Q. When? 20 A. A couple of times. 21 In fact, E.E. came back in that 22 July saying, I think he is ready to be done 23 with us, which you conveniently glossed over. 24 Q. You know, you see what the beauty 25 of this process is? I get to ask the

Page 74 1 S. B. Mell 2 questions. That is the beauty of it. 3 A. You glossed over a very pointed 4 fact that E.E. knew in July that I was trying 5 to pull away from the family. 6 Q. How old were you at that time? 7 A. I don't know. Late forties, 8 maybe. 9 Q. So late 40-year-old man, you 10 could have pulled away from the family, 11 right? 12 A. It is complicated. 13 Q. Yes or no? 14 A. It is complicated. 15 Q. That does not answer my question. 16 If you wanted to, you could have 17 pulled away from the family, correct? 18 A. My answer is complicated. 19 Q. Nobody forced you to get Zac 20 Brown concert tickets and to take the family 21 to the concert, correct? 22 A. Well, sitting here today, I could 23 say they did, yeah. 24 Q. Really. Did anybody force you to 25 sit with them?	Page 76 1 S. B. Mell 2 Q. Why? 3 A. Same reason. 4 She wanted to go up there. I 5 love to fly, so I had no problem taking them 6 up. 7 Q. That is the reason? 8 A. What other reason would there be? 9 Q. The reason that you -- in the 10 summer '17, you did what is identified in 11 this paragraph C is because you love to fly. 12 That is your answer, correct? 13 A. Correct. 14 Q. Summer of '17, D, do you see 15 this? 16 A. Yes. 17 Q. Okay. Read it to yourself, 18 please. 19 A. Okay. 20 Q. Were you invited to their 21 vacation home? 22 A. Yeah, multiple times. 23 Q. Who invited you? 24 A. Sometimes it would have been E.E. 25 Sometimes it would have been C.C., and
Page 75 1 S. B. Mell 2 A. The tickets were together, but 3 no. 4 Q. Now we get to the summer of 2017, 5 next page, which is 51C, as in Charlie. 6 Now we are in the summer of 2017, 7 right? 8 A. Yes. 9 Q. At least that is what it says 10 there; is that accurate? 11 A. Yes. 12 Q. Why did you make that flight? 13 A. Which one are you referring to? 14 Q. It says C, summer of 2017, flying 15 to Cape Cod on Mr. Mell's private plane. 16 You see where I am reading? 17 A. Yeah, yeah. 18 Q. Why did this take place? 19 A. At that point, C.C. had asked. 20 Q. Who asked? 21 A. C.C., the older sister. 22 Q. You could have said no, correct? 23 A. Correct. 24 Q. But you didn't? 25 A. Correct.	Page 77 1 S. B. Mell 2 sometimes it might have been B.B. 3 Q. I want to know specifically on D 4 that you went to the family vacation rental 5 home and gave Plaintiff a card and gift for 6 her 16th birthday? 7 A. That was E.E. 8 Specific on D is E.E. 9 Q. You are telling me that E.E., 10 meaning the mom, invited you over to their 11 summer home, or where they were vacationing? 12 That is what you are telling me? 13 A. That is what I am telling you; 14 that is correct. 15 Q. Was it on B.B's birthday? 16 A. Yes, it was. No -- yes, B.B's 17 birthday. 18 Q. Why did you bring a card and 19 gift? 20 A. It was a nice thing to do. 21 Q. This is a family you are trying 22 to pull away from, right? 23 A. Yeah. Doesn't mean you still 24 can't be nice. 25 Q. Do you actually believe what you

Page 78 1 S. B. Mell 2 just said? 3 You know what, that is an 4 objectionable question. I am going to object 5 to it, so I am going to move on here. 6 What gift did you give her? 7 A. A card and a little airplane made 8 out of Coke cans, I believe. 9 Q. That is because she liked to fly, 10 right? She was learning how to fly? 11 A. Yup. 12 Q. And B.B. really liked flying, 13 didn't she? 14 A. I believe so, yes. 15 Q. And that is why you gave her an 16 airplane made out of Coke cans, right, because 17 that was an interest she had flying, correct? 18 A. I have no idea. 19 Q. Were you staying somewhere up 20 near them during this time when this birthday 21 event occurred? 22 A. Yes. We have a house in 23 Nantucket. 24 Q. Did you take -- did you drive 25 over to their home in a new Jeep?	Page 80 1 S. B. Mell 2 other than that, I am not sure. I don't 3 think so. 4 Q. We then go down to E. Summer of 5 2017, Plaintiff and her family, except for 6 D.D., flew home from their 2017 Nantucket 7 trip with Mr. Mell on his private plane, as 8 with all of these trips, courtesy of 9 Mr. Mell. 10 Did I read that accurately? 11 A. Yes. 12 Q. Nobody forced you to take anybody 13 on any plane trip, correct? 14 A. Forced? 15 Q. Yes. 16 A. What is your definition of force? 17 Q. You could have said no regarding 18 any one of these plane trips, correct? 19 A. Yes. 20 Q. It was your choice, was it not? 21 A. Yes. 22 Q. All right. And whether somebody 23 asked you for a plane ride or a helicopter 24 ride, or you offered it, it was your choice 25 ultimately, whether or not that plane trip or
Page 79 1 S. B. Mell 2 A. Yes. 3 Q. And then who did you take for a 4 ride? 5 A. I believe it was B.B., C.C., 6 Grace, and maybe two friends. 7 Q. Did the parents go? 8 A. No. 9 Q. And who suggested you take the 10 kids for a ride? 11 A. I don't know. 12 Q. You had no problem doing that, 13 though, right? 14 A. Nope. 15 Q. You could have said no, right, if 16 somebody asked? 17 A. Yup. 18 Q. You could have not gone to their 19 vacation home with a card and a gift for 20 B.B., correct? 21 A. Correct. 22 Q. Had you given B.B. any gifts 23 before that time? 24 A. I don't know. 25 I know I gave her cash once, but	Page 81 1 S. B. Mell 2 helicopter ride took place, correct? 3 A. Well, there were other things 4 behind the scenes; but yes, I could have said 5 no. 6 Q. And you did not, correct? 7 A. Correct. 8 Q. Now, we get to F, November, 9 December of 2017. 10 It says, Mr. Mell came to 11 Plaintiff's family home and gave them tickets 12 for box seats at Garth Brooks concert and 13 bottles of wine. 14 Plaintiff and her parents 15 attended the concert on December 3 of 2017. 16 Did I read that accurately? 17 A. Yes. 18 Q. Did anybody ask you for those 19 tickets? 20 A. Yes. 21 Q. Who? 22 A. That was C.C. Said their parents 23 were financially having problems, and they 24 were miserable, and the mother loves Garth 25 Brooks, and she thought it would be nice if

Page 82 1 S. B. Mell 2 her mother could go to that concert. 3 Q. Did you give them two bottles of 4 wine at that time? 5 A. I believe so, yes. 6 Q. Why? 7 A. I don't know. Maybe to take to 8 the concert. I don't know. It was a box, so 9 I don't know. 10 Q. And at that time, they were aware 11 of the relationship you had had with C.C., 12 correct? 13 A. Yes, and B.B. 14 Q. Why do you say B.B.? 15 A. Because they were aware. 16 Q. How were they aware? 17 A. Again, can't go into details, so; 18 so you can file your motion, I guess. 19 Q. This is what I am going to tell 20 you, sir. I will file my motion, but when I 21 take a discovery deposition, I am entitled to 22 know the factual information you possess. 23 So if you think you are going to 24 get up in court and testify to something that 25 you are refusing to answer now, I don't think	Page 84 1 S. B. Mell 2 Q. Keep going down here. 3 You know what, you mentioned 4 something that there was a text about -- from 5 the mom saying he is trying to get rid of us 6 or something. Do you remember that, what you 7 mentioned? 8 A. Yes. 9 Q. When was that text? 10 A. Somewhere in July of '17, I 11 believe. 12 Q. When did you first learn of it? 13 A. Of that text? 14 Q. Yeah. 15 A. I don't know. Years after. 16 Q. Were you trying to get rid of 17 them? 18 A. I was trying to -- I was trying 19 to pull back from them, yes. 20 Q. But you couldn't do it, could 21 you? 22 A. Apparently not. 23 Q. Apparently not; you are right. 24 And you kind of paid the price 25 for that, right?
Page 83 1 S. B. Mell 2 that is going to happen. 3 But we can deal with this down 4 the road, however we deal with it. 5 I get what you're saying. 6 A. That is fine. Thank you. 7 Q. Yup, yup, yup. 8 G, we talked about -- I think 9 this is that school tuition we talked about 10 earlier today; am I right? 11 A. Yes. 12 Q. And basically what you write here 13 is that the parents were, quote, tight, end 14 quote, on money, quote, over the summer, end 15 quote. Do you see that? 16 A. Yes. 17 Q. Why was is it quotes? 18 A. That was a word E.E. would use. 19 Q. What word would E.E. use? 20 A. Tight. 21 Q. That money was tight? 22 A. Yeah. 23 Q. And when did she have these 24 conversations? 25 A. I don't know. It was ongoing.	Page 85 1 S. B. Mell 2 A. Yes, I did. 3 Q. So here, page 24, I am still up, 4 right? Yup, okay. 5 So paragraph 85, why don't you 6 read that to yourself, and I can take over 7 the next page. 8 Just tell me if you want to -- 9 when you are done reading here, I will slide 10 this over to the next page, so you can see 11 the rest of the sentence, okay? 12 A. Okay. 13 Q. Just finish the sentence here. 14 Do you see that? 15 A. Yes. 16 Q. Okay. Sir, when is it your 17 position that E.E. or Mom knew that you were 18 having a sexual relationship with B.B.? 19 A. Again, I am not going to answer 20 that question at this time. 21 Q. Why? 22 A. It relates to the criminal case. 23 Q. Well, before, on your break, you 24 really had no trouble answering these 25 questions, did you?

Page 86 1 S. B. Mell 2 A. Well, these are very specific, 3 that relate specifically to any criminal 4 allegations. 5 The other ones are just about the 6 parents and money and other stuff, so -- 7 Q. I want to know, when is it your 8 position that E.E. knew that you were having 9 a sexual relationship with her daughter? 10 A. Again, I am not going to answer 11 that at this time. 12 Q. Okay. So just so you know, sir, 13 under our court rules -- and you might be 14 right, because I am not a criminal attorney; 15 but on the civil side, if we have to come 16 back, I don't pay for it. 17 And that is not a threat. I am 18 just letting you know what our civil rules 19 are, all right? 20 If you are refusing to answer a 21 question because you are telling me you have 22 been advised by an attorney, I will respect 23 that. 24 But if we come back, I just want 25 you to know how my reading of the court rules	Page 88 1 S. B. Mell 2 with? 3 A. Yeah, but I am on appeal. 4 So no, I guess the answer to that 5 is no. 6 Q. Give me a second here. 7 So as of December 4, 2017, did 8 you contact B.B. via SnapChat? 9 A. On December 4th? 10 Q. Up to December 4, 2017, did you 11 contact B.B. via SnapChat? 12 A. Yeah. 13 Q. After December 4th of 2017, did 14 you continue to contact B.B. via SnapChat? 15 A. That, I don't know. 16 Q. Did you delete any SnapChats? 17 A. No. 18 Q. Did you instruct B.B. to delete 19 SnapChats? 20 A. I don't know if I did. 21 Q. You might have? 22 A. I don't recall. 23 Q. I am going to go to the next 24 page. 25 See, now we get to the Count one
Page 87 1 S. B. Mell 2 is, so -- 3 A. Fair enough. 4 Q. Did you have a sexual 5 relationship with B.B.? 6 A. Again, I think I will refrain 7 from that at this time. 8 Q. Yet you filed a third-party 9 complaint against my clients, alleging they 10 are responsible for the sexual relationship 11 you had with there daughter, right? 12 A. I guess on that specific 13 question, yes. 14 Q. You don't have a problem 15 answering that question, do you? 16 A. That I had a sexual relationship 17 with B.B., no. 18 Q. No, no. What I am saying, you 19 don't have any problem answering a question 20 when it deals with your third-party complaint 21 against my clients, do you? 22 A. Because it is separate from my 23 criminal charges. They are totally 24 different. 25 Q. Are your criminal charges done	Page 89 1 S. B. Mell 2 where there is a claim for negligence. Do 3 you see that? 4 A. Yes. 5 Q. You are repeating and realleging 6 each of the previous allegations that is set 7 forth at length herein. 8 Am I reading that accurately? 9 A. Yes. 10 Q. So paragraph 92 starts out, 11 despite learning of Mr. Mell's inappropriate 12 sexual proclivities via his inappropriate 13 relationship with their teen daughter C.C., 14 Plaintiff's parents forged a close 15 relationship with Mr. Mell and allowed him to 16 become deeply enmeshed with their family. 17 Did I read that accurately? 18 A. Yes. 19 Q. Well, you were close with her 20 family, correct? 21 A. Not up until in the relationship 22 with C.C., I was not, no. 23 Q. But you then just become close 24 with the family, correct? 25 A. Yes.

Page 90 1 S. B. Mell 2 Q. We can spend like an hour or so 3 going through all the plane rides and 4 everything you did the family, correct? 5 A. Correct. 6 Q. What do you mean by inappropriate 7 sexual proclivities? 8 A. That is a good question. 9 Q. Thank you. 10 A. I don't know what I meant by it. 11 Q. Well, what do you understand that 12 term to mean, inappropriate sexual 13 proclivities? 14 A. That I had relationship with the 15 older daughter. 16 Q. That is what you meant it to 17 mean, in this paragraph? 18 A. Yeah, I guess. 19 Q. Well, see, the problem, this 20 isn't my complaint; this is your complaint. 21 So is that what you meant to mean 22 by that? 23 A. Yes. 24 Q. Okay. Let's to go paragraph 106, 25 sir. I want you to read that to yourself.	Page 92 1 S. B. Mell 2 Q. That is a question. 3 Did you take that to mean that 4 you had the green light to have a sexual 5 relationship with their underaged daughter? 6 A. Well, they knew about it; so 7 apparently, yes. 8 Q. What dangerous condition that you 9 are referring to when you used the term 10 dangerous condition? 11 A. I don't know what I was referring 12 to at the time. 13 Q. Were you referring to you? 14 A. No. 15 Q. Go to Count III, sexual abuse 16 under the Child Sexual Abuse Act N.J.S.A. 17 2A:61B-1, one. 18 Do you see where I am, sir? 19 A. Uh-huh. 20 Q. This is the count in your 21 third-party complaint, correct? 22 A. Yes. 23 Q. What you have here at Count 121 24 is that the CSSA provides that a parent who 25 quote knowingly permits or acquiesces in
Page 91 1 S. B. Mell 2 Do you see where I am looking 3 right here, that paragraph? 4 A. Okay. 5 Q. So what act are you referring to 6 when you talk about affirmative acts of 7 keeping Mr. Mell so close to the family, 8 thereby creating a dangerous condition? 9 What are you talking about? What 10 is the dangerous condition? 11 A. Constant contact. Keeping me 12 close to them. 13 And any time I tried to either 14 step back or move away, I would get the 15 proverbial phone call, crying, slash, you 16 know, you are so wonderful. You should be 17 part of our -- you know, it is nice that you 18 are part of our family lives, kind of thing. 19 They kept me very close to them. 20 Q. So that gave you the green light 21 to have sex with their daughter? 22 A. I didn't say that. 23 Q. No, I did. 24 A. Well, that is your testimony, 25 then.	Page 93 1 S. B. Mell 2 sexual abuse by any person also commits 3 sexual abuse, period, end quote. N.J.S.A. 4 2A:61B-1(a)(1). 5 Did I read that accurately? 6 A. Yes. 7 Q. Is this any other person? Is 8 that you? 9 A. I assume so, yeah. 10 Q. So when did D.D. or E.E. 11 knowingly permit or acquiesce in you having 12 sexual relationships with their daughter, 13 their daughter B.B.? 14 A. Well, the strongest point of that 15 was in, I don't know, October of '17, when 16 B.B's phone was hacked by her friends, and 17 the parents had seen the text messages and 18 pictures of B.B., and the mom knew about it 19 then. 20 Q. What is that based on? What is 21 that testimony based on? 22 A. It is based on fact, text 23 messages produced in this case. 24 Q. That is what you are relying on? 25 A. I believe so, yeah.

Page 94 1 S. B. Mell 2 Q. When is the date you are talking 3 about, that this all happened by? 4 A. It is maybe October of '17, 5 somewhere in there. 6 Q. Now I want to continue. Now we 7 go to Count VI. 8 You see where page 34 here of 39? 9 Do you see that? 10 A. Yes. 11 Q. Now this is typed on a different 12 type of paper and a different font, correct? 13 A. Correct. 14 Q. Do you prepare this part of the 15 complaint yourself, meaning type it? 16 A. I believe so, yes. 17 Q. So everything before this, you 18 see how we have the margin here? 19 A. Yes. 20 Q. This was all prepared by somebody 21 other than you, correct? 22 A. Yes. I probably took -- 23 extracted it. 24 Q. You didn't have access to this 25 type of border paper when you prepared this	Page 96 1 S. B. Mell 2 about? 3 MR. EVERS: Moral obligation. 4 Q. Did you have a moral obligation 5 to tell your wife you either were or had an 6 affair with C.C.? 7 A. Yes, I should have. 8 Q. You should have, and you did not, 9 did you? 10 A. I did not. 11 Q. And what you are trying to do 12 here is blame the parents of C.C. for not 13 telling your wife, right? 14 A. What I am saying here is if 15 somebody had the correct moral compass, they 16 would have stepped in immediately when they 17 found out, and they didn't. 18 And not only that: Once they 19 found out, they brought me into the 20 relationship. 21 I had no relationship with this 22 family before this. 23 Q. Where was your moral compass? 24 A. Apparently it was broken. 25 Q. Are you a victim here?
Page 95 1 S. B. Mell 2 third-party complaint, correct? 3 A. That is correct. 4 Q. You did have access to some 5 paper, and I guess a computer, because you 6 prepared Count VI, correct? 7 A. Correct. 8 Q. So when I look at paragraph 136, 9 I want you to read that. Tell me when you 10 are done. 11 A. Okay. I am done. 12 Q. So it is your position, sir, that 13 Mom and Dad, D.D. and E.E., should have told 14 your wife about your relationship with C.C.? 15 A. Yes. 16 Q. Did you have any obligation to do 17 that? 18 A. Should have, but I wasn't in the 19 right mind set, obviously. 20 Q. Did you have an obligation to 21 tell your wife you were having a sexual 22 relationship with C.C.? 23 MR. PEARLSON: Objection to form. 24 Are we talking about a legal, 25 moral? What obligation are we talking	Page 97 1 S. B. Mell 2 A. I am not going to answer that. 3 But I was in a bad place at a bad 4 time in that time. 5 Q. Why are you not going to answer 6 that? Do you think you are a victim here? 7 A. I don't -- I don't -- I don't 8 know. 9 I don't think I see myself as a 10 victim, but I see myself as someone who made 11 some really bad choices. 12 Q. I agree with you. 13 Your wife knew as early as 2015, 14 where she had a suspicion as early as 2015, 15 that you were having an affair, correct? 16 A. I have no idea. 17 Q. That was your prior testimony, 18 wasn't it? 19 A. I don't know. 20 Q. If you previously testified to 21 that, would you stand by that testimony? 22 A. I would have to read the 23 testimony to see. 24 A lot of things have been taken 25 out of context during this litigation, so I

25 (Pages 94 - 97)

Page 98 1 S. B. Mell 2 am not comfortable answering anything without 3 seeing what it actually is. 4 Q. Your wife first expressed a 5 suspicion sometime in 2015 that you were 6 having or maybe having an affair with another 7 woman, and she used the name of that person, 8 meaning C.C., correct? 9 A. I don't know what you are reading 10 or referring to. 11 If you want to produce something, 12 I will be happy to read it. 13 Q. I am just reading your testimony. 14 A. Well, again, a lot has been taken 15 out of context in this litigation, so excuse 16 me, but even though you may be stating that, 17 I need to see it. 18 Q. I am going continue with this 19 Count VI that you prepared. 20 What is the basis for your 21 statement that due to D.D. and E.E. wanting 22 S. B. Mell to spend time with B.B., it was 23 their intention and reasonably foreseeable 24 that B.B. would also end up having an affair 25 with Defendant Mell.	Page 100 1 S. B. Mell 2 but I don't know when she got her license. 3 Q. You didn't have to -- you didn't 4 have to do that, right? You could have said 5 sorry, I can't teach you how to drive a stick 6 shift? You could have done that? 7 A. Correct. 8 Q. But you didn't, did you? 9 A. No. 10 Q. Did your position that D.D. and 11 E.E. had an obligation to tell your wife that 12 you were having a relationship with C.C., but 13 you didn't have that -- you didn't have that 14 obligation; is that what you are trying to 15 say here? 16 A. I am saying they had an 17 obligation. 18 And yeah, I should have had an 19 obligation, but I didn't. 20 Q. And you believe they should have 21 warned law enforcement, your wife and your 22 children? 23 A. I believe they should have taken 24 the appropriate actions. 25 Q. Well, right here you say they
Page 99 1 S. B. Mell 2 What is the basis for that 3 statement? 4 A. Because they kept wanting me to 5 spend time with B.B., The parents. 6 Q. Fine. But you were an adult, 7 right? 8 A. Yes. 9 Q. She was a child? 10 A. So was their older daughter. 11 Q. That is not my question. 12 She was a child, correct? 13 A. Yes. 14 Q. Who did you teach to drive a 15 manual transmission truck? See that here? 16 A. Yeah, B.B. 17 Q. And when did you do that? 18 A. I don't recall. 19 She wanted to get a license, and 20 E.E. bought her a used pickup truck and asked 21 me to teach her to drive it. 22 Q. What was the month and year of 23 that? 24 A. I have no idea. 25 The year would have been 2017,	Page 101 1 S. B. Mell 2 should have warned law enforcement, your wife 3 and your children, right? 4 A. Yup, that is what it says. 5 Q. That is what it says. 6 And you prepared this, right? 7 You didn't take this from anybody else? 8 These are your thoughts and your writings, 9 correct? 10 A. That is correct. 11 Q. And you didn't alert your wife to 12 any of this, correct? 13 A. That is correct. 14 Q. You didn't alert your children to 15 any of this? 16 A. That is correct. 17 Q. You hid it from them? 18 A. That is correct. 19 Q. So I didn't get to negligently 20 causing economic loss down here at page 36, 21 Count 145 -- hold on. I got some notes 22 written here. 23 What do you mean by third-party 24 Defendants are liable because of the 25 negligent failure to verify and reveal the

Page 102 1 S. B. Mell 2 source of funds being given to them by 3 Defendant. 4 What do you mean by that? 5 A. That they didn't determine 6 whether they were marital assets or not. 7 Q. Were they? 8 A. They were, yes. 9 Q. So wait a minute. You are giving 10 them gifts. You are giving them money. 11 And it is your position they 12 needed to contact your wife to find out if 13 these were marital assets; is that your 14 position? 15 A. That is my position. 16 Q. It continues B, identify, uncover 17 and report these events and these 18 financial-property transactions. 19 What property transactions are 20 you talking about? 21 A. I am not sure what that would 22 reference. 23 Q. You are alleging here that 24 third-party Defendants knew of some property 25 transactions, and I want to know what you are	Page 104 1 S. B. Mell 2 Q. This is not a joint checking 3 account, this is your checking account, 4 right? 5 A. Correct. 6 But I have come to learn during 7 the divorce, regardless of, you know, named, 8 whatever everything seems to be a marital 9 asset. 10 Q. Right. 11 MR. EVERS: I need another ten 12 minutes. I got somebody in a doctor's 13 office, so I am getting phone calls. 14 I just gotta take a quick 15 ten-minute break, if that is okay. 16 MR. PEARLSON: Can I just ask 17 where are we at, in terms of how much do 18 you think you have, and when should we 19 be taking a lunch break? 20 MR. EVERS: I never eat lunch. 21 So if you guys want lunch, it is 22 fine. I do not have a tee time. 23 So it seems to be a number one 24 question I got when people were calling 25 me on this, wanting to know what time,
Page 103 1 S. B. Mell 2 talking about. 3 I will let you read the whole 4 thing here. There you go. 5 A. I can't recall, at this time, 6 what that refers to. 7 Q. Where did the money come from 8 that you deposited into E.E's Chase account? 9 A. I am not sure. You have to show 10 me the check again. 11 I can't remember which account it 12 came from. 13 Q. Bear with me here. 14 Can you see that? 15 A. That is the deposit. That is a 16 personal account. 17 Q. So this was your personal money? 18 A. Well, yeah. 19 I mean, I don't know what is 20 considered personal marital assets. Seems 21 like everything is marital assets, but -- 22 Q. So this money that you deposited 23 on your check, that is your name at the top, 24 right? 25 A. Correct.	Page 105 1 S. B. Mell 2 but I don't know, man. 3 I am kind of moving on to my next 4 thing now. 5 I do not expect to be another two 6 hours; I really don't. Maybe an hour. 7 MR. PEARLSON: I just defer to 8 others lawyers. 9 Maybe take a quick half hour 10 lunch break while you are doing your 11 call, if that makes sense. 12 MR. EVERS: Yeah, that is fine. 13 I have no problem with that. 14 Why don't we come back at one 15 o'clock. 16 MR. PEARLSON: Sounds good. 17 (Whereupon, a lunch recess was 18 taken.) 19 CONTINUED EXAMINATION BY 20 MR. EVERS: 21 Q. Mr. Mell, during the break, did 22 you speak to anybody? 23 A. No. 24 Q. Did you review any documents? 25 A. No.

Page 106 1 S. B. Mell 2 Q. My understanding is that you pled 3 guilty to an offense in connection with this 4 matter; is that correct? 5 A. Yes. 6 Q. And you pled guilty to 7 endangering the welfare of child/sexual 8 conduct/third degree; is that correct? 9 A. That is my understanding, yes. 10 Q. And the date of the offense is 11 July 21, 2017; is that correct? 12 A. I assume, yes. 13 Q. Now, I want to -- I am going to 14 go to Exhibit 3. Can you see that? 15 A. Yes. 16 Q. All right. There we go. 17 So I am going to get to the top 18 here. I am going to mark this as Exhibit 3. 19 And these your responses to -- it says C.C. 20 and D.D. notice to produce. Actually it 21 should be D.D. and E.E. 22 Do you understand that? 23 A. I do. 24 Q. Okay. Third-party Defendants are 25 D.D. and E.E., do you see that?	Page 108 1 S. B. Mell 2 request. Should responsive material later 3 come into his possession, we will supplement 4 this response in good faith. 5 Did I read that accurately? 6 A. Yes. 7 Q. Have you come into possession of 8 any documents in request number one? 9 A. I don't think so. Since May, I 10 don't think so. 11 Q. Okay. Well, there is an ongoing 12 obligation in our courts that if you do come 13 into possession of such information, that you 14 supplement your discovery response with the 15 information. Do you understand that? 16 A. Yes. 17 Q. And you have not supplemented 18 this discovery response since May of 2025, 19 correct? 20 A. That is correct. 21 Q. Okay. And there is question 22 number two. Really, it is not much different 23 than one, because I think we are asking you 24 about each count in the complaint, do you 25 understand?
Page 107 1 S. B. Mell 2 A. Yes. 3 Q. So these are your responses to 4 the discovery demands that we sent to you, 5 correct? 6 A. Correct. 7 Q. Who prepared the responses to 8 these questions? 9 A. Ones, as stated, because at one 10 time I was represented, so I have no idea. 11 Q. It certainly wasn't when I was 12 around, so let's get to the bottom. 13 May 17th of 2025. 14 So who prepared that document? 15 A. That would have been me, then. 16 Q. Just you, yourself? 17 A. I believe so, yup. 18 Q. The first question -- and I am 19 not going to read all of these questions for 20 the record. There is no need to, because we 21 are going to attach it as an exhibit, okay? 22 But I want to just make sure. 23 It says accordingly, Mr. Mell is 24 not presently in possession, custody or 25 control of any documents responsive to this	Page 109 1 S. B. Mell 2 I can go back to one. 3 Do you see that, Count I, the 4 third-party complaint? Do you see that? 5 A. Yes. 6 Q. Question 2 talks about -- or 7 number 2 talks about Count II of your third 8 party complaint. Do you see that? 9 A. Yes. 10 Q. And what we are told is that you 11 reference materials, text messages, 12 statements, financial transactions. 13 Do you see where I am pointing 14 here, in bold? 15 A. Yes. 16 Q. These materials, to the extent 17 they exist, are not in Mr. Mell's possession. 18 And then you continue, 19 accordingly, he is not presently in 20 possession, custody or control of any 21 documents responsive to this request. Do you 22 see that? 23 A. Yes. 24 Q. Is that accurate, up to today? 25 A. I believe so.

Page 110 1 S. B. Mell 2 Q. So the instruction I am going to 3 give you, or request that other than what we 4 may have been provided with the box 5 inspection, if there is any other information 6 responsive to these requests, I am going to, 7 you know, request a response, or object to it 8 later on. 9 Now I get to number 3. And I 10 guess you are going to get the idea this is 11 about Count III of your complaint. Do you 12 see it? 13 A. Yes. 14 Q. It is the same question, just 15 dealing with Count III, and your answers are 16 pretty much the same, where you tell me you 17 provided an answer, where you say 18 accordingly, he is not in possession or 19 custody or control of any documents 20 responsive to this request at this time. Do 21 you see that? 22 A. Yes. 23 Q. So you prepared this answer, 24 correct? 25 A. Correct.	Page 112 1 S. B. Mell 2 each count of your complaint. Do you 3 understand that? 4 A. Yes. 5 Q. And your answer is you let us 6 know that once again, you are not in 7 possession, custody or control of any 8 documents responsive to this request but you 9 reserve the right to supplement should such 10 materials come into your possession in the 11 future; am I correct? 12 A. Correct. 13 Q. Not trying to beat a dead horse, 14 but number 6 deals with Count VI of your 15 complaint, right? 16 A. Yup. 17 Q. You give an answer where you talk 18 about once again, you are not in possession, 19 custody or control of any documents 20 responsive to this request, but you will 21 supplement in good faith if responsive 22 documents later come into your possession, 23 correct? 24 A. Correct. 25 Q. What do you mean by financial
Page 111 1 S. B. Mell 2 Q. And you are referring to yourself 3 as he? 4 A. Apparently. 5 Q. Okay. Number 4 asks about Count 6 IV of your complaint. Do you see that? 7 A. Yes. 8 Q. And down here it says 9 accordingly, Mr. Mell states he is not in 10 possession, custody or control of any 11 documents responsive to this request at this 12 time, but reserves the right to supplement 13 this response should such materials later 14 become available, correct? 15 A. Correct. 16 Q. This is the answer you prepared, 17 correct? 18 A. Correct. 19 Q. Without assistance of anyone, 20 correct? 21 A. Correct. 22 Q. Number 5 asks about Count V of 23 your complaint, right? 24 A. Yup. 25 Q. And the same question going for	Page 113 1 S. B. Mell 2 entanglement right here? The factual basis 3 for the count, what is that about? 4 A. Parents alleged action and 5 financial entanglement. 6 Can you scroll up a little bit? 7 Q. Sure. 8 A. I would have to imagine, you 9 know, the monies I have given to the family. 10 Q. All right. But this was your 11 answer to the discovery demand that we sent 12 to you, correct? 13 A. Right. 14 Q. And this is an answer you 15 prepared without assistance of any help with 16 anyone, correct? 17 A. Yup. Yeah, I assume when I wrote 18 that it would have been having to do with the 19 money, with the family and my divorce and 20 entanglement. I believe that is kind of what 21 that was. 22 Q. We get to number 7, talks about 23 Count VII of the third-party complaint, 24 right? That is where we are. 25 A. Yup.

Page 114 1 S. B. Mell 2 Q. I mean, it is kind of going over 3 the same thing, but let's see what we got 4 here. 5 And here is your response, so 6 these substantial gifts we talked about these 7 today already? 8 A. Yup. 9 Q. First one, you talk about the 10 \$25,000 check deposit in the Plaintiff's 11 mother's bank account. 12 That is the Chase account, right? 13 A. Right. 14 Q. That is the deposit you made, 15 correct? 16 A. Correct. 17 Q. You signed the endorsement on the 18 check, correct? 19 A. Correct. 20 Q. Other financial transfers and 21 gifts allegedly accepted by the third-party 22 Defendants. 23 What financial transfers and 24 gifts are you referring to? 25 A. Everything we talked about for	Page 116 1 S. B. Mell 2 digital communications. 3 What digital communications are 4 you referring to? 5 A. Well, anything that was a text 6 message or phone related. 7 Q. Once again, what you are telling 8 us is you are not in possession, custody or 9 control of any documents responsive to this 10 request? 11 A. Correct. 12 Q. Is that true up to today? 13 A. Yes, other than what has already 14 been submitted. 15 Q. Right. 16 Well, I don't know what has been 17 submitted. 18 The response to these 1 through 19 7, you told me you are not in possession, 20 custody or control of any document responsive 21 to Count I through VII, correct? 22 A. I am only in possession of what 23 has been posted and submitted to date. 24 And I don't even think I have all 25 of whatever has been submitted, because I had
Page 115 1 S. B. Mell 2 the last couple of hours. I mean, you know, 3 the Mell accounts, the cash, you know, all of 4 the intangibles. 5 Q. And you offered that up to them 6 as a gift, correct? 7 A. No. Not all as gifts, no. 8 Q. Then why did you use the words 9 gifts? 10 A. Some of them may have been gifts. 11 I mean, I gave C.C. a Cartier 12 watch. There may have been -- you know, you 13 have to break down these transactions as 14 which were gifts and which were asks. 15 Q. Either they were gifts, or they 16 were asks, meaning somebody asked you for it? 17 A. Correct. 18 Q. And you had the ability to say 19 no? 20 A. Correct. 21 Q. Like a gift would be the airplane 22 can model that you gave to B.B. for her 23 birthday, right? 24 A. Correct. 25 Q. You talk about text messages and	Page 117 1 S. B. Mell 2 to get further stuff that I thought was 3 submitted by my counsel Toscano, and they 4 were the ones who produced, and I had never 5 seen it. 6 Q. So you do have documents 7 responsive for 1 through 7 so far? 8 A. I have what has been submitted in 9 this case. 10 Q. I don't know what that means, 11 sir. 12 A. Whatever has been submitted to 13 everybody, I assume I would have. 14 Q. Submitted to everybody by who? 15 A. I don't know. 16 When anybody submits these 17 filings on the docket, saying I am 18 supplementing this and doing that. 19 I have access to the docket, so I 20 have access to that information. 21 Q. I am not talking about the 22 docket, I am talking about documents that 23 support the allegations you raise from Count 24 I through VII in your third-party complaint. 25 Do you have any documents,

Page 118 1 S. B. Mell 2 writings, records, et cetera? Each question 3 asks for the same thing. 4 Do you have any of this 5 information that supports Count I through VII 6 of your third-party complaint? 7 A. I have to go back and look. 8 Q. I need you to go back and look, 9 and then let me know. 10 A. Okay. 11 Q. Request number 8, number 8 asks 12 about Count VIII of your third-party 13 complaint. 14 Right here you see same thing I 15 am asking for, all the documents you have in 16 your possession on what you base your 17 allegations of Court VIII of the third-party 18 complaint. 19 And it is the same answer you 20 speak in the third person, correct, where you 21 write in the third person? 22 A. Yeah. 23 Q. And number 8, you give specifics 24 here the financial transaction. That is the 25 \$25,000 check, right?	Page 120 1 S. B. Mell 2 documentation necessary to prove the deposits 3 are expenditures. 4 Did I read that accurately? 5 A. Yes. 6 Q. You have that information now, 7 right? 8 A. Now, yes. 9 Q. All right. And other than that, 10 Mr. Mell is not in possession, custody or 11 control of any documents responsive to this 12 request at this time. 13 Did I read that accurately? 14 A. Yes. 15 Q. Once again, you prepared this 16 answer without assistance from anyone, 17 correct? 18 A. Yes. 19 Q. Number 9 asks that you provide 20 items you intend to mark for identification, 21 offer into evidence or anyway rely on at 22 trial, correct? 23 A. Yes. 24 Q. You are telling me that that 25 request was premature, right?
Page 119 1 S. B. Mell 2 A. Yup. 3 Q. The deposit into the Chase 4 account? 5 A. Yup. 6 Q. Except which is material 7 benefits, travel, those are the plane rides? 8 A. Yeah, I would assume. 9 Q. Helicopter rides? 10 A. Yup. 11 Q. Tuition. 12 You didn't pay tuition, right? 13 A. I thought I was, but apparently 14 maybe not. I don't know. 15 Q. And gifts, we talked about gifts, 16 right? 17 A. Yup, yup. 18 Q. All right. What behaviors are 19 you talking about here? See where it says 20 well as communications and behaviors? 21 A. That would just be text messages, 22 I believe. 23 Q. Now it says here that you don't 24 possess bank records, credit card statements 25 or account ledgers or internal financial	Page 121 1 S. B. Mell 2 A. Yeah. 3 Q. But you are going to supplement 4 this response and provide a full trial list? 5 A. Eventually, I guess, yes. 6 Q. Okay. Now here is number 10. 7 What where we asking you for? 8 Any admissions or statements made at any time 9 by the parties to the suit or their respect 10 representatives to you or anyone else of 11 which you have knowledge, right? 12 A. Yeah. 13 Q. And you object to that. 14 But in the third person, you tell 15 me, without waiving the objections, that Mr. 16 Mell states he does not presently possess any 17 documents that he has identified or cataloged 18 specifically as, quote, declarations against 19 interest, end quote, within the meaning of 20 New Jersey Rule of Evidence 8038C25. 21 Did I read that accurately? 22 A. Yeah. 23 Q. And you prepared that answer all 24 by yourself? 25 A. I would have to go back and look.

Page 122 1 S. B. Mell 2 Q. Look at what? 3 A. Whenever this stuff comes up, I 4 have to reference law books and Internet and 5 all sorts of stuff. 6 I couldn't even tell you what 803 7 is, off the top of my head, sitting here 8 today, but I would find it. 9 Q. I get it. But it is your sworn 10 testimony that these answers are yours and 11 yours alone, correct? 12 A. Yes. 13 Q. And then we get to 11, provide 14 all documents referring to or related in any 15 to any declarations against interest made 16 persons having knowledge, relevance to the 17 subject matter of pending litigation, right? 18 A. Uh-huh. 19 Q. And then you answer that, right? 20 See your response? 21 A. Yup. 22 Q. But before the response, you are 23 thanking somebody. Thank you for the 24 clarification. 25 Here is a final refined version	Page 124 1 S. B. Mell 2 statement to be in this final document, did 3 you? 4 A. I don't know where it came from. 5 Q. You understand the importance of 6 testifying truthfully, right? 7 A. Yes. 8 Q. Just wanted to confirm. 9 We go to 12. We are asking for 10 any and all written statements obtained by 11 you relevant to this litigation, right? 12 A. Uh-huh. 13 Q. And once again, you are talking 14 in the third person, referring to you as S. 15 Bradley Mell, right? 16 A. Correct. 17 Q. Do you often refer to yourself in 18 the third person? 19 A. Yeah. In all these filings, 20 sometimes it goes back and forth, but most 21 times I try to do third person, to keep names 22 straight. 23 Q. Okay. 24 A. If you look at all my filings in 25 six years, you will see it consistently.
Page 123 1 S. B. Mell 2 of response to request number 11 written with 3 precision and appropriate procedural posture. 4 Who were you thanking? 5 A. I have no idea. 6 Q. Well, you were thanking somebody, 7 right? 8 A. Well, that says, but I have no 9 idea who it could have been, because I don't 10 have an attorney. 11 Q. Who provided you with a final 12 refined version with response to request 13 number 11? 14 A. I have idea. 15 Q. Who wrote it with precision and 16 appropriate procedural posture? 17 A. I have no idea. 18 Q. You agree with me, what I have 19 highlighted right there is in your response 20 to my notice to produce, right? 21 A. Yes. 22 Q. And you forgot it was there, 23 didn't you? 24 A. I have no idea. 25 Q. You did not mean for that	Page 125 1 S. B. Mell 2 Q. Okay. 3 A. In the third person, so that is 4 not abnormal at all. 5 Q. Okay. And then this -- once 6 again you are telling me you have not 7 obtained or maintained any written witness 8 statements, and you don't have any in your 9 possession, right? 10 A. Right. 11 Q. And you are not in possession, 12 custody or control of any response of written 13 statements or related documents, correct? 14 A. Right. 15 Q. And this is an answer you 16 prepared all by yourself right? 17 A. Yes. 18 Q. And 13, provide any and all 19 documents that comprise, refer or relate in 20 anyway to any tape recordings, videos or 21 other electronic recording devices of any 22 interviews of any potential witnesses. 23 Do you have any recordings of 24 C.C.? 25 A. I have her Federal interview, FBI

Page 126 1 S. B. Mell 2 interview. 3 Q. Did you provide that to me? 4 A. Oh, of C.C. or B.B.? 5 Q. C.C.? 6 A. No, I have nothing from C.C. 7 Q. Do you have any audio recordings? 8 A. Of C.C.? 9 Q. Yes, sir? 10 A. No, no. 11 Q. And what do you have of B.B.? 12 A. Her Federal FBI interview. 13 Q. You didn't provide that to me, 14 did you? 15 A. I don't know if I'm allowed to. 16 I mean, it is a criminal file 17 that I got. 18 Q. But the fact that it says you 19 don't have any documents that refer or relate 20 to a recording is inaccurate, right? 21 A. For who? 22 Q. For you. 23 A. This is for the parents? 24 Q. Look, you didn't indicate you had 25 no -- you had a problem understanding this	Page 128 1 S. B. Mell 2 potential witness, correct? 3 A. But I don't believe I'm allowed 4 to share that. 5 Just like Judge Carter ruled on 6 certain documents in the production in the 7 box inspection that were Federally criminal 8 documents, he totally disallowed them, so. 9 I can't turn over an FBI file to 10 you. 11 Q. You don't tell me that there is 12 privileged documents in response to this 13 answer, do you? 14 Well maybe you do. Hold on? 15 A. Maybe that was my error. I don't 16 know. 17 Q. Okay. It doesn't say anything 18 about privileged documents, right? 19 A. Okay. 20 Q. Am I correct? 21 A. Yeah. I don't see it there, 22 correct. 23 Q. You understand that some 24 documents are privileged, right? 25 A. Yes.
Page 127 1 S. B. Mell 2 question, so I will ask it and go through it 3 slowly. 4 Provide any and all. 5 What do you understand any and 6 all to mean? 7 A. Related to the parents? 8 Q. No, no, no. 9 What do you understand any and 10 all to mean? 11 A. Any documents related to the 12 parents. 13 Q. Does that say related to the 14 parents? 15 A. No, but that is how I understand 16 it. 17 Q. Okay. Even though -- let's just 18 see, though, but the question says any 19 potential witness, right? The question 20 doesn't say related to the parents, does it? 21 A. No. 22 Q. All right. It says any potential 23 witness, correct? 24 A. Yes. 25 Q. And you have a statement of a	Page 129 1 S. B. Mell 2 Q. And 14, I am asking for any and 3 all tape recordings, photos, sketches, 4 diagrams, charts or maps made with respect to 5 anything that is relevant to the subject 6 matter of this action. Do you see that? 7 A. Yes. 8 Q. And then you list some stuff 9 here, don't you? See what is listed? 10 A. Yeah. 11 Q. This is your response to my 12 request, right? 13 A. Yes. 14 Q. And these are documents that you 15 have, correct? 16 A. I don't know if I still have -- I 17 mean, no. Hang on. I don't know. 18 Yeah, I don't think I have any of 19 this. 20 Q. Well, what street maps of the 21 town where the parties once lived were you 22 referring to? 23 A. I know somewhere that came up in 24 one of my filings. 25 I don't know if I have this stuff

Page 130 1 S. B. Mell 2 anymore. 3 Q. What charts do you or did you 4 have that explained adolescent brain 5 development? 6 A. That was -- I know I had done a 7 research on adolescent brain development in 8 one of my filings. I know I did all that. 9 But I don't think I have any of 10 that stuff now. 11 Q. And you are not a physician, 12 right? 13 A. No. 14 Q. You have never been employed in a 15 position that involved adolescent brain 16 development, right? 17 A. No. 18 Q. What audio recordings of 19 voicemails from unrelated third parties are 20 you referencing? 21 A. C.C. used to send me audio 22 recordings. 23 I have been trying to get those 24 from the FBI, but unfortunately B.B. 25 objected, and I was overruled; so I know they	Page 132 1 S. B. Mell 2 A. Oh, my God, 22, 27 and 29. 3 Q. Where do they live? 4 A. One is in New York, one is in 5 London, the other one is in North Carolina. 6 Q. Do you still have communication 7 with them? 8 A. Yes. 9 Q. What are their names? 10 A. William, Eliza and Emily. 11 Q. What does or any number of 12 irrelevant media items hosted on public 13 websites -- what is the relevance of an 14 irrelevant media item? 15 A. I think at one point it was 16 anything, you know, whether it was relevant 17 or not. 18 And question was, and I still 19 don't know what may or may not be relevant, 20 so there is random stuff littered throughout 21 this litigation that is relevant. 22 Q. Let's go to number 15. I am done 23 with 14. 24 I asked you to identify each and 25 every document reflecting, referring or
Page 131 1 S. B. Mell 2 exist, but I don't have them. 3 Q. That is because you forfeited -- 4 A. Yeah, apparently I did. 5 But I tried to petition the 6 court, Federal Court, to release all my phone 7 data recordings, texts, everything held. 8 And you know, B.B. objected to 9 that, and subsequently, my motion was denied. 10 Q. Photographs from a family 11 Christmas album posted on Facebook. 12 Whose family? 13 A. Good question. 14 Q. That is why I asked it. 15 A. I don't know. 16 Q. Did you prepare this answer? 17 A. At the time. 18 Q. Okay. Sketches made by Mell's 19 children while visiting a zoo. 20 What sketches are you talking 21 about? 22 A. That came up in one of the 23 filings, and currently, I can't remember what 24 it was in reference to. 25 Q. How old are your children?	Page 133 1 S. B. Mell 2 relating to any and alleged communications 3 whether or written between among the parties 4 of this action with regard to the subject 5 matter. Poorly worded question. Probably 6 missing a word. Probably somebody cut and 7 pasted that from somebody else's request. 8 But you answered it, right? You 9 answered it? 10 A. Yes. 11 Q. And you objected to it, and you 12 raised privilege, that there were privileged 13 communications, right? 14 A. Yes. 15 Q. And that there is attorney-client 16 and work product material? 17 A. Yes. 18 Q. You don't have an attorney, do 19 you? 20 A. Well, I consider myself pro se, 21 so I don't know. You know, I am trying to 22 figure out this definition. 23 I consider myself having the same 24 privilege. 25 Q. Okay. Then you think there are

Page 134 1 S. B. Mell 2 private family communications -- 3 A. Yeah. 4 Q. -- that you believe are protected 5 by reasonable expectations of privacy? 6 A. Yes. 7 Q. Do you believe that to be another 8 privilege? 9 A. Sure. 10 Q. And then you say that there are 11 communications that you are prohibited from 12 having by court order, right? 13 A. Correct. 14 Q. Have you ever prepared a 15 privilege log, to identify the documents you 16 are referring to in bullet point 1 or 2, 17 meaning the privileged communications or the 18 private family communications? 19 A. I don't -- I mean, the only thing 20 I have produced was for this box inspection, 21 there is a privilege log that has been 22 produced and submitted. 23 Q. No, that is not my question. 24 My question is: In response to 25 this answer, you are identifying -- you are	Page 136 1 S. B. Mell 2 of my head. 3 Q. I am going to ask you to do a 4 privilege log. 5 A. Okay. 6 Q. I will follow up it with a letter 7 identifying exactly what you are referring to 8 in your first two bullet points on number 16, 9 all right? 10 A. Yup. 11 Q. And again, here it basically says 12 that you are declining to produce or identify 13 litigation correspondence and protected 14 communications that fall outside the scope of 15 discovery or within the scope of privilege. 16 Do you see that? 17 A. Yes. 18 Q. So I am going to ask that you 19 identify by way of a privilege log everything 20 that you are declining to produce, okay? 21 A. Okay. 22 Q. And you have no experts, right? 23 A. Expert what? 24 Q. Well, the question number 17 asks 25 for expert disclosures.
Page 135 1 S. B. Mell 2 relying on privilege to not apparently not 3 turn over something. 4 So I am going to request that you 5 prepare a privilege log, and identify for me 6 what you are referring to in bullet point -- 7 the first bullet point and the second bullet 8 point, okay? 9 A. Okay. 10 Q. Like I said, I will follow up 11 with a letter, so I don't expect you to 12 remember everything. 13 Number 16, read that to yourself, 14 if you could. 15 A. Okay. 16 Q. In your answer to 16, once again 17 you talk about privileged communication and 18 work product or and litigation 19 correspondence. Do you see that? 20 A. Yes. 21 Q. You are asserting a privilege in 22 regard to notice to produce number 16? 23 A. I would assume they were 24 co-defendant documents that were work 25 product, but I don't have a list, off the top	Page 137 1 S. B. Mell 2 You have not served any expert 3 reports in this case, right? 4 A. No. 5 Q. Now, you mentioned something 6 earlier when I asked you questions that there 7 was a criminal appeal pending. 8 A. Yes. 9 Q. That is your testimony? 10 A. Yes. 11 Q. So you're refusing to answer 12 questions because you are telling me there is 13 a criminal appeal pending, and you can't 14 answer these questions based on the 15 recommendation of your criminal attorney; is 16 that fair? 17 A. Yes. So there was 18 interrogatories served to me, God only knows 19 when, by Nagel Rice. 20 And I don't know, I don't 21 remember. There were a ton of questions and 22 a whole section that he advised me not to 23 answer anything that was directly related to 24 the criminal case. 25 Q. Well, I am talking about my

Page 138 1 S. B. Mell 2 questions today, sir. 3 And you told me you couldn't 4 answer some of my questions because there is 5 a criminal appeal pending, and you were 6 instructed not to answer certain questions, 7 correct? 8 A. Not for today's deposition. 9 I was instructed years ago that 10 anything relating to the criminal case, you 11 can't answer, because of obviously the 12 appeal. 13 I have to try to figure out, you 14 know, what I can and can't answer. 15 I am sure if I had an attorney 16 next to me, there probably would have been a 17 lot of questions he wouldn't have had me 18 answer, even today. 19 I tried to do the best I could, 20 but there were a handful that you asked that 21 I felt fell into that category; so that is my 22 answer. 23 Q. I am going to respect that 24 answer. 25 And we are going to find out if	Page 140 1 S. B. Mell 2 A. Yes. 3 Q. So who is Joseph Thomas? 4 A. He is my chief pilot, or was. 5 Q. What do you mean, chief pilot? 6 A. He flew the aircraft. 7 Q. Your aircraft? 8 A. The King Air and the helicopter. 9 MR. WHALEN: Bob, are you marking 10 this? 11 MR. EVERS: Yes. 12 What are we up to, Exhibit 4? 13 MR. WHALEN: Yeah. 14 MR. EVERS: I am sorry. I get on 15 a roll, and sometimes I forget. 16 Q. So did Mr. Thomas work for you? 17 A. No. He was as a contract pilot 18 for Aero Care and WFW. 19 Q. Is this is a letter from him to 20 you? 21 A. Yes. 22 Q. Okay. 23 Dated May 30, 2019? 24 A. Correct. 25 Q. What did you send him?
Page 139 1 S. B. Mell 2 there really is a criminal appeal pending. 3 And if there is not, I am 4 reserving my right to come back and ask you 5 questions that you would not answer today 6 because of this possible criminal appeal. 7 I am just putting that on the 8 record. 9 A. That is fine. 10 New Jersey Docket, it is there. 11 Michael Roberts is my court 12 appointed attorney. 13 Q. That is fine. 14 A. And do what needs to be done. 15 Q. Yeah, that is okay. 16 Like I said, I understand if 17 there is, in fact, a criminal appeal pending, 18 I will defer to that; but if there is not, we 19 are going to come, and I will ask you the 20 questions I wanted to ask you. 21 A. Okay. 22 MR. EVERS: Almost done here, 23 folks. Famous last words. 24 Q. So I am going to show this, sir. 25 Can you see that?	Page 141 1 S. B. Mell 2 It looks like he is thanking you 3 for something? 4 A. I have no -- 5 Q. Did you send him some models? 6 A. Maybe of the airplane. I don't 7 know. 8 Q. How long was he your pilot? 9 A. Fifteen years, maybe. 10 Q. And how often -- so I guess, 11 explain this to me. 12 I thought you flew. 13 He was the pilot? 14 I am confused. 15 A. We had multiple pilots. I think 16 there were four in total. They were contract 17 pilots. 18 Q. Did you ever actually fly? 19 A. Yeah, yeah. 20 Q. So you have your pilot's license? 21 A. Yes, sir. 22 Q. Do you have a license to fly a 23 helicopter? 24 A. Yes. 25 Q. But you had these other pilots

Page 142 1 S. B. Mell 2 who also flew for you? 3 A. Well, they are businesses, so you 4 know, there were a lot of flights that took 5 place that had nothing to do with me or my 6 family. 7 Q. I just want to go down to the 8 bottom. 9 It talks about -- it says as far 10 as your situation goes. 11 What situation is he referring 12 to? 13 A. I believe, the issue with the 14 Cannons. 15 Q. How did he learn of that 16 situation? 17 A. I have no idea. 18 Q. Did you tell him? 19 A. I don't think I did. 20 Q. Did you ever have any 21 conversations with him about the situation? 22 A. No, I don't believe I did. 23 Q. And then he says, I believe you 24 had no choice but to challenge the Cannons, 25 right?	Page 144 1 S. B. Mell 2 Q. And you had no conversations with 3 him up to May -- it is your testimony you had 4 no conversations with him up to May 30, 2019 5 as to the situation with B.B., C.C., D.D. or 6 E.E.? 7 A. Yeah. I am pretty sure I was not 8 discussing this matter with anyone. 9 Q. Did you ever speak to him about 10 this letter? 11 A. No. 12 Q. When was the last time you spoke 13 to him? 14 A. I think I spoke to him maybe in 15 December of '24, just to say that I was out, 16 and hope he is doing well, kind of thing. 17 Q. Why did he think that you were 18 angry with him? 19 A. I have no idea. 20 I mean, during that time, it was 21 total chaos. 22 Q. Did he ever give flight lessons 23 to B.B.? 24 A. No. 25 MR. EVERS: I am done.
Page 143 1 S. B. Mell 2 A. Yes. 3 Q. And then he says, had you paid 4 that ten million, it most likely would not 5 have stopped there, right? 6 A. Yup. 7 Q. So where did he learn about ten 8 million? 9 A. I have no idea. 10 Q. Did you tell him? 11 A. Nope. 12 Q. Did you discuss nondisclosure 13 agreements with him? 14 A. I don't think so. 15 Q. So he is just writing you this 16 letter thanking you for the model airplanes 17 you gave him, and talking about ten million 18 dollars and nondisclosure agreements? 19 A. Where is the nondisclosure 20 agreement? Where are you reading? 21 Q. Nowadays nondisclosure agreements 22 appear to be worthless. 23 Do you see that? 24 A. Yeah. I have no idea what he is 25 referencing there.	Page 145 1 S. B. Mell 2 Thanks for your time. 3 Subject to this issue with the 4 criminal appeal, because I am not going 5 to bother asking questions, if you can't 6 answer them. 7 THE WITNESS: Okay. I 8 understand. 9 MR. PEARLSON: I have some 10 questions, but I wanted to see if any of 11 my colleagues of the other Defendants 12 had questions that they wanted to ask? 13 Harry, Paul, Patrick, anybody? 14 MR. McENROE: I don't have any 15 questions. 16 MR. DALY: Pat is going to come 17 in for me, since I have my other dep. 18 Pat Hagerty, because I have my 19 other dep. 20 MR. WHALEN: I probably have some 21 questions. Yeah, I do, but -- 22 MR. PEARLSON: You want me to go? 23 MR. WHALEN: No, I don't care. I 24 will wait. 25 (Continued)

Page 146 1 S. B. Mell 2 EXAMINATION BY 3 MR. PEARLSON: 4 Q. Good afternoon, Mr. Mell. My 5 name is Ross Pearlson. I am with CSG Law. 6 We represent the KRM Family Trust in this 7 matter. 8 You talked about your 9 relationship with the Cannons, and you 10 described how you were friends with the 11 Cannons over a particular period of time. 12 Let me ask you, would you say 13 that you were friends with the Cannons before 14 they discovered your relationship with their 15 older daughter C.C.? 16 A. No. Maybe I had seen them in 17 passing, at best. 18 Q. And just describe for us, what 19 was the nature of your contact with the 20 Cannons before they discovered that you had 21 been engaged in a sexual relationship with 22 C.C.? 23 A. Like I said, it was in passing. 24 My middle daughter went to 25 school, Morristown-Beard, with C.C., so if I	Page 148 1 S. B. Mell 2 them. 3 Q. Were you texting or having calls 4 with E.E. prior to her discovery of your 5 relationship with C.C.? 6 A. No. 7 Q. So other than the Springsteen 8 tickets, in terms of the benefits or perks 9 you provided to the Cannon family, had you 10 given any to anybody else besides C.C. prior 11 to them discovering C.C. relationship with 12 you? 13 A. No. 14 Q. And you went through these 15 benefits the various benefits with counsel. 16 In terms of the benefits -- and 17 we can go through them all -- there was cash, 18 there was, you know, credit card, there was 19 flights, there was, you know, other things as 20 well -- 21 At any point in time, and when 22 you started giving them to the Cannons, it 23 was after they discovered C.C.'s relationship 24 with you, correct? 25 A. Correct.
Page 147 1 S. B. Mell 2 had seen them maybe, you know, at a game, it 3 might have been a hello, or something like 4 that. 5 But there was no relationship. 6 We didn't text, talk or, you know, socialize 7 together. 8 Q. And had you ever been in their 9 house prior to discovering -- before they 10 discovered your relationship with C.C.? 11 A. I might have been there to like 12 pick up my daughter or, you know, I may have 13 been there with C.C. alone, but never with 14 them. 15 Q. Have you ever been at concerts 16 with them? 17 A. Prior to the C.C. relationship? 18 Q. Yes? 19 A. They asked for tickets to Bruce 20 Stringsteen at the Rock, and that was pre -- 21 pre, you know, them knowing. 22 And that was, you know, C.C. 23 asked for two tickets, one for her and one 24 for her mom. 25 I didn't go to the concert with	Page 149 1 S. B. Mell 2 Q. At any point in time, did they 3 refuse to accept what you offered to them, in 4 terms of concert tickets, plane rides, 5 anything, cash, investment funds? 6 A. No, never. 7 Q. Did they ever offer to pay you 8 back for any of it? 9 A. No. 10 Q. Did they ever pay you back for 11 any of it? 12 A. No. 13 Q. You were asked some questions 14 about the flights that you provided to the 15 Cannon family. 16 Just so we have an idea, these 17 included private plane rides and helicopter 18 rides, correct? 19 A. Correct. 20 Q. How much did like a private plane 21 ride to Nantucket cost? 22 A. In the King Air, it cost 10 to 23 12,000 dollars. 24 In the jet, it would be around 25 20.

Page 150 1 S. B. Mell 2 Q. How about, you also provided them 3 with plane rides to Colby College. 4 How much would a private plane 5 ride to Colby College cost? 6 A. The King Air would run somewhere 7 around 15,000 to 18, depending on fuel and 8 other expenses, and the jet was probably 25 9 to 30. 10 Q. And how about like for a ride in 11 your private helicopter? How much would that 12 cost? 13 A. That ran about 5,000 an hour. 14 Q. And do you know approximately how 15 many flights they took with you on the plane 16 on the private plane? 17 (Whereupon, Mr. Patrick Hagerty 18 has joined the examination, and Mr. Paul 19 Daly has exited from the examination.) 20 A. It was a lot. I mean, well over 21 ten. Could have been even 20. I don't know, 22 exactly. 23 Q. How many times did they fly on 24 your helicopter? 25 A. E.E., Emily, C.C. and Grace flew	Page 152 1 S. B. Mell 2 relationship with C.C.? 3 A. I believe we narrowed it down to 4 roughly February of 2016, plus or minus. 5 Q. You indicated in your testimony 6 that sometimes they asked you to provide some 7 of these gifts and money, correct? 8 A. Correct. 9 Q. And in addition to that, you also 10 had conversations with them where they 11 indicated they were in financial straits, or 12 a tight financial situation, correct? 13 A. Correct. 14 Q. Now, you said, you know, you gave 15 them these gifts and money in part because 16 they were friends, correct? 17 A. Correct. 18 Q. And by being a family friend of 19 theirs, did you ever feel that you had to 20 give them these gifts and money to stay in 21 the family, or within the family circle? 22 A. No. Obviously, I was having a 23 relationship with C.C. and, you know, they 24 were -- I was told they were in financial 25 straits, and it appeared that that was the
Page 151 1 S. B. Mell 2 once. C.C. flew multiple times. 3 Q. And again -- 4 A. I take that back. 5 B.B. also flew. 6 There a handful of times B.B. 7 would fly from the helicopter as well. 8 Q. Did this pay for any of those 9 flights? 10 A. No. 11 Q. Did all these flights occur after 12 they had discovered that you were engaged in 13 a sexual relationship with C.C.? 14 A. Yes. And, you know, I was asked 15 a bunch of questions today about this, but in 16 the beginning, initially, it started with 17 them asking for my help to get B.B. back from 18 Martha's Vineyard when she was hit by a boat. 19 That was in July or August of 2015. 20 And that was -- you know, she was 21 in the hospital. The parents were frantic, 22 so I offered them to go up to bring her back. 23 Q. Mr. Mell, just to be clear for 24 the record, when did the parents actually 25 know that you were engaged in a sexual	Page 153 1 S. B. Mell 2 case. 3 I tried to help, when I could. 4 Q. By giving them these gifts, did 5 you feel that you ingratiated yourself to the 6 Cannons? 7 A. No. 8 Q. Did you feel that by giving these 9 gifts and money, that you were in any way 10 enabling to have access to the family? 11 A. No. 12 Q. Now, you described a relationship 13 that developed with E.E. in particular, prior 14 to her -- prior to the family discovering 15 that you had a relationship with C.C. 16 did you have any kind of 17 contact -- why don't you describe for us what 18 the nature of the contact you had with E.E. 19 prior? 20 A. Like I said, it was very limited. 21 It was in passing. It was hello, at the 22 school at Morristown-Beard, or something like 23 that, but that was it. I didn't really know 24 the family. 25 Q. At some point, she discovered you

Page 154 1 S. B. Mell 2 were having a relationship with C.C., and 3 that led to a conversation at the Hunt Club, 4 correct? 5 A. Correct. 6 Q. Can you describe for us what 7 actually happened in that conversation at the 8 Hunt Club? 9 A. Yeah. You know, C.C. had called 10 me sometime that day, whatever that day is in 11 February, I believe, stating that her 12 grandmother had sent a video to E.E. She 13 don't know who it was. 14 The grandmother didn't know who 15 it was at the time. It was an elder man in 16 the kitchen with C.C., just in the kitchen. 17 C.C. had told, I guess E.E., that 18 it was me, and we were having a relationship. 19 And then I had asked to meet with 20 E.E., and we met that day at the Essex Hunt 21 Club. 22 Q. And describe for us what happened 23 in the ensuing conversation at the Hunt Club? 24 A. I sat down with E.E. and, you 25 know, I said I am really sorry you found out	Page 156 1 S. B. Mell 2 opposite. She liked when I was around. 3 Q. And following that conversation 4 with her, at what point did you start 5 developing a sort of phone and text 6 relationship with E.E.? 7 A. Fairly quickly after that. 8 Q. And how often would you speak to 9 her by phone, or text with her? 10 A. In the beginning, it was, you 11 know, kind of infrequent, I would say maybe a 12 couple of times a month. 13 But as it grew, I want to say by 14 March, we were almost talking almost every 15 day. 16 Q. And in addition to you see her in 17 person as well? 18 A. Yes. I spent a lot of time at 19 their house, and on flights and other things. 20 Q. And that was a change that 21 occurred after she discovered your 22 relationship with C.C.? 23 A. Yes. 24 Q. The gifts that you described that 25 you gave to the family as opposed to C.C.,
Page 155 1 S. B. Mell 2 this way. 3 And she immediately was 4 welcoming, in the sense that, you know, she 5 was like, I want C.C. to be happy, and she is 6 in love with you. And she was embracing, 7 which was odd at the time, because I 8 obviously thought it was going to be a very 9 different conversation, but it wasn't. And 10 we spoke for about a half in the Hunt Club. 11 Q. Did she ever tell you to stay 12 away from C.C.? 13 A. No. It is hard to believe, but 14 she was embracing me to be with her. 15 Q. Did she threaten legal action? 16 A. No. 17 Q. Did she threaten to tell the 18 authorities? 19 A. No. 20 Q. Did she tell to you stay away 21 from her family? 22 A. No. 23 Q. Did she ever tell you to stay 24 away from her family? 25 A. No. In fact, it was the	Page 157 1 S. B. Mell 2 those all took place after she knew about 3 your relationship with C.C.? 4 A. Yes. 5 Q. And did she do anything to 6 discourage your contact with the family? 7 A. No. In fact, like I said, she 8 was very endearing, and we were building a 9 relationship. 10 And she had started to make 11 excuses for C.C., because she wasn't around a 12 lot, and the family, B.B. and Grace, would 13 also ask where C.C. is, what is she doing? 14 So E.E. was actively facilitating 15 C.C.'s and our relationship. 16 Q. And in terms -- did her or her 17 husband ever do anything to restrict your 18 contact with the younger daughter with B.B.? 19 A. No. And it was, you know, in 20 fact, B.B. -- B.B. and Grace found out about 21 the relationship sometime in May of 2016 at 22 C.C.'s prom. 23 I guess Grace, which I didn't 24 know during B.B.'s testimony, Grace had found 25 the texts and pictures on C.C.'s phone that

Page 158 1 S. B. Mell 2 day, and they absolutely wanted nothing to do 3 with me; the children, that is. 4 Q. And that changed at some point, 5 correct? 6 A. Yeah, that changed with B.B. 7 It was spring, late spring of 8 '17, when this whole flying thing came up. 9 And that is when E.E. was -- you 10 know, we were in the kitchen. She is like, 11 this would be so nice. I wanted to fly when 12 I was young; I couldn't. 13 B.B. would love it, blah, blah, 14 blah. 15 And I said I would be happy to 16 introduce her to the people at Somerset, 17 because I had been flying out of there for 30 18 years. 19 Q. I believe you indicated on your 20 direct testimony, you were the one who 21 arranged for her flying lessons out of 22 Somerset, correct? 23 A. Yes, I did. I knew the owners of 24 the airport, so it was an easy thing for me 25 to do.	Page 160 1 S. B. Mell 2 need at least 20, 25 hours, is the 3 regulation, so she at least flew that much, 4 to get to where she can solo by herself. 5 Q. And did you pay for all those 6 lessons? 7 A. Yes. 8 Q. Did the Cannons pay for any of 9 the lessons? 10 A. Not prior to December of '17. 11 Q. Just to remind us, what happened 12 in December of '17? 13 A. That is when pictures showed up 14 at Gill St. Bernard's School. 15 Q. Did they offer to reimburse you 16 or pay you for what you paid for the flying 17 lessons? 18 A. No. 19 Q. And as a result of the flying 20 lessons, did you also take some solo flights 21 with B.B. as a result of her taking flying 22 lessons? 23 A. Yeah. B.B. actually flew with 24 me, you know, I don't want to say a fair 25 amount, but whenever we could, you know.
Page 159 1 S. B. Mell 2 I remember, you know, texting 3 E.E. saying, I can go over. 4 And some date, I don't know when 5 it was, I went over and I picked up B.B. and 6 drove her to Somerset Airport and got her, 7 you know, associated with the airport and 8 pilot. 9 Q. Was it understood from the start 10 that you were going to pay for those lessons? 11 A. I don't think off the start. It 12 was preordained, I think. 13 It came back how expensive it 14 was, and couldn't really afford it, and she 15 would love it, and then I offered to pay for 16 it. 17 Q. How expensive were the flying 18 lessons? 19 A. I would have to imagine maybe 20 somewhere around 10,000. 21 I know I was asked earlier, how 22 many hours. I don't know. 23 She never got her license, but 24 she was able to solo. 25 In order to solo, you kind of	Page 161 1 S. B. Mell 2 And when Trump was coming. If I 3 had to move planes to Princeton to get 4 outside of the aided area, whether it was the 5 plane or helicopter, things like that, B.B. 6 flew with me. 7 I know she went out -- I would 8 get hanger space out in Pennsylvania. So 9 whenever the flight mission, if you will, was 10 doable. 11 I would text E.E., you know, B.B. 12 wanted to go flying. I am going X, Y, Z, and 13 she may or may not go. 14 Q. And when did she start the flying 15 lessons, just so we know, for a time frame? 16 A. I want to say maybe June of 2017, 17 plus or minus. 18 Q. And so -- and then I believe you 19 indicated in July, she actually slept over 20 your house? 21 A. She did. She came over. 22 And E.E. knew this, and she came 23 over to the house. She had a flight exam the 24 next day, and she was at my house. 25 I don't know. I believe E.E. may

Page 162 1 S. B. Mell 2 have dropped her off around 5 p.m., and 3 around midnight, B.B. had texted her mom 4 saying hi, I am ready to come back. 5 And I guess E.E.'s phone was off, 6 so she couldn't get ahold of her. 7 I said, stay the night. Sleep in 8 Eliza's room, which she did. 9 Next day got up and drove her to 10 Somerset Airport, and that is when E.E. was 11 like, where were you? 12 And she said, I was at Brad's 13 house. 14 Q. So as far as you know, she knew 15 that -- E.E. knew that she had slept over at 16 your house? 17 A. Yeah. I mean, I don't think she 18 knew she was going to sleep over. 19 She knew she was there and 20 studying for her oral exam and flight exam 21 she had the next day. 22 But obviously, when B.B. wasn't 23 at the house the next morning, you know, then 24 she texted B.B., where are you, B.B. said, I 25 am with Brad. He is taking me to the	Page 164 1 S. B. Mell 2 A. No. I would tell you, they 3 encouraged it. I got a lot of, I guess B.B. 4 was getting bullied in school. E.E. would 5 say how wonderful you are. It would be nice 6 if someone like that was in B.B.'s life. 7 It was very bizarre. 8 Q. And can you describe in 9 particular how they encouraged, you know, 10 your relationship with B.B.? 11 A. Well, E.E., you know, it 12 started -- which was odd. I guess B.B. was 13 at a party sometime in May, and the boys were 14 bullying her or something, and I had no 15 contact. 16 I didn't -- I mean, I knew who 17 she was, but that was about it. 18 And B.B. tried to get ahold of 19 her mom, and I guess she turns her phone off 20 at night, and couldn't get through to her. 21 She texted her sister, C.C. who 22 was at Colby, and Colby [sic] said call Brad. 23 And C.C. told me that B.B. was to 24 going reach out, and gave me B.B.'s number. 25 And you know, I reached out,
Page 163 1 S. B. Mell 2 airport. 3 Q. So following that, did E.E. or 4 the father, either one of them, say to you, I 5 don't want you being around B.B., you can't 6 -- this is getting inappropriate, or anything 7 like that? 8 A. No. E.E. actually called me that 9 day, the day after and said, you know, I see 10 B.B. was at the house. You would have liked 11 to know that prior. 12 I said just that I didn't think 13 she was going to be staying over, but she 14 stayed in Eliza's room, and she would say 15 okay. 16 And literally, I think we went to 17 a benign conversation after that, so it was a 18 nonevent. 19 Q. And you said at that point, a 20 sexual relationship had not yet begun between 21 you and B.B.? 22 A. Correct. 23 Q. And following that sleepover, did 24 the Cannons do anything to restrict your 25 access to B.B.?	Page 165 1 S. B. Mell 2 saying, do you need a ride? 3 She said no, I am going to stay 4 here. 5 I said okay. And that was it. 6 From that point on, I mean, from 7 what I understand after the fact, B.B. and 8 Grace were extraordinarily unhappy with me 9 because of my relationship with C.C. 10 Q. So you developed this 11 relationship with B.B.; it turns into a 12 sexual relationship. 13 I believe you said that the 14 parents knew for certain, or probably knew 15 for certain by October or November of 2017 16 that you were engaged in a sexual 17 relationship? 18 A. So as with Mr. Evers, I just need 19 to be careful here. That is all I am trying 20 to do. 21 But there are text messages -- 22 MR. EVERS: Hold on one second. 23 I am going to object to the question 24 because, you know, he wouldn't answer my 25 questions, but he seems to be okay --

Page 166 1 S. B. Mell 2 MR. PEARLSON: Let me rephrase 3 the question, and try to avoid the 4 situation. 5 Q. Did there come a time where -- in 6 October or November, where you learned that 7 someone had hacked into B.B's phone and found 8 pictures and texts relating to your 9 relationship with B.B.? 10 A. Yes. 11 Q. Okay. And that was in October or 12 November, correct? 13 A. Somewhere in that time frame. 14 Q. Did the Cannons threaten to go to 15 law enforcement at that time? 16 A. Not to me. I never heard 17 anything. 18 Q. Did they threaten to cut off your 19 access to the family? 20 A. Not to me, no. 21 Q. Did you continue to go to -- 22 isn't it true that you went to a concert? I 23 think you said one of the concerts that you 24 went to was a concert on December 3, 2017, 25 correct?	Page 168 1 S. B. Mell 2 someone at the -- someone giving photos to 3 the school, correct? 4 A. Yeah. I believe it was Kogul 5 Messa or Sara Smith, I am not sure which one. 6 Q. Now, I represent the KRM Trust, 7 which is trust you set up. 8 A. Correct. 9 Q. At any time, did you transfer any 10 money from your personal name, or any of your 11 personal assets to the trust, to hide them 12 from Plaintiff? 13 A. No. 14 Q. And I would like to just show you 15 a couple of documents. 16 This one, I forget what exhibit 17 we left off at. We will mark this as Exhibit 18 5. 19 Mr. Mell, do you recall at what 20 point you ceased to be trustee of the KRM 21 Trust? 22 A. Either late '19, or maybe it was 23 '20. 2020, maybe. 24 I don't know the exact date. 25 Q. I am going to show you a new
Page 167 1 S. B. Mell 2 A. Yes. Went to a Garth Brooks 3 concert December 3rd. 4 Q. And that was with the whole 5 family? 6 A. Well, I didn't go with them. 7 They were in a separate box, 8 where they -- they were there, and they had 9 invited friends. 10 I think there were about 20 seats 11 in that box, and I was in a separate box. 12 Q. But you provided them with their 13 tickets? 14 A. Correct. 15 Q. And they didn't refuse the 16 tickets? 17 A. No. In fact, they invited 18 friends and, you know, filled the seats, I 19 guess. 20 Q. And it wasn't until the 21 December 4th, when law enforcement became 22 involved with respect to your relationship 23 with B.B., correct? 24 A. Correct. 25 Q. And that was the result of	Page 169 1 S. B. Mell 2 document, and it is going to be Exhibit 5. 3 It is a Bank of America statement, and you 4 see it is from the KRM Trust. Do you see 5 that? 6 A. Yes. 7 Q. Did you maintain the bank 8 accounts for trust at Bank of America? 9 A. Yes. 10 Q. I just -- you see there where it 11 says Steven Bradley Mell, TRTE? 12 A. Yes, I was trustee. 13 This was before I was 14 incarcerated. 15 I was definitely trustee at that 16 time. 17 Q. I am going to show you here, 18 there is a deposit listed on this, 19 \$501,010.46. Do you see that? 20 A. Yes. 21 Q. Do you have any idea what that 22 deposit was for, in the period referenced in 23 the bank statement? 24 And if it helps, if you turn -- 25 we will go to 2084. It looks like it was

Page 170 1 S. B. Mell 2 wired into the account on March 8th of 2019. 3 Do you have any idea what that 4 \$501,000 relates to? 5 A. I believe it relates to -- it 6 came from Aero Care, so that would have been, 7 I don't remember when, but the King Air got 8 new engines for roughly a million dollars, of 9 which the trust had lent Aero Care the money; 10 so my guess is on the plane sale. 11 And I think that occurred around 12 this time. I would need to see documents 13 that whatever was owed back to the trust was 14 paid back. 15 Q. I am going to show you now -- we 16 are going to mark for identification as 17 Exhibit 6. This is a letter from Mr. Whalen. 18 We can blow it up a little bit. 19 Who is the counsel for your 20 ex-wife? 21 A. Yes. 22 Q. And do you see here, there is a 23 cover letter dated May 20, 2022? 24 A. Yes. 25 Q. And can you tell us what this	Page 172 1 S. B. Mell 2 A. Okay. 3 Q. And can you describe for us the 4 manner in which the trust loaned funds to 5 Aero Care? 6 A. Well, the trust, it was a 7 favorable interest rate, both for the trust 8 and Aero Care, to be able to loan money 9 against -- you know, it was like a regular 10 bank loan. 11 Q. But in terms of like the 12 logistics, in other words, how did the trust 13 generate the proceeds that were loaned to 14 Aero Care? 15 A. I believe on this particular one 16 it was refinancing on the house, because the 17 number obviously was big. It was around a 18 million dollars, plus or minus. 19 So I believe there was 20 refinancing with the Bank of New York. That 21 is who I did my banking with. 22 Q. We are going to go to now 1183, 23 which is the schedule attached to the letter. 24 First of all, did you understand 25 that Aero Care was unable to repay the
Page 171 1 S. B. Mell 2 relates to? 3 If you need some time, we will 4 scroll through it a little bit. 5 A. Yeah, just give me a second, 6 please. Okay. 7 Q. And so these are documents that 8 were produced to you relating to the 9 distribution of sale proceeds from an 10 airplane? 11 A. Correct. 12 Q. And who sold that airplane? 13 A. Aero Care. 14 Q. I am going to ask that we are 15 going to scroll to KM 001178. And this 16 appears to be a letter to you from your 17 ex-wife as manager of Aero Care. Do you see 18 that? 19 A. Okay, yeah. 20 Q. And I am not going to go through 21 the whole thing, but let's scroll to the 22 first paragraph. 23 The letter appears to relate to 24 the repayment of certain loans that were made 25 to Aero Care.	Page 173 1 S. B. Mell 2 entire balance of the loan, the monies 3 loaned? 4 A. No. I don't -- I don't think 5 there is an outstanding loan. 6 Q. I am to going tell you -- does 7 this refresh your recollection as to the fact 8 that there was the balances that were due on 9 the various loans to Aero Care? 10 And in particular, I am directing 11 your attention to the entry for the Kimberly 12 Ruggles Mell 2012 Family Trust. Do you see 13 that? 14 A. Right. Okay. 15 Q. And does the footnote, the two 16 asterisks, refresh your recollection that the 17 loan was made based on a refinancing of the 18 house, with the proportion 70 percent the KRM 19 Trust and 30 percent the Steven Bradley Mell 20 2012 Family Trust? 21 A. Yes, that makes sense. 22 Q. If you can turn to the next page, 23 this is another schedule. 24 And again, this was prepared by 25 your ex-wife, as manager of Aero Care.

Page 174 1 S. B. Mell 2 And do you see that it has a 3 chart that reflects outstanding balances, 4 percentage of total unsecured debt and the 5 amount of repayment? Do you see that? 6 A. Yes. 7 Q. Does that refresh your 8 recollection that, in fact, if you look at 9 item 3, which is the Kimberly Ruggles Mell 10 2012 Family Trust, that the trust did not get 11 paid back all the money it had loaned to Aero 12 Care? 13 A. That is what this schedule says, 14 yup. 15 Q. Do you have any recollection of 16 that yourself? 17 A. I don't. 18 MR. PEARLSON: Let me just have 19 one minute. I might be done. 20 Q. Mr. Mell, I would like to show 21 you what we are marking as Exhibit 7, which 22 you indicated BNY Melon, that was the bank 23 account that you used for the refinancing? 24 A. Yes. 25 Q. And looking at --	Page 176 1 S. B. Mell 2 MR. PEARLSON: Thank you, 3 Mr. Mell. 4 I have nothing further at this 5 time. 6 THE WITNESS: I just need to take 7 a quick break. This coke is running 8 through me. 9 Can we take a couple of minutes? 10 MR. WHALEN: Sounds about okay. 11 (Whereupon, a short recess was 12 taken.) 13 THE WITNESS: I just want to 14 clarify that Mr. Evers objected that the 15 question that Mr. Pearlson was asking 16 was about a time frame. 17 And Mr. Evers objected that I 18 wouldn't answer questions. 19 I wanted to make sure the record 20 is clear that I actually answered that 21 question, the same question you had 22 asked me about time frame of when the 23 parents knew. 24 I had already answered that to 25 him in detail about those text messages.
Page 175 1 S. B. Mell 2 MR. PEARLSON: We are going to 3 scroll down a little bit. You can go 4 down further. Stop it there. 5 Q. Can you tell us what this cover 6 page appears to be, from the Bank of New York 7 to you? 8 A. It looks like a loan agreement. 9 Q. Do you know whether this relates 10 to a refinancing of your house? 11 A. I believe it does, yes. 12 Q. And was this the -- was this a 13 refinancing that you believe that was used to 14 finance Aero Care? 15 A. Yeah, at this time I do, yes. 16 Q. I am going to turn to what has 17 been Bates stamped KRM Trust 2672, which is 18 Attachment A to this document. I am going to 19 direct your attention to item number 3 -- 20 A. Okay. 21 Q. -- and item 4, And ask you if 22 this refreshes your recollection as to monies 23 that were loaned to Aero Care through the 24 refinancing of house at that time? 25 A. Yes, it is.	Page 177 1 S. B. Mell 2 I wanted that to be clear. 3 I wasn't being evasive, and there 4 wasn't any answer for one person and not 5 the other. I just wanted that on this 6 record. Thank you. 7 EXAMINATION BY 8 MR. WHALEN: 9 Q. Okay. I have a few follow-up 10 questions for you, Mr. Mell. 11 Again, for the record, this is 12 Pat Whalen. I represent Defendant, Kim Mell 13 and the SBM Family Trust. 14 Similar question to what you were 15 just asked my Mr. Pearlson -- did you ever 16 transfer personal assets into the SBM Family 17 Trust to hide or conceal them from the 18 Plaintiff in this case? 19 A. No. 20 Q. One of the counts in the 21 complaint brought against your ex-wife Kim is 22 that the divorce was somehow a sham, and 23 somehow was a conspiracy between you and her. 24 Is there any truth to that? 25 A. No.

Page 178 1 S. B. Mell 2 Q. In fact, the divorce was quite 3 contentious, was it not? 4 A. It was. 5 Q. Hard fought, right to the end, 6 even when the -- right to the day -- the 7 moment the MSA was signed in the hallway 8 outside the mediator; is that correct? 9 A. That is correct. 10 Q. You were questioned about the 11 proceeds that -- I forget the exhibit. I 12 think the exhibit was -- it is the letter 13 from Kim to you, Exhibit 6, exhibit 6, where 14 the plane proceeds were dealt with in March 15 of 2019. Do you remember that? 16 A. Yes. 17 Q. And you were asked about the 18 proceeds that went back to the KRM Trust. 19 I just wanted you to clarify, can 20 you tell me which plane sale that was 21 connected to? 22 A. I don't know. I mean, we had 23 King Air and Hawker and Aero Care, disposed 24 of those, so I am not sure. 25 I mean, I know that the loan that	Page 180 1 S. B. Mell 2 had showed me the video. 3 Q. And who was present? 4 A. In the kitchen, it was me E.E. 5 and C.C. 6 Q. And approximately when was that, 7 in the context of the grandma reporting that 8 she spotted you in their house? 9 A. Pretty soon after. 10 Q. And what did you see? 11 A. I saw C.C. and I walking around 12 the kitchen. The angle was low, kind of 13 looking up. And you could just kind of see 14 us going in the refrigerator, walking and 15 talking in the kitchen. 16 Q. Was there more than one view? 17 A. Well, there was another camera. 18 There was also a camera from the 19 living room, and you could see C.C. and I 20 going upstairs to one of the guest rooms. 21 Q. And that would be a bedroom 22 upstairs? 23 A. Yeah, there were two bedrooms 24 upstairs. 25 Q. And E.E. showed this to you?
Page 179 1 S. B. Mell 2 Mr. Pearlson showed was for the engines on 3 the King Air. 4 Q. But otherwise, you don't know 5 exactly? 6 A. I would need to see the 7 certificates of sale. 8 Q. The Hawker was purchased much 9 more recently than the King Air; is that 10 right? 11 A. Right. That was purchased in, I 12 think early 2017, I believe. 13 Q. Almost a year earlier, before you 14 had to sell it? 15 A. Correct. 16 Q. You were questioned about the 17 video, the video that the grandmother 18 happened upon. Do you remember that? 19 A. Yes. 20 Q. Did you ever see that video? 21 A. Yes, I did. 22 Q. Explain, how did that come about? 23 A. I went over to the Cannons. And 24 again, I was in their kitchen. I spent a lot 25 of time there with E.E. and C.C., and E.E.	Page 181 1 S. B. Mell 2 A. Yes. 3 Q. And on what? What device did she 4 show it to you? 5 A. Her phone. 6 Q. So she had the video on her 7 phone? 8 A. Yes. 9 And C.C. also took a copy of it, 10 and had it on her phone. 11 Q. Do you know if that was turned 12 over to the police? 13 A. I don't believe it was. 14 Q. Have you ever seen it again since 15 that date? 16 A. I have not. 17 Q. A couple of weeks back, Lisa 18 Brown was deposed. Do you recall that? 19 A. Yes. 20 Q. I want to go over a couple of 21 things that came up during her deposition. 22 First she testified that I think 23 on June 25, 2018, you locked everybody out of 24 W. H. Mell & Associates; is that correct? 25 A. Yes. I don't think the date was

Page 182 1 S. B. Mell 2 accurate, but yes, I remember that testimony. 3 Q. When do you think it was? 4 A. I was sometime in June, but I 5 believe I was still incarcerated. 6 I am pretty sure I was still 7 incarcerated at Essex County when that 8 occurred. 9 Q. How long were you incarcerated at 10 Essex County? 11 A. Six weeks, plus or minus. 12 Q. So starting sometime first week 13 of May, into June? 14 A. May 8th. 15 I believe I was released on the 16 19th of June. 17 Q. And you think you locked 18 everybody out from jail? 19 A. Yeah, I did. 20 Q. How did you accomplish that? How 21 did you do that? 22 A. I called the Summit police 23 department and had them go over and have a 24 police officer stand outside the office and 25 not let anybody in.	Page 184 1 S. B. Mell 2 roughly the first week or two. 3 Q. And then she described a phone 4 conversation with you during your 5 incarceration; is that accurate? 6 A. Yeah. I had multiple 7 conversations with her while I was 8 incarcerated. 9 Q. Yeah, that was going to be my 10 next question. 11 How frequently did you talk to 12 Elizabeth Brown while you were incarcerated 13 for those six weeks? 14 MR. MAGRANE: I am going to 15 object. 16 Based on his testimony, the last 17 time I believe this question and a 18 similar question was asked, and he 19 answered it. 20 Q. You can answer. 21 A. How many times did I talk to Lisa 22 while I was incarcerated? 23 Q. Yes? 24 A. Numerous times. I don't know how 25 many.
Page 183 1 S. B. Mell 2 Q. Why did you do that? 3 A. I wasn't getting any answers from 4 anybody. 5 Q. Well, when you locked them out, 6 did they reach out to you? 7 A. Yes. They reached out to the 8 attorney who -- scrambling for his name -- 9 Mark Noll, maybe. 10 Q. From Bressler Avery? 11 A. Yes, yes. 12 Q. Who was they? 13 A. It was Lisa and Ryan had reached 14 out to Mark. 15 Q. Okay. She testified to having 16 two interactions with you when you were in 17 jail. Do you recall that testimony? 18 A. It was only once. But I think 19 she said once. I can't remember. 20 Q. Let me clarify that. 21 There was one live visit at the 22 jail with her; is that correct? 23 A. Yes. 24 Q. And that was early on? 25 A. Yeah. I think that was in	Page 185 1 S. B. Mell 2 Q. Was it almost daily? 3 A. Yeah. In the beginning, I think 4 it was almost daily. 5 Q. Okay. She described a final 6 conversation, your last conversation was 7 unpleasant and almost sounded like an 8 argument. Do you recall that? 9 A. I don't. 10 Q. Is it you don't recall her 11 testimony, or you don't recall that 12 happening? 13 A. I don't ever recall it being 14 argumentative or adversarial. 15 Q. At some point did you remove the 16 lockout, and allow them to return to work at 17 W. H. Mell? 18 A. Yes. 19 Q. When? 20 A. Either the next day or the day 21 after. 22 Q. Okay. So your testimony differs 23 from Ms. Brown in that the lockout was far 24 earlier in June than she had, correct? 25 MR. MAGRANE: Objection to form.

Page 186 1 S. B. Mell 2 A. Yes. I believe I was still 3 incarcerated. 4 I believe her testimony was that 5 I was out. 6 But I couldn't give you dates. 7 Q. Okay. Were you aware of what she 8 described as her heads up call to FINRA about 9 your criminal situation? 10 A. So yes. So there were a lot of 11 discussions very early on of what may or may 12 not happen with me or the W. H. Mell, or just 13 the ongoing business. 14 Q. Okay. Did you know in advance 15 that FINRA was going to get called and 16 alerted about your situation? 17 A. Yes. 18 Q. Did you approve of that? 19 A. Yes. 20 Q. After you were released from 21 jail, did you have in-person interaction with 22 Lisa Brown? 23 A. No. 24 Q. But you saw she issued an early 25 resignation letter, I think, on or about	Page 188 1 S. B. Mell 2 And Mell had to run, and it 3 needed to be -- bills paid, focus filings 4 and, you know, monthly procedural things that 5 had to be done. 6 And you know, she was the one 7 doing them. 8 Q. Mr. Mell, would that include the 9 wind down process, and the closing out of the 10 company? 11 A. Yes. I understand her testimony. 12 I don't -- didn't understand it. 13 But you know, Mell ran until 14 December of 2018. It might have even gone to 15 early '19; I don't know. 16 Every month, you know, we were 17 winding things down. We were selling 18 positions. We, you know, we were filing 19 focus. We had to run the business. 20 Q. Right. And you had to wind down 21 all of the municipal bond accounts and 22 customer account during that time period? 23 A. Not customer accounts. Those are 24 separate. 25 So you have got W. H. Mell as
Page 187 1 S. B. Mell 2 May -- late May, May 30th or May 31st. Do 3 you recall that testimony? 4 A. I do. 5 Q. Did you receive that letter 6 contemporaneously? 7 A. The May letter, yes. 8 Q. How about the second resignation 9 letter? 10 A. No. The one that was just 11 produced recently, I had not seen that. 12 Q. Okay. Let's use June 28th. I 13 think that was the testimony, that that was 14 the last day she ever worked for you, or for 15 W. H. Mell & Associates. Do you recall that? 16 A. Yes. 17 Q. Is that accurate? 18 A. I don't believe so. 19 Q. Why? Tell me why? 20 A. I had no access to anything 21 except a cell phone. No e-mail, no computers 22 or anything. 23 The way it was running, Lisa had 24 all access to everything at Mell. She had, 25 you know, unfettered access.	Page 189 1 S. B. Mell 2 broker/dealer, and the customers, they are 3 separate. They had nothing to do with each 4 other. 5 Q. The customer accounts were just 6 given away to Ryan and Mountainside, right, 7 pretty much, right? 8 MR. MAGRANE: Objection. 9 A. You can't give away an account, 10 you know. 11 Q. Is it safe to say when you say 12 "we," the people involved in the closeout and 13 wind down of W. H. Mell, that included Lisa 14 Brown? 15 A. Yes. 16 Q. It included Michael Cornell? 17 A. I don't think so. 18 I never had a -- my point of 19 contact was Lisa. 20 And then from Lisa, if there was 21 anything, it would be Ryan. 22 Other than that, I don't believe 23 I talked to anybody else at the firm. 24 Q. Okay. Besides communicating with 25 them, or knowing the point of contact, do you

Page 190 1 S. B. Mell 2 know who was involved at the building inside 3 W. H. Mell helping with the wind down? 4 A. I have no idea. 5 Q. But it had to be at least Lisa 6 Brown and Ryan, correct? 7 A. Yes. 8 Q. Was Michael Cornell still with 9 them? 10 A. I think he is. 11 Q. You resigned on June 6th. 12 Did you rescind that resignation? 13 A. Yeah. So I was told while I was 14 incarcerated that I had to do that, and that 15 I had to resign and submit a U-5, which is a 16 withdrawal, and Pershing was going to kick us 17 out. 18 And I was told I had to be 19 absolutely removed from any obligations at 20 the firm, that since was, I found out was not 21 the case. 22 So yes, I rescinded all that. I 23 stayed in my capacity until the very end. 24 Q. You were not physically present, 25 and you had to rely on others to carry out	Page 192 1 S. B. Mell 2 Yes, I can only assume there were 3 conversations. 4 What they were, I don't know. 5 Q. All right. Did Ryan, Michael 6 Cornell or anybody else from either 7 Mountainside or W. H. Mell inform you of 8 those? 9 MR. MAGRANE: Objection. 10 A. Can you be more specific? 11 Q. Yes. During 2018, between the 12 time period of late June 2018 until 13 December 31, 2018, did Ryan or Michael 14 Cornell or anyone else at W. H. Mell or 15 Mountainside inform you of conversations with 16 clients and customers of W. H. Mell? 17 A. I would have assumed they would 18 have said they were going to contact them, 19 because I had to sign off, I believe on that 20 letter. 21 Q. And that was in the summer? 22 A. You have to give me the letter. 23 I don't know when the date was. 24 Q. Is the letter, Mr. Mell, you are 25 referring to the letter where you are waiving
Page 191 1 S. B. Mell 2 the actual processing of the close out? 3 A. Yeah. I had no access to 4 anything except to, like I said, a cell 5 phone. 6 Q. Did you engage in any 7 communications with clients or customers with 8 regard to them going over to Mountainside? 9 A. No. 10 MR. MAGRANE: Objection to form. 11 Q. Do you know if anybody from 12 either W. H. Mell or Mountainside engaged in 13 conversations with customers or clients of W. 14 H. Mell during 2018 with regard to leaving 15 and going to Mountainside? 16 A. I believe I think I have seen a 17 letter that Mountainside sent out, you know, 18 to current Mell clients. 19 That is about as much as I know. 20 Q. So besides the letter, were you 21 aware of conversations being had with the 22 customers and clients to kind of get it set 23 up for that transition? 24 MR. MAGRANE: Objection to form. 25 A. I don't know. I can only assume.	Page 193 1 S. B. Mell 2 the noncompete and the ability to hold them 3 to covenants? 4 A. I am not -- I know there was a 5 letter that basically says hey, we are going 6 to open up a broker/dealer, and maybe it was 7 a conflict of interest. 8 I need to see the letter. 9 Q. That letter is between you and 10 Ryan, right? 11 A. I don't even know. It could have 12 been between Mountainside and clients. 13 I need to see the letter. 14 Q. Fair enough. 15 Here is a question I need to 16 understand. 17 Obviously W. H. Mell is managing 18 a lot of money, money that belongs to itself, 19 and money that belongs to its customers, 20 correct, back in the day, back in 2017, 2018? 21 A. Yes. 22 Q. So you can't be there, because 23 you have just gotten out of jail, and you are 24 not allowed to return, and the company hasn't 25 transitioned to anyone new.

Page 194 1 S. B. Mell 2 So my question to you, sir, is: 3 From late June 2018 until the end of 2018, 4 who was watching the store? Who was watching 5 the finances of W. H. Mell & Associates? 6 A. I was. 7 Q. Anybody else? 8 A. Dan Beaton, and by default, Lisa 9 would be, because she would prepare the 10 reports that had to be done monthly. 11 Q. Have you looked at recently the 12 QuickBooks or, you know, the finances for 13 W. H. Mell back in 2018? 14 A. No. They were destroyed. 15 Q. Do you recall officers' salaries 16 being paid throughout 2018, all the way up 17 until the end of 2018? 18 A. I believe everyone was paid 19 through the end of '18. 20 Q. And when you say everyone, who 21 are you referring to? 22 A. All the employees. 23 I know Lisa said she didn't get 24 any compensation. I don't recall that, but I 25 believe she did.	Page 196 1 S. B. Mell 2 A. He was paid salary, and then 3 generally year end bonus. 4 Q. How was his generally year end 5 bonus calculated over the, you know, five 6 years leading up to 2018, that period? 7 A. After everybody was paid, 8 expenses were paid, whatever was falling off 9 at the end profitability-wise, he would get 10 some portion of that. 11 Q. What was the portion? What was 12 the percentage? 13 A. It would vary. 14 Q. Every year, it would vary? 15 A. Yeah, yeah. It wasn't 16 anything -- it wasn't -- you know, he didn't 17 get a specific number every -- a specific 18 percentage every year. Everything was at my 19 discretion. 20 Mr. Robert, I am going to 21 interject here, and just have a standing 22 objection to questions with respect to 23 Mountainside that could have been asked, 24 or should have been asked at Mr. Mell's 25 prior deposition.
Page 195 1 S. B. Mell 2 But I don't know specifically, 3 sitting here today. 4 Q. But the rest of the team, the 5 names that were on that group that she 6 identified, they continued to be paid as 7 W. H. Mell folks; is that correct? 8 A. That is correct. 9 Q. Throughout the end of the year, 10 while this was transitioning to Mountainside, 11 right? 12 A. Correct. 13 Q. The health insurance and life 14 insurance, that was maintained, too, right? 15 A. Yes. 16 Q. So Lisa was wrong about that, 17 too? 18 MR. MAGRANE: Objection to form. 19 A. I don't know, Patrick. 20 Q. I take it back. I will rephrase. 21 Before everything went not so 22 good. 23 A. I am not laughing. 24 Q. How was Ryan paid through 25 W. H. Mell? How was he compensated?	Page 197 1 S. B. Mell 2 I mean, there has been nothing in 3 the events since then that warrants a 4 change, I believe, with respect to that 5 topic. 6 A change in, Pat, your position 7 at the end of your questioning, which 8 was you had no further questions. 9 So again, this is just a standing 10 objection to questions with respect to 11 Mountainside that should have been 12 asked, or could have been asked at the 13 last deposition. 14 There is no reason -- I mean, Mr. 15 Mell was questioned on this topic for 16 hours. 17 THE WITNESS: For two days. 18 MR. MAGRANE: And again, there 19 has been nothing since your 20 representation that you were finished on 21 such topics that would warrant any 22 additional questioning. 23 MR. WHALEN: Well, we disagree. 24 We think there has been more 25 documents obtained, and we got Lisa

Page 198 1 S. B. Mell 2 Brown's deposition. 3 MR. MAGRANE: You mentioned 4 Ms. Brown's deposition in previous 5 questions. 6 I hadn't seen any documents -- 7 MS. WHALEN: Are you instructing 8 him not to answer? 9 You made your objection for the 10 record. 11 MR. MAGRANE: I thought you were 12 responding to me. 13 MR. WHALEN: Okay. All right. 14 Q. So Mr. Mell -- 15 A. Hang on. Hang on. 16 What am I doing here? 17 Q. I am going to ask you a new 18 question. 19 THE WITNESS: And I am supposed 20 to answer, Rob? 21 MR. MAGRANE: I am not advising 22 you on whether to answer or not. 23 I am placing my standing 24 objection onto the record as to a line 25 of questioning that I think is	Page 200 1 S. B. Mell 2 profitability of the firm. 3 So non-commission salesmen -- 4 non-commission people, right, which are 5 non-salesmen, they would get bonuses every 6 year. 7 Again, it was at my full 8 discretion. 9 Salesmen got commissions, and 10 they got paid monthly, 30 days after, or 15 11 days after that month, and so they did not 12 get bonuses. 13 Q. Okay. And the compensation that 14 I see on the W. H. Mell QuickBooks for 15 officers and salaries, that would have 16 included Mr. Posner, correct? 17 A. Yes. 18 Q. There is an entity, names that 19 has been thrown about Wellington Capital. 20 Do you recall that company? 21 A. Yeah. There was never -- I take 22 that back. 23 There was a house there years 24 ago, a rental house. 25 Q. A small operation?
Page 199 1 S. B. Mell 2 inappropriate. 3 THE WITNESS: Okay. I understand 4 you don't represent me. I wasn't asking 5 that. 6 I am trying to make sure I 7 understand what the ground rules are. 8 Go ahead, Patrick. 9 Q. You just testified that Ryan's 10 compensation was both salary and some 11 percentage of profits every year? 12 A. At my discretion, yes. 13 Q. And what did the percentages that 14 Ryan would get depend upon? 15 A. Profitability of the firm. 16 If we had a really good year, he 17 got a bigger percentage. 18 If we had a really tight year, it 19 would be less. 20 Q. Besides you and he, were there 21 other officers who would also get a 22 percentages of compensation -- over and above 23 salary? 24 A. No one got a percentage. It was 25 in my mind, right? I would look at the	Page 201 1 S. B. Mell 2 A. Yeah. It was one house bought, 3 sold, and that company hasn't done anything 4 in 15 years. 5 Q. Fair enough. 6 One last question. 7 Go back to the video. 8 Do you recall the testimony of 9 the grandmother? 10 A. Yes. 11 Q. You were at that deposition? 12 A. Yes, I was. 13 Q. Can you tell me what was on the 14 video that would have caused her so much 15 stress that she described at her deposition? 16 A. Probably seeing me and C.C. going 17 up the stairs into a bedroom. 18 Even though she couldn't see what 19 happened, but I would assume. 20 Q. That is what you think caused her 21 reaction? 22 A. Because the kitchen was -- I 23 mean, besides an unknown person in her 24 kitchen, I get that, too. 25 But that was, you know, fully

Page 202 1 S. B. Mell 2 clothed, and it was just normal conversation. 3 The camera in the living room 4 going upstairs, I think would be much more 5 troubling. 6 Q. Fair enough. 7 Thank you, sir. 8 Wait a minute. 9 I just got one from the peanut 10 gallery. 11 MR. EVERS: From the peanut 12 gallery? 13 MR. WHALEN: Yes. 14 I am good. Thank you, Mr. Mell. 15 THE WITNESS: Okay. 16 MR. EVERS: I just have two 17 follow-up questions, unless somebody 18 wants to ask their first line of 19 questions. 20 Diane, you have any questions, or 21 no? 22 MS. SAMMONS: No, I am good. 23 Thank you. 24 FURTHER EXAMINATION BY 25 MR. EVERS:	Page 204 1 S. B. Mell 2 A. No. 3 Q. Did you give her a phone? 4 A. I gave her one of my phones. 5 Q. Why? 6 A. She had -- because she left her 7 phone with Kogul. 8 Q. And that was because that was her 9 way of hiding from her mom, right? 10 A. No, hiding from her friends. 11 Q. Really? 12 A. Yup. 13 Q. What friends? 14 A. Sara Smith was tracking her all 15 the time, asking where she was, you know. 16 Q. So why did you feel that it was 17 necessary that you give her one of your 18 phones? 19 A. I don't know. 20 She wanted to use it. 21 Q. This is when she is leaving her 22 phone at Kogul's house? 23 A. I would assume. 24 Q. Just so I am correct, you were 25 aware that she was leaving her phone at
Page 203 1 S. B. Mell 2 Q. Just a couple of quick questions, 3 sir, and I will be done. 4 You were asked questions before 5 about a phone being hacked. Do you recall 6 those questions? 7 A. Yes. 8 Q. During the time when you were 9 with B.B., were you aware that she was 10 leaving her phone at a friend's house when 11 she was with you? 12 A. Are you talking about when it was 13 hacked? 14 Q. No. Just talking about in 15 general. 16 When you were with B.B., were you 17 aware that she was leaving her phone at a 18 friend's house? 19 A. She had done that sometimes, yes. 20 Q. And what was the friend's name? 21 A. Padro Metz, I believe. 22 Q. Did you encourage B.B. to do 23 that? 24 A. No. 25 Q. Did you buy B.B. a second phone?	Page 205 1 S. B. Mell 2 Kogul's house, correct? 3 A. There were a time or two, yes, 4 she would leave her phone at Kogul's house. 5 Q. During those times, are those 6 times you let her use -- you would give her 7 your phone? 8 A. I would assume, if she wanted it. 9 Q. Was there an extra phone you had, 10 or was this your personal cell phone? 11 A. It was my personal cell phone. 12 Q. Did you ever give her a phone 13 that wasn't your personal cell phone? 14 A. No. 15 MR. EVERS: That is all I have, 16 sir. 17 Thank you for your time. 18 THE WITNESS: We all good? 19 MR. EVERS: Just for the record, 20 Maria, so when reference is made to the 21 mother or father's names, it should D.D. 22 and E.E. within the body of the 23 transcript. 24 And the same thing -- with the 25 name of either B.B. should be B.B. and

Page 206 1 S. B. Mell 2 C.C. should be C.C., if I remember 3 correctly. 4 Everybody agree with that? 5 MR. PEARLSON: Yes. 6 Just remember, Robert, you have 7 to send your exhibits, and we will send 8 ours, and we designated them 9 consecutively. 10 MR. EVERS: Right. I got 1 11 through 4. 12 MR. PEARLSON: Yup. 13 MR. MAGRANE: I have a couple of 14 questions. I don't know if we are done. 15 It is very short, just two 16 questions as of yet. 17 EXAMINATION BY 18 MR. MAGRANE: 19 Q. Mr. Mell, you know who I am. I 20 am Robert Magrane from Riker Danzig. I 21 represent Mountainside Securities. 22 I am going to try and share my 23 screen, okay? 24 I am going to represent to you 25 what I am showing you right now is a	Page 208 1 S. B. Mell 2 records -- 3 A. Correct. 4 Q. -- while you were incarcerated? 5 A. Yes. 6 Q. Do you have any reason to believe 7 Lisa Brown retained any of those records, if 8 she indeed had access, like you testified, 9 after her -- 10 A. I don't know what happened. I 11 don't know who did what. 12 All I know is I asked for my 13 records back, and -- 14 Q. That wasn't my question. 15 My question was: Do you have any 16 basis -- is there reason to believe that Lisa 17 Brown retained any of those records? 18 A. I have no idea. 19 MR. MAGRANE: I don't have any 20 further questions. Thank you. 21 MR. WHALEN: I do. 22 FURTHER EXAMINATION BY 23 MR. WHALEN: 24 Q. Mr. Mell, you were just about to 25 say something, and you weren't able to
Page 207 1 S. B. Mell 2 transcript of your last deposition. This is 3 page 20 -- excuse me, page 170. 4 And this is a portion of 5 questioning from Mr. Whalen. 6 And if you wouldn't mind just 7 reading this page, I don't think any other 8 context is necessary. 9 A. I have to get up. I am walking 10 up to read it. I can't read it. 11 Q. I can scroll down. 12 A. Thank you. 13 Can you scroll down, I guess? 14 Q. Let me know when you are finished 15 with the highlighted portion. 16 A. Okay, yup. 17 Q. Do you have any reason to doubt 18 that what your statement there was accurate 19 when you stated it? 20 A. No, I think it is accurate. 21 Q. And you still agree with that 22 statement? 23 A. Yeah, yes. 24 Q. You also testified today that 25 Lisa Brown had access to W. H. Mell	Page 209 1 S. B. Mell 2 finish. 3 I just want to you ask you -- you 4 said you asked for your records back, and I 5 want to get some context to that. 6 What records were you asking for 7 back? 8 A. I asked for W. H. Mell's records, 9 business, everything. 10 Q. Including financials? 11 A. Everything: Financial records, 12 trade history, everything of W. H. Mell. 13 And all I got -- 14 Q. Did you -- go ahead. I am sorry. 15 A. I had asked to make sure they 16 were preserved, because I had to give 17 authorization for Mountainside to get access 18 to those files. 19 And I asked to have them back. 20 And when I got my servers back, 21 everything was destroyed. 22 Q. Who did you ask for that 23 W. H. Mell materials, documents and 24 financials back from? 25 A. Lisa and Ryan.

Page 210 1 S. B. Mell 2 Q. Anybody else? 3 A. Probably was -- that was probably 4 run through Mark Noll, is my guess, at the 5 time. 6 Q. The attorney for W. H. Mell? 7 A. Yes. 8 Q. And what time period did you make 9 that request to Lisa and Ryan? 10 A. Whenever they started to need 11 access to that data, so I don't know. 12 I have no idea the interworking 13 of timelines with all that stuff. 14 I just know I had to give them 15 access to that information. 16 Q. Well, can you give us an 17 approximate time? Was it the summer of '18? 18 A. I would have to imagine it had to 19 be pretty quick after my arrest. I don't 20 know. 21 Q. How many times did you ask that 22 of Lisa and Ryan, to make sure they return 23 everything W. H. Mell back to you? 24 MR. MAGRANE: Objection to form. 25 A. Probably the initial	Page 212 1 S. B. Mell 2 W. H. Mell or Mountainside about the wiped 3 clean servers? 4 A. There was nothing I could do. 5 I mean, you know, my IT got them 6 back, and they were wiped clean, and that was 7 done. There was nothing I could do. 8 Q. You could have followed up with 9 the folks who had the material? 10 A. At that time, Mell was winding 11 down; and like I said, I had much bigger 12 problems. 13 Q. Okay. But it is your testimony 14 that Lisa and Ryan had the W. H. Mell & 15 Associates servers from some point shortly 16 after your arrest until they were given back 17 to Mr. Elsworth? 18 A. Correct. 19 MR. WHALEN: I have nothing 20 further. 21 MR. MAGRANE: Nothing further. 22 MS. Sammons: I am sorry, I have 23 one question. 24 EXAMINATION BY 25 MS. SAMMONS:
Page 211 1 S. B. Mell 2 authorization for them to get access to the 3 servers. 4 Q. And when did you get the servers 5 back? 6 A. That is a good question. 7 I physically never got them back. 8 They were picked up by Stuart 9 Elsworth, so I would have to imagine sometime 10 in early '19, when W. H. Mell actually closed 11 up all operations. 12 Q. Did you inspect the servers? 13 A. No, I did not. 14 Q. How did you come to learn they 15 had been wiped clean? 16 A. He had told me. 17 He was W. H. Mell's IT guy. 18 Q. And did that concern you? 19 A. Yes. 20 Q. Did you follow up with Ryan? 21 MR. MAGRANE: Objection. 22 Objection. 23 A. No. At that time, no. 24 I had bigger fish to fry. 25 Q. Did you follow up with anybody at	Page 213 1 S. B. Mell 2 Q. Mr. Mell, what is Mr. Elsworth's 3 first name? 4 A. Stuart. 5 Q. You said he was your IT person? 6 A. Yes. 7 Q. And do you know where he is now? 8 A. I believe his residence is South 9 Carolina. 10 Q. Do you have his address? 11 A. Not off the top of my head. 12 Q. Do you have his phone number? 13 A. I do. 14 MS. SAMMONS: Okay. I am going 15 to make a special request that you 16 provide that information to us, and we 17 will do that in a letter. 18 THE WITNESS: Okay. 19 MS. SAMMONS: I have no further 20 questions. Thank you. 21 MR. WHALEN: I have no further 22 questions. 23 THE COURT REPORTER: Are you 24 requesting a transcript? 25 (Continued on the following

Page 214

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

S. B. Mell

page.)

MR. MAGRANE: Yes, please.

(Time noted: 3:09 p.m.)

Page 216

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

CERTIFICATE

I, MARIA ACOCELLA, a Notary Public within

and for the State of New Jersey, do hereby

certify:

That the witness whose deposition is

hereinbefore set forth, was duly sworn by me

and that the within transcript is a true

record of the testimony given by such

witness.

I further certify that I am not related to

any of the parties to this action by blood

or marriage and that I am in no way

interested in the outcome of this matter.

IN WITNESS WHEREOF, I have hereunto set my

hand this 16 day of September, 2025.



MARIA ACOCELLA

Page 215

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25

INDEX TO TESTIMONY

	Page	Line
Examination by	4	7
Mr. Evers	202	24

Examination by	146	2
Mr. Pearson		
Examination by	177	7
Mr. Whalen	208	22

Examination by	206	17
Mr. Magrane		
Examination by	212	24
Ms. Sammons		

INDEX TO EXHIBITS

Description	Page	Line
Exhibit 1 Complaint	15	13
Exhibit 2 Check	24	18
Exhibit 3 Notice to Produce Documents	106	13
Exhibit 4 Letter	140	12
Exhibit 5 Bank statement	168	16
Exhibit 6 Letter	170	15
Exhibit 7 Bank statement	174	20

INDEX TO REQUESTS

Page	Line
Provide personal notes	6 25
taken about the case	
Provide Mr. Elsworth's	213 14
Phone number	

&	12,000 149:23	177 215:7	2017 18:12,15
& 2:14 3:1,8 181:24 187:15 194:5 212:14	121 92:23 13 125:18 215:13,15 136 95:8 14 129:2 132:23 215:24 140 215:17 145 101:21 146 215:5 15 132:22 200:10 201:4 215:13,19 15,000 150:7 16 53:10,11,13 53:15 55:25 56:4 66:18 135:13,16,22 136:8 215:18 216:17 1600 51:14 168 215:18 16th 77:6 17 34:5 53:11 53:18 60:14 72:7 76:10,14 84:10 93:15 94:4 136:24 158:8 160:10 160:12 215:8 170 207:3 215:19 174 215:20	17th 49:25 50:7 107:13 18 150:7 194:19 210:17 215:14 19 168:22 188:15 211:10 19th 182:16 2 2 24:19 109:6,7 134:16 215:5 215:14 20 149:25 150:21 160:2 167:10 168:23 170:23 207:3 215:20 200,000 19:19 2012 1:9,9,12 1:14 3:2,21 173:12,20 174:10 2015 20:4 97:13,14 98:5 151:19 2016 23:4 36:15 38:14 41:21 55:2,5 56:12 57:16 58:10 72:3 152:4 157:21	18:15 20:4,5,7 25:20 34:12,25 44:5,13 53:7 53:19 54:5 59:10,13 61:19 61:22 63:19 66:23 67:7 69:9,17 70:8 72:15 75:4,6 75:14 80:5,6 81:9,15 88:7 88:10,13 99:25 106:11 161:16 165:15 166:24 179:12 193:20 2018 181:23 188:14 191:14 192:11,12,13 193:20 194:3,3 194:13,16,17 196:6 2019 140:23 144:4 170:2 178:15 202 215:4 2020 168:23 2021 9:21 2022 170:23 2023 14:18 2025 1:19 107:13 108:18 216:17
0			
001178 171:15 07068 2:7,20 3:13 07931 2:3 08608 3:24			
1			
1 15:13 92:17 93:4,4 116:18 117:7 134:16 206:10 215:13 10 121:6 149:22 10,000 159:20 103 2:19 5:22 105 3:3 5:23 6:3 106 90:24 215:15 109 3:23 10:13 1:19 11 51:23 122:13 123:2 123:13 1183 172:22 12 54:19 57:16 124:9 215:17			

206 215:8 208 215:7 2084 169:25 21 106:11 212 215:10 213 215:24 21st 14:17 22 1:19 43:20 132:2 215:7 24 85:3 144:15 215:4,10,14 25 150:8 160:2 181:23 215:23 25,000 22:15,16 23:17 24:16 25:16,22 27:14 30:7,21 31:24 68:13,23 69:12 114:10 118:25 250 2:11 2672 175:17 27 69:8,16 132:2 27th 70:8 28th 187:12 29 132:2 2a 92:17 93:4	30 140:23 144:4 150:9 158:17 173:19 200:10 302 2:6 30th 187:2 31 192:13 31st 187:2 34 94:8 36 101:20 37 51:24,25 3865 216:20 39 14:16 94:8 3:09 214:4 3rd 167:3	167:21 5 5 16:7,8 47:13 111:22 162:2 168:18 169:2 190:15 215:18 5,000 150:13 50 20:17 22:8 501,000 170:4 501,010.46. 169:19 51 71:25 51a 72:2 51c 75:5	7200-19 1:2 75,000 20:12
			8
			8 46:19 118:11 118:11,23 803 122:6 8038c25 121:20 835 2:3 85 85:5 8th 170:2 182:14
			9
			9 48:7,15 49:4 120:19 92 89:10
			a
			a.m. 1:19 abbreviations 21:2 ability 115:18 193:2 able 64:9 159:24 172:8 208:25 abnormal 125:4 above 1:22 199:22 absolutely 49:9 73:16 158:2 190:19
3 3:12 16:2,3 81:15 106:14 106:18 110:9 166:24 174:9 175:19 215:15	4 4 19:3 88:7,10 111:5 140:12 175:21 206:11 215:4,17 4,000 22:17,21 40 54:20 74:9 402 3:12 40a 54:25 55:4 40b 56:3,7,11 41 63:17 425 2:6 43 66:22 48 68:12 49 68:21,21 69:8 4th 34:25 47:3 47:12 88:9,13	6 6 18:20 112:14 170:17 178:13 178:13 215:19 215:23 60,000 20:18 22:9 61b 92:17 93:4 673 2:15 6th 190:11	
3	4	6	
3	4	6	

abuse 92:15,16 93:2,3 abused 45:16 46:3,13,16 accept 149:3 accepted 114:21 access 94:24 95:4 117:19,20 153:10 163:25 166:19 187:20 187:24,25 191:3 207:25 208:8 209:17 210:11,15 211:2 accomplish 182:20 account 12:12 12:15 22:17 23:17 25:23 27:20,23 28:14 28:14 30:22 31:5,6,24 32:24 42:10 68:18,24 69:13 103:8,11,16 104:3,3 114:11 114:12 119:4 119:25 170:2 174:23 188:22 189:9 accounts 26:20 26:22 27:3,6	27:10,12,16,22 28:4,6,9 68:15 115:3 169:8 188:21,23 189:5 accurate 10:2 29:24 51:21 75:10 109:24 182:2 184:5 187:17 207:18 207:20 accurately 16:17 19:10 45:17 46:4 67:4 68:15 69:14 80:10 81:16 89:8,17 93:5 108:5 120:4,13 121:21 accusations 46:5 acocella 1:23 216:4,21 acquiesce 93:11 acquiesces 92:25 acronyms 21:8 act 91:5 92:16 action 1:2 113:4 129:6 133:4 155:15 216:13	actions 49:9,10 100:24 actively 157:14 activity 26:14 acts 91:6 actual 191:2 actually 39:14 42:2 77:25 98:3 106:20 141:18 151:24 154:7 160:23 161:19 163:8 176:20 211:10 addition 152:9 156:16 additional 197:22 address 5:21 213:10 admissions 121:8 adolescent 130:4,7,15 adult 49:22,25 50:11 62:14 99:6 advance 186:14 advantage 11:9 adversarial 185:14 advice 69:24 70:21 71:12 advised 86:22 137:22	advising 7:15 198:21 aero 1:8,13 140:18 170:6,9 171:13,17,25 172:5,8,14,25 173:9,25 174:11 175:14 175:23 178:23 affair 96:6 97:15 98:6,24 affirmative 91:6 afford 159:14 afternoon 146:4 age 11:25 14:16 ago 6:24 138:9 200:24 agree 11:5,10 11:13 32:2 50:18,23 55:24 61:11 69:17 97:12 123:18 206:4 207:21 agreed 47:25 67:3 agreement 8:16 143:20 175:8 agreements 143:13,18,21 ahead 50:14 199:8 209:14
--	--	--	--

ahold 162:6 164:18 aided 161:4 air 140:8 149:22 150:6 170:7 178:23 179:3,9 aircraft 140:6,7 airplane 78:7 78:16 115:21 141:6 171:10 171:12 airplanes 143:16 airport 64:13 65:11,17 158:24 159:6,7 162:10 163:2 alarm 16:12 album 131:11 alert 101:11,14 alerted 46:20 186:16 allegation 46:14,15 allegations 68:10 70:3,5 86:4 89:6 117:23 118:17 alleged 113:4 133:2 allegedly 114:21	alleges 69:9 70:19 alleging 87:9 102:23 allow 66:25 185:16 allowed 6:13 18:22 89:15 126:15 128:3 193:24 america 169:3 169:8 amount 20:25 68:22 69:11 160:25 174:5 angle 180:12 angry 144:18 answer 5:6,11 8:11,22 12:23 13:4 30:5 51:3 69:25 70:25 74:15,18 76:12 82:25 85:19 86:10,20 88:4 97:2,5 110:17 110:23 111:16 112:5,17 113:11,14 118:19 120:16 121:23 122:19 125:15 128:13 131:16 134:25 135:16 137:11 137:14,23	138:4,6,11,14 138:18,22,24 139:5 145:6 165:24 176:18 177:4 184:20 198:8,20,22 answered 133:8,9 176:20 176:24 184:19 answering 5:14 70:22 85:24 87:15,19 98:2 answers 110:15 122:10 183:3 anybody 15:2 28:8 29:25 39:19 42:11 57:21 63:5 74:24 80:12 81:18 101:7 105:22 117:16 145:13 148:10 182:25 183:4 189:23 191:11 192:6 194:7 210:2 211:25 anymore 130:2 anyway 120:21 125:20 apologize 32:3 37:24 apologized 37:17	apparently 84:22,23 92:7 96:24 111:4 119:13 131:4 135:2 appeal 69:25 70:24 88:3 137:7,13 138:5 138:12 139:2,6 139:17 145:4 appear 143:22 appeared 8:2 46:21 152:25 appears 14:13 171:16,23 175:6 application 35:24 36:17 71:4 appointed 139:12 appreciate 61:17 appropriate 100:24 123:3 123:16 approve 186:18 approximate 210:17 approximately 68:13 150:14 180:6 area 161:4
---	--	--	--

argument 185:8	121:7 124:9 129:2 145:5	205:8	august 1:19 151:19
argumentative 185:14	151:17 176:15 199:4 204:15	assumed 192:17	augusta 56:19
arrange 65:24	209:6	assumption 5:13	authorities 46:19 155:18
arranged 158:21	asks 111:5,22 115:14,16	asterisks 173:16	authorization 209:17 211:2
arrest 210:19 212:16	118:3,11 120:19 136:24	attach 24:23 107:21	available 111:14
artful 11:8	asserting 135:21	attached 172:23	avenue 2:6,15
asked 12:22 23:8 28:13,21	asset 104:9	attachment 175:18	avery 183:10
28:22 29:2	assets 102:6,13 103:20,21	attend 25:15 26:13 30:9,11	avoid 166:3
32:3 36:21	168:11 177:16	30:15,16 31:21	aware 82:10,15 82:16 186:7
37:5 39:23,24	assist 15:2 27:6 35:22 36:16	attended 81:15	191:21 203:9 203:17 204:25
40:6 55:10,13	assistance 111:19 113:15	attending 56:14	b
57:22,25 58:9	120:16	attention 173:11 175:19	b 4:1,2 5:1 6:1 7:1 8:1 9:1
60:4 62:8	assisting 28:2	attorney 3:18 3:19 15:5	10:1 11:1 12:1 13:1 14:1 15:1
75:19,20 79:16	associated 159:7	71:15 86:14,22	16:1 17:1 18:1 19:1 20:1 21:1
80:23 99:20	associates 1:8 26:21 181:24	123:10 133:15	22:1 23:1 24:1 25:1 26:1 27:1
115:16 131:14	187:15 194:5 212:15	133:18 137:15	28:1 29:1 30:1 31:1 32:1 33:1
132:24 137:6	assume 43:13 53:14 71:7	138:15 139:12	34:1 35:1 36:1 37:1 38:1 39:1
138:20 147:19	93:9 106:12	183:8 210:6	40:1 41:1 42:1 43:1 44:1 45:1
147:23 149:13	113:17 117:13	attorneys 2:5 2:10,14,19 3:1	46:1 47:1 48:1 49:1 50:1 51:1
151:14 152:6	119:8 135:23	3:9 8:16,20 9:4 9:8	
154:19 159:21	191:25 192:2	audio 126:7 130:18,21	
176:22 177:15	201:19 204:23		
178:17 184:18			
196:23,24			
197:12,12			
203:4 208:12			
209:4,8,15,19			
asking 70:4,6 108:23 118:15			

52:1 53:1 54:1	135:1 136:1	203:1 204:1	160:21,23
55:1 56:1 57:1	137:1 138:1	205:1 206:1	161:5,11 162:3
58:1 59:1 60:1	139:1 140:1	207:1 208:1	162:22,24,24
61:1 62:1 63:1	141:1 142:1	209:1 210:1	163:5,10,21,25
64:1 65:1 66:1	143:1 144:1	211:1 212:1	164:3,10,12,18
67:1 68:1 69:1	145:1 146:1	213:1 214:1	164:23 165:7
70:1 71:1 72:1	147:1 148:1	b.b's 21:16	165:11 166:9
73:1 74:1 75:1	149:1 150:1	77:15,16 93:16	167:23 203:9
76:1 77:1 78:1	151:1 152:1	157:24 164:6	203:16,22,25
79:1 80:1 81:1	153:1 154:1	164:24 166:7	205:25,25
82:1 83:1 84:1	155:1 156:1	b.b. 1:4 2:19	back 9:21
85:1 86:1 87:1	157:1 158:1	4:12 21:12,14	19:12 20:9
88:1 89:1 90:1	159:1 160:1	25:12,14 30:16	23:24 24:3,8
91:1 92:1 93:1	161:1 162:1	31:13,20 32:12	32:17 37:7
94:1 95:1 96:1	163:1 164:1	44:15,19,23,24	52:16 55:12
97:1 98:1,22	165:1 166:1	45:8 46:3,12	57:8 66:6,9
99:1 100:1	167:1 168:1	49:9 60:19	69:6 71:4
101:1 102:1,16	169:1 170:1	63:20 64:2,4,9	73:21 84:19
103:1 104:1	171:1 172:1	64:19 65:9	86:16,24 91:14
105:1 106:1	173:1 174:1	67:16 69:18	105:14 109:2
107:1 108:1	175:1 176:1	77:2 78:12	118:7,8 121:25
109:1 110:1	177:1 178:1	79:5,20,22	124:20 139:4
111:1 112:1	179:1 180:1	82:13,14 85:18	149:8,10 151:4
113:1 114:1	181:1 182:1	87:5,17 88:8	151:17,22
115:1 116:1	183:1 184:1	88:11,14,18	159:13 162:4
117:1 118:1	185:1 186:1	93:13,18 98:22	170:13,14
119:1 120:1	187:1 188:1	98:24 99:5,16	174:11 178:18
121:1 122:1	189:1 190:1	115:22 126:4	181:17 193:20
123:1 124:1	191:1 192:1	126:11 130:24	193:20 194:13
125:1 126:1	193:1 194:1	131:8 144:5,23	195:20 200:22
127:1 128:1	195:1 196:1	151:5,6,17	201:7 208:13
129:1 130:1	197:1 198:1	157:12,18,20	209:4,7,19,20
131:1 132:1	199:1 200:1	157:20 158:6	209:24 210:23
133:1 134:1	201:1 202:1	158:13 159:5	211:5,7 212:6

212:16	beauty 73:24	175:13 179:12	bit 113:6
bad 97:3,3,11	74:2	181:13 182:5	170:18 171:4
balance 173:2	becker 3:12	182:15 184:17	175:3
balances 173:8	bedroom	186:2,4 187:18	bizarre 164:7
174:3	180:21 201:17	189:22 191:16	blah 158:13,13
bank 68:23	bedrooms	192:19 194:18	158:14
69:12 114:11	180:23	194:25 197:4	blame 96:12
119:24 169:3,7	beginning	203:21 208:6	blaming 49:5
169:8,23	151:16 156:10	208:16 213:8	blood 216:13
172:10,20	185:3	belongs 193:18	blow 170:18
174:22 175:6	begun 163:20	193:19	bny 174:22
215:18,20	behalf 8:3	benefited 43:12	board 35:23
banking 172:21	behaviors	benefits 18:21	boat 60:20
barry 3:8	119:18,20	20:18 119:7	151:18
base 118:16	believe 7:13	148:8,15,15,16	bob 4:10 140:9
based 73:10	22:12 36:15	benign 163:17	body 205:22
93:20,21,22	38:13 44:16	bernard's	bold 109:14
137:14 173:17	51:21 56:18	25:15 26:13	bond 188:21
184:16	57:2 59:9	30:9,14 31:14	bonus 196:3,5
basically 42:14	77:25 78:8,14	31:20 160:14	bonuses 200:5
83:12 136:11	79:5 82:5	best 54:10	200:12
193:5	84:11 93:25	56:18 138:19	books 122:4
basis 44:11	94:16 100:20	146:17	border 94:25
98:20 99:2	100:23 107:17	big 172:17	boston 10:22
113:2 208:16	109:25 113:20	bigger 17:12	bother 145:5
bates 175:17	119:22 128:3	199:17 211:24	bottles 6:10
bear 15:15	134:4,7 142:13	212:11	81:13 82:3
103:13	142:22,23	biggest 44:7	bottom 16:3,11
beard 146:25	152:3 154:11	bill 23:7,13	107:12 142:8
153:22	155:13 158:19	29:21 41:10,19	bought 43:16
beat 112:13	161:18,25	bills 188:3	99:20 201:2
beaton 194:8	165:13 168:4	birthday 59:20	box 2:3 19:5
beautiful 63:16	170:5 172:15	77:6,15,17	39:9 81:12
	172:19 175:11	78:20 115:23	82:8 110:4

128:7 134:20 167:7,11,11 boys 164:13 brad 162:25 164:22 brad's 162:12 bradley 1:7,9 1:12,21 2:2 3:21 124:15 169:11 173:19 brain 130:4,7 130:15 break 62:17,20 63:4,6 85:23 104:15,19 105:10,21 115:13 176:7 breakdown 19:24 bressler 183:10 bridge 28:23 bring 77:18 151:22 broken 96:24 broker 26:20 189:2 193:6 brokerage 22:17 27:3 brooks 81:12 81:25 167:2 brought 96:19 177:21 brown 72:7 74:20 181:18	184:12 185:23 186:22 189:14 190:6 207:25 208:7,17 brown's 198:2 198:4 bruce 147:19 building 157:8 190:2 bullet 134:16 135:6,7,7 136:8 bullied 164:4 bullying 164:14 bunch 151:15 business 27:24 46:20 186:13 188:19 209:9 businesses 142:3 buy 41:13 203:25 buying 43:20 c c 2:1 42:24,24 42:24 75:14 76:11 c.c's 56:16 58:13 59:18,19 148:23 157:15 157:22,25 c.c. 16:22 19:22 19:23 21:5,15	25:12 26:23 27:4 28:10,11 28:12 29:8 31:6,13,20 32:21,22 33:23 34:24 37:4,13 37:18,21 38:5 38:19,20,21 39:18,23 40:10 41:25 42:7,22 43:16,24 47:6 47:24 52:5,15 53:9 54:3 55:22 56:13,15 56:24 57:3 59:23 60:2,5 60:18 62:3 64:4,19 65:6,8 68:14 75:19,21 76:25 79:5 81:22 82:11 89:13,22 95:14 95:22 96:6,12 98:8 100:12 106:19 115:11 125:24 126:4,5 126:6,8 130:21 144:5 146:15 146:22,25 147:10,13,17 147:22 148:5 148:10,11 150:25 151:2 151:13 152:2	152:23 153:15 154:2,9,16,17 155:5,12 156:22,25 157:3,11,13 164:21,23 165:9 179:25 180:5,11,19 181:9 201:16 206:2,2 calculated 196:5 call 24:18 31:4 62:19 91:15 105:11 164:22 186:8 called 38:18,21 47:9,11 59:23 60:19 154:9 163:8 182:22 186:15 calling 104:24 calls 53:2 104:13 148:3 camera 16:15 180:17,18 202:3 cannon 57:2 66:16 148:9 149:15 cannon's 64:4 cannons 142:14 142:24 146:9 146:11,13,20
---	--	---	---

148:22 153:6 160:8 163:24 166:14 179:23 cans 78:8,16 capacity 190:23 cape 75:15 capital 200:19 car 22:18,21,23 23:6,13 56:15 card 22:18 31:19 42:5,7 42:13 77:5,18 78:7 79:19 119:24 148:18 care 1:8,13 32:19 140:18 145:23 170:6,9 171:13,17,25 172:5,8,14,25 173:9,25 174:12 175:14 175:23 178:23 careful 165:19 carolina 132:5 213:9 carry 190:25 carter 128:5 cartier 115:11 case 6:22 7:17 8:17 11:18 21:2,13 30:2 48:25 51:13,16 71:8 85:22	93:23 117:9 137:3,24 138:10 153:2 177:18 190:21 215:24 cash 18:24 19:15,25 20:2 20:13,16 22:8 22:11,14 31:19 33:7 41:12,23 42:2,3,4,21 43:13 79:25 115:3 148:17 149:5 cataloged 121:17 category 138:21 caught 35:2,6 caused 201:14 201:20 causing 101:20 ceased 168:20 cell 187:21 191:4 205:10 205:11,13 certain 128:6 138:6 165:14 165:15 171:24 certainly 33:2 47:19 49:16 107:11 certificate 216:2	certificates 179:7 certification 21:5 certify 216:6,12 cetera 118:2 challenge 142:24 change 156:20 197:4,6 changed 38:5 158:4,6 chaos 144:21 charges 46:22 87:23,25 charging 42:15 charlie 75:5 chart 174:3 charts 129:4 130:3 chase 22:16 23:17 24:6,15 25:23 68:23 69:12 103:8 114:12 119:3 check 20:13,14 22:11,12,13 23:25 24:4,9 25:25 26:3 31:3,7,19 68:22 69:11 103:10,23 114:10,18 118:25 215:14	checking 104:2 104:3 checks 19:25 chief 140:4,5 chiesa 3:1 child 92:16 99:9,12 106:7 children 33:17 45:5 100:22 101:3,14 131:19,25 158:3 choice 80:20,24 142:24 choices 97:11 christmas 41:14,22 131:11 circle 152:21 circumstances 63:25 city 57:18 58:2 58:2 62:8 civil 1:2 86:15 86:18 claim 89:2 clarification 122:24 clarify 176:14 178:19 183:20 classmate 59:25 clean 211:15 212:3,6
---	--	--	--

clear 21:14 151:23 176:20 177:2 clearing 68:20 client 133:15 clients 70:15 87:9,21 191:7 191:13,18,22 192:16 193:12 close 89:14,19 89:23 91:7,12 91:19 191:2 closed 211:10 closeout 189:12 closer 20:17 closing 188:9 clothed 202:2 club 19:4 35:12 35:14,16,17,18 35:22 36:7,11 36:14 37:9,10 37:16,19,24 39:5 72:4 154:3,8,21,23 155:10 cm 1:8,13 3:11 cod 75:15 code 16:13,19 16:24 coke 78:8,16 176:7 colby 56:14 60:15 150:3,5 164:22,22	colleagues 145:11 college 10:20 10:21 18:25 29:20 31:12,15 33:9 34:9 52:5 52:15 53:9 58:14 59:19 150:3,5 come 47:15 58:21 71:4 86:15,24 103:7 104:6 105:14 108:3,7,12 112:10,22 139:4,19 145:16 162:4 166:5 179:22 211:14 comes 122:3 comfortable 21:8 98:2 coming 161:2 commission 200:3,4 commissions 200:9 commits 93:2 communicate 16:15 34:11 communicating 34:23 189:24 communication 132:6 135:17	communicati... 116:2,3 119:20 133:2,13 134:2 134:11,17,18 136:14 191:7 company 188:10 193:24 200:20 201:3 compass 96:15 96:23 compensated 195:25 compensation 194:24 199:10 199:22 200:13 complaint 4:11 13:21,24 14:8 14:14,21,24 15:3,18 29:18 29:24 35:10 39:8 45:19 48:23 50:21 56:8 63:13,13 68:7 70:15 87:9,20 90:20 90:20 92:21 94:15 95:2 108:24 109:4,8 110:11 111:6 111:23 112:2 112:15 113:23 117:24 118:6 118:13,18 177:21 215:13	complaints 45:22 48:24 50:22 complicated 74:12,14,18 compound 52:11 comprise 125:19 computer 95:5 computers 187:21 conceal 177:17 concern 44:7 211:18 concert 19:6 39:10,15 40:23 72:7,15,16 74:20,21 81:12 81:15 82:2,8 147:25 149:4 166:22,24 167:3 concerts 147:15 166:23 condition 91:8 91:10 92:8,10 conduct 70:24 106:8 conference 6:2 6:4,5 confirm 124:8 conflict 193:7
--	---	--	--

confused 141:14	continuation 53:3	163:17 184:4 185:6,6 202:2	40:3,4 41:5,6 42:9 43:11,24
connected 178:21	continue 18:19 29:17 34:11,14	conversations 52:14,22 71:21	43:25 45:5,24 46:8,13 47:8
connection 4:11 6:9 9:11 106:3	34:17 37:6 44:2 45:10 50:17 52:4	83:24 142:21 144:2,4 152:10 184:7 191:13	48:6 50:2,9,12 50:13 51:21,22 56:5 58:4,5
consecutively 206:9	63:12 88:14 94:6 98:18	191:21 192:3 192:15	59:16,21 60:11 60:13 62:16
consider 133:20,23	109:18 166:21	copy 181:9	65:4 67:8,10
considered 31:15 103:20	continued 2:25 62:25 63:2 105:19 145:25	cornell 189:16 190:8 192:6,14	67:11,14,20,21 68:2,19 69:2,3
consistently 52:18 124:25	195:6 213:25	corporate 42:12	70:13,17 72:24 73:11 74:17,21
conspiracy 177:23	continues 26:15 35:10 39:8 46:18	correct 4:18,19 4:21,22 7:18 7:22 8:4 9:12	75:22,23,25 76:12,13 77:14 78:17 79:20,21
constant 91:11	68:5 102:16	9:13 10:6,7,9 10:10,13,14,16	80:13,18 81:2 81:6,7 82:12
contact 88:8,11 88:14 91:11 102:12 146:19 153:17,18 157:6,18 164:15 189:19 189:25 192:18	contract 140:17 141:16	10:17 17:2,3 17:20 18:3,4 19:17 20:23 21:13,16,17 22:10 23:14,18 23:20,22,23,25 24:17 25:2 26:2,24,25 27:7,8,17 28:4 28:6,7,16 30:2 30:23 31:3,21 31:22 32:4,24 32:25 35:5 36:24,25 37:13 37:15 39:7	89:20,24 90:4 90:5 92:21 94:12,13,21 95:2,3,6,7 96:15 97:15 98:8 99:12 100:7 101:9,10 101:12,13,16 101:18 103:25 104:5 106:4,8 106:11 107:5,6 108:19,20 110:24,25 111:14,15,17 111:18,20,21
contained 50:20	contribution 30:13		
contemporan... 187:6	control 11:7 107:25 109:20 110:19 111:10 112:7,19 116:9 116:20 120:11 125:12		
contentious 178:3	conveniently 73:23		
context 97:25 98:15 180:7 207:8 209:5	conversation 25:18 64:3,15 154:3,7,23 155:9 156:3		

112:11,12,23 112:24 113:12 113:16 114:15 114:16,18,19 115:6,17,20,24 116:11,21 118:20 120:17 120:22 122:11 124:16 125:13 127:23 128:2 128:20,22 129:15 134:13 138:7 140:24 148:24,25 149:18,19 152:7,8,12,13 152:16,17 154:4,5 158:5 158:22 163:22 166:12,25 167:14,23,24 168:3,8 171:11 178:8,9 179:15 181:24 183:22 185:24 190:6 193:20 195:7,8 195:12 200:16 204:24 205:2 208:3 212:18 correctly 206:3 correspondeen... 135:19 136:13 cost 54:20 149:21,22	150:5,12 counsel 7:10,16 7:19,21 69:25 70:21 71:13 117:3 148:15 170:19 count 88:25 92:15,20,23 94:7 95:6 98:19 101:21 108:24 109:3,7 110:11,15 111:5,22 112:2 112:14 113:3 113:23 116:21 117:23 118:5 118:12 counts 177:20 county 1:1 182:7,10 couple 73:20 115:2 156:12 168:15 176:9 181:17,20 203:2 206:13 course 13:19 court 1:1 4:24 7:15 24:21,24 42:25 71:17,20 82:24 86:13,25 118:17 131:6,6 134:12 139:11 213:23	courtesy 80:8 courts 108:12 covenants 193:3 cover 170:23 175:5 craig 3:5 create 48:21 creating 91:8 credit 22:18 31:19 42:5,7 42:12 119:24 148:18 criminal 46:22 69:24 70:2,5 70:23 85:22 86:3,14 87:23 87:25 126:16 128:7 137:7,13 137:15,24 138:5,10 139:2 139:6,17 145:4 186:9 cry 38:2 crying 91:15 csg 6:2 7:9,21 9:8 146:5 cssa 92:24 cure 32:14 current 191:18 currently 131:23 custody 107:24 109:20 110:19	111:10 112:7 112:19 116:8 116:20 120:10 125:12 customer 188:22,23 189:5 customers 189:2 191:7,13 191:22 192:16 193:19 cut 20:10 48:23 50:21 51:15 133:6 166:18
d			
d 3:14 4:2 21:24,25 58:10 76:14 77:3,8 d.d. 1:16 2:6 4:10 16:23 21:18,22 25:13 26:18 43:10 47:9,11,19,25 80:6 93:10 95:13 98:21 100:10 106:20 106:21,25 144:5 205:21 dad 21:18,22 21:24,25 26:24 43:10 47:7 66:6 95:13			

daily 52:24 185:2,4 daly 2:16 145:16 150:19 dan 194:8 dangerous 91:8 91:10 92:8,10 danzig 2:9 206:20 data 131:7 210:11 date 1:22 38:11 39:4 94:2 106:10 116:23 159:4 168:24 181:15,25 192:23 dated 140:23 170:23 dates 186:6 daughter 12:2 26:12 33:16 44:14 48:4 49:6 56:13 60:7 67:13 86:9 87:11 89:13 90:15 91:21 92:5 93:12,13 99:10 146:15,24 147:12 157:18 daughter's 11:24 44:8 56:15	day 29:14 32:17,19 35:2 35:4,6,8 37:14 37:19 38:15 39:4 53:3 56:16,25 154:10,10,20 156:15 158:2 161:24 162:9 162:21 163:9,9 178:6 185:20 185:20 187:14 193:20 216:17 days 197:17 200:10,11 dead 112:13 deal 62:19 83:3 83:4 dealer 26:20 189:2 193:6 dealing 110:15 deals 87:20 112:14 dealt 178:14 death 59:24 debt 174:4 december 14:17 34:25 47:3,12 81:9 81:15 88:7,9 88:10,13 144:15 160:10 160:12 166:24 167:3,21	188:14 192:13 declarations 121:18 122:15 declining 136:12,20 deeply 89:16 default 194:8 defendant 2:10 2:14,15 3:1,9 3:19 98:25 102:3 135:24 177:12 defendants 1:11,17 2:5 8:8 101:24 102:24 106:24 114:22 145:11 defense 7:10,22 8:2,5,7,16 defer 105:7 139:18 define 51:10 definitely 169:15 definition 10:25 11:6,14 80:16 133:22 degree 10:20 106:8 delete 12:17 88:16,18 delivered 31:19 35:9	demand 7:2 113:11 demanded 47:20 demanding 47:4 demands 107:4 denied 131:9 dennehey 2:5 dep 145:17,19 department 182:23 depend 199:14 depending 150:7 deposed 4:17 9:10 10:5 181:18 deposit 23:21 24:15 25:24 28:8,13 31:2,7 103:15 114:10 114:14 119:3 169:18,22 deposited 23:17,18,19 24:5 27:9,11 28:5 30:21 31:23 68:13,22 69:11 103:8,22 depositing 25:22 30:8 deposition 1:21 4:16 6:10 7:4,8
--	---	--	---

8:21 9:4,7,15 11:17 71:22 82:21 138:8 181:21 196:25 197:13 198:2,4 201:11,15 207:2 216:7 depositions 9:24 deposits 120:2 describe 146:18 153:17 154:6,22 164:8 172:3 described 146:10 153:12 156:24 184:3 185:5 186:8 201:15 description 215:12 designated 206:8 despite 89:11 destroyed 194:14 209:21 detail 68:9 176:25 details 82:17 determine 102:5 developed 153:13 165:10	developing 156:5 development 130:5,7,16 device 181:3 devices 125:21 diagrams 129:4 diane 2:21 202:20 dictionary 11:6 11:16 different 87:24 94:11,12 108:22 155:9 differs 185:22 digital 116:2,3 dinner 56:22 56:23 direct 60:24 158:20 175:19 directing 173:10 directly 26:6 59:22 137:23 disagree 46:15 197:23 disallowed 128:8 disclosures 136:25 discourage 157:6 discovered 37:13 146:14	146:20 147:10 148:23 151:12 153:25 156:21 discovering 147:9 148:11 153:14 discovery 82:21 107:4 108:14,18 113:11 136:15 148:4 discretion 196:19 199:12 200:8 discuss 7:21 8:19 9:3 143:12 discussed 52:10 66:9 discussing 144:8 discussion 66:5 discussions 52:2,8 186:11 disposed 178:23 distance 73:11 distinction 8:10 distraught 60:2 60:17,21 61:16 62:7 distribution 171:9	division 1:1 divorce 104:7 113:19 177:22 178:2 doable 161:10 docket 1:2 51:14 117:17 117:19,22 139:10 doctor's 104:12 document 14:17 51:11,12 51:18,20 107:14 116:20 124:2 132:25 169:2 175:18 documentation 120:2 documents 63:10 105:24 107:25 108:8 109:21 110:19 111:11 112:8 112:19,22 116:9 117:6,22 117:25 118:15 120:11 121:17 122:14 125:13 125:19 126:19 127:11 128:6,8 128:12,18,24 129:14 134:15 135:24 168:15 170:12 171:7
---	--	---	--

197:25 198:6 209:23 215:16 dog 16:16 17:12,14 dogs 17:4,9,23 18:6 doing 25:6,9 57:6 64:20 71:6 79:12 105:10 117:18 144:16 157:13 188:7 198:16 dollars 18:23 19:15 20:16 22:8,9 33:7 41:12,23 42:21 47:4,20 143:18 149:23 170:8 172:18 doubt 207:17 drive 58:20 78:24 99:14,21 100:5 driving 57:8 dropped 162:2 drove 56:14,15 56:17 159:6 162:9 due 98:21 173:8 duly 4:3 216:8	e e 2:1,1,21 4:2,2 4:2,2 12:7 34:20 59:10 80:4 187:21 e.e's 30:21 67:15 103:8 162:5 e.e. 1:16 2:6 4:10 16:23 19:22 20:11,16 20:22,22 21:5 21:6,6 22:4,24 25:4,6,12,21 26:18,23 27:4 27:23 29:8,10 31:6 32:22 36:12 37:18,20 38:19 39:5,17 39:24 43:10 47:20 52:23 56:15,22 57:17 57:22 58:19 59:22 60:3 64:5,6,19 67:12 73:21 74:4 76:24 77:7,8,9 83:18 83:19 85:17 86:8 93:10 95:13 98:21 99:20 100:11 106:21,25	144:6 148:4 150:25 153:13 153:18 154:12 154:17,20,24 156:6 157:14 158:9 159:3 161:11,22,25 162:10,15 163:3,8 164:4 164:11 179:25 179:25 180:4 180:25 205:22 eagle 2:6 earlier 54:21 83:10 137:6 159:21 179:13 185:24 early 38:14 44:5,12 97:13 97:14 179:12 183:24 186:11 186:24 188:15 211:10 easy 15:21 158:24 eat 104:20 economic 101:20 education 10:19 effect 4:24 efforts 53:20 54:12	eisenhower 2:19 3:3 5:22 5:24 6:3 either 19:22 28:9 31:12,20 51:17 91:13 96:5 115:15 163:4 168:22 185:20 191:12 192:6 205:25 elder 154:15 electronic 125:21 eliza 1:9,14 57:3 132:10 eliza's 162:8 163:14 elizabeth 184:12 else's 133:7 elsworth 211:9 212:17 elsworth's 213:2 215:24 embracing 155:6,14 emily 1:8,13 132:10 150:25 emma 11:18 12:4,7,19,25 13:9,13 emotional 60:6 employed 130:14
---	---	--	--

employees 194:22 enabling 153:10 encourage 203:22 encouraged 52:3 164:3,9 endangering 106:7 endearing 157:8 ended 34:6 endorse 26:3 31:8 endorsed 24:4 31:3 endorsement 24:7 114:17 endorsing 25:24 enforcement 100:21 101:2 166:15 167:21 engage 191:6 engaged 146:21 151:12,25 165:16 191:12 engines 170:8 179:2 enjoyed 18:21 enmeshed 89:16	ensuing 154:23 entanglement 113:2,5,20 entered 8:15 entire 14:23 173:2 entitled 82:21 entity 200:18 entries 51:14 entry 173:11 equals 21:24 equipment 43:20 equivalent 60:18 error 128:15 especially 11:9 esq 2:7,8,12,16 2:17,21,22 3:4 3:5,14,25 essex 1:1 35:16 35:17 37:10,16 37:24 72:3 154:20 182:7 182:10 established 64:13 estate 27:24 estimate 19:19 esx 1:2 et 118:2 evasive 177:3 event 78:21	events 102:17 197:3 eventually 121:5 evers 2:7 4:8,10 6:25 15:11 24:21 30:4 42:23 62:17,22 63:3 96:3 104:11,20 105:12,20 139:22 140:11 140:14 144:25 165:18,22 176:14,17 202:11,16,25 205:15,19 206:10 215:4 everybody 117:13,14 181:23 182:18 196:7 206:4 evidence 120:21 121:20 ex 170:20 171:17 173:25 177:21 exact 51:17 168:24 exactly 136:7 150:22 179:5 exam 161:23 162:20,20	examination 4:7 63:2 105:19 146:2 150:18,19 177:7 202:24 206:17 208:22 212:24 215:4,5 215:7,8,10 examined 4:5 except 80:5 119:6 187:21 191:4 exclusive 19:4 35:11 excuse 98:15 207:3 excuses 157:11 exhibit 15:9,13 24:18 31:17 106:14,18 107:21 140:12 168:16,17 169:2 170:17 174:21 178:11 178:12,13,13 215:13,14,15 215:17,18,19 215:20 exhibits 206:7 215:11 exist 109:17 131:2 exists 12:18
--	---	---	--

exited 150:19 expect 105:5 135:11 expectations 134:5 expenditures 120:3 expense 29:19 expenses 150:8 196:8 expensive 18:25 19:8 33:9 41:7 159:13,17 expert 136:23 136:25 137:2 experts 136:22 explain 38:22 141:11 179:22 explained 30:10 130:4 expressed 98:4 extended 18:11 extent 10:18 109:16 extra 205:9 extracted 94:23 extraordinarily 165:8	facilitate 35:21 facilitating 157:14 fact 46:7 73:21 74:4 93:22 126:18 139:17 155:25 157:7 157:20 165:7 167:17 173:7 174:8 178:2 facts 68:8 factual 82:22 113:2 failure 101:25 fair 5:9,10 13:11 15:23,24 24:19 30:24,25 31:11 40:17,18 43:7 47:21,22 47:23 60:12 87:3 137:16 160:24 193:14 201:5 202:6 fairly 156:7 faith 108:4 112:21 fall 30:9 56:4 56:12 57:16 58:10 136:14 falling 196:8 familiar 11:20 family 1:9,9,13 1:14 3:2,22 16:16 17:18	19:9 39:16 41:8 43:8,10 43:14,21 47:3 53:8,17,21 54:12 55:23,25 57:2,13 58:11 58:13 59:6,14 60:5,10,19,23 61:7,12,24 62:11 64:23 65:3,6 66:16 67:10,20 72:20 74:5,10,17,20 77:4,21 80:5 81:11 89:16,20 89:24 90:4 91:7,18 96:22 113:9,19 131:10,12 134:2,18 142:6 146:6 148:9 149:15 152:18 152:21,21 153:10,14,24 155:21,24 156:25 157:6 157:12 166:19 167:5 173:12 173:20 174:10 177:13,16 famous 139:23 far 2:3 41:22 117:7 142:9 162:14 185:23	farm 3:12 farms 2:11 fashion 71:2 fast 35:23 36:17 father 25:13 163:4 father's 205:21 favorable 172:7 fbi 125:25 126:12 128:9 130:24 february 38:13 38:14 152:4 154:11 federal 125:25 126:12 131:6 federally 128:7 feeding 16:16 feel 152:19 153:5,8 204:16 fell 138:21 felt 51:4,5 138:21 fifteen 141:9 figure 38:25 133:22 138:13 file 21:9 71:3 82:18,20 126:16 128:9 filed 4:12,12 7:15 13:20,25 14:17 45:22
f			
f 61:19 81:8 facebook 131:11			

48:25 70:15 87:8 files 209:18 filing 46:9 48:20 188:18 filings 48:19 117:17 124:19 124:24 129:24 130:8 131:23 188:3 filled 23:21 167:18 filling 25:23 final 122:25 123:11 124:2 185:5 finance 175:14 finances 194:5 194:12 financial 18:21 47:15 102:18 109:12 112:25 113:5 114:20 114:23 118:24 119:25 152:11 152:12,24 209:11 financially 81:23 financials 209:10,24 find 102:12 122:8 138:25	fine 30:4 83:6 99:6 104:22 105:12 139:9 139:13 finish 85:13 209:2 finished 197:20 207:14 finra 186:8,15 firm 68:20 189:23 190:20 199:15 200:2 first 4:3 14:20 16:6 46:20 84:12 98:4 107:18 114:9 135:7 136:8 171:22 172:24 181:22 182:12 184:2 202:18 213:3 fish 211:24 five 17:15 41:11,23 62:18 62:20 196:5 fixed 22:18,22 flew 56:25 58:12 59:17 80:6 140:6 141:12 142:2 150:25 151:2,5 160:3,23 161:6 flight 60:4 65:19 75:12	144:22 161:9 161:23 162:20 flights 54:20 55:8 142:4 148:19 149:14 150:15 151:9 151:11 156:19 160:20 fly 57:25 60:4 60:19,21 62:14 66:25 76:5,11 78:9,10 141:18 141:22 150:23 151:7 158:11 flying 19:7 57:8 58:18 60:14 62:2 63:18,20 63:21,22 64:2 64:5,7,12 65:9 65:18 66:12,14 66:19,21 67:16 67:23 75:14 78:12,17 158:8 158:17,21 159:17 160:16 160:19,21 161:12,14 focus 188:3,19 folks 73:10 139:23 195:7 212:9 follow 7:5 135:10 136:6 177:9 202:17	211:20,25 followed 212:8 following 2:25 156:3 163:3,23 213:25 follows 4:6 font 94:12 footnote 173:15 force 4:24 74:24 80:16 forced 32:23 74:19 80:12,14 foreseeable 98:23 forfeited 131:3 forged 89:14 forget 140:15 168:16 178:11 forgot 123:22 form 30:3 95:23 185:25 191:10,24 195:18 210:24 forth 55:12 89:7 124:20 216:8 forties 74:7 fostered 49:13 fought 178:5 found 49:8 96:17,19 154:25 157:20 157:24 166:7 190:20
---	---	--	---

four 6:24 17:15 21:2 41:11,23 42:20 141:16 frame 161:15 166:13 176:16 176:22 frantic 151:21 free 19:6 40:12 54:22 frequent 18:9 frequently 184:11 friend 11:24 152:18 friend's 203:10 203:18,20 friends 29:15 32:22 45:7 55:23,25 57:13 58:9 59:6 60:22 61:6,12 79:6 93:16 146:10,13 152:16 167:9 167:18 204:10 204:13 friendship 33:25 38:5 front 31:17 fry 211:24 fuel 150:7 full 121:4 200:7 fully 19:7 201:25	funds 28:13 102:2 149:5 172:4 further 117:2 175:4 176:4 197:8 202:24 208:20,22 212:20,21 213:19,21 216:12 future 112:11	79:19 115:6,21 gifts 19:5,8 39:9 41:14,22 43:8,9,13 79:22 102:10 114:6,21,24 115:7,9,10,14 115:15 119:15 119:15 152:7 152:15,20 153:4,9 156:24 gill 25:15 26:13 30:8,14 31:14 31:20 160:14 giralda 2:11 girl 49:12 66:18 give 8:12 19:20 19:23 20:11 24:10 41:24 43:9 48:13 63:21 78:6 82:3 88:6 110:3 112:17 118:23 144:22 152:20 171:5 186:6 189:9 192:22 204:3 204:17 205:6 205:12 209:16 210:14,16 given 4:24 22:8 35:5 42:21 79:22 102:2	113:9 148:10 189:6 212:16 216:10 giving 63:20 102:9,10 148:22 153:4,8 168:2 glossed 73:23 74:3 gm 1:8,13 3:11 go 10:21 15:18 16:2 17:13 21:20 22:3 32:13 39:19 50:15 51:23 55:13 56:3 57:6 58:22 59:8 61:8,9 62:9 71:25 72:14,16 76:4 79:7 80:4 82:2 82:17 88:23 90:24 92:15 94:7 103:4 106:14,16 109:2 118:7,8 121:25 124:9 127:2 132:22 142:7 145:22 147:25 148:17 151:22 159:3 161:12,13 166:14,21 167:6 169:25
	g g 83:8 gallery 202:10 202:12 game 147:2 garth 81:12,24 167:2 general 203:15 generalizing 61:14 generally 196:3 196:4 generate 172:13 gentleman 38:19 getting 104:13 163:6 164:4 183:3 giatomasi 3:1 gift 41:7 77:5 77:19 78:6		

171:20 172:22 175:3 181:20 182:23 199:8 201:7 209:14 god 132:2 137:18 goes 19:3 124:20 142:10 going 5:12 6:25 7:3 15:8,9 17:23 19:12 20:9 21:19 23:13 24:18 30:8 32:7 39:13 43:2,19 50:14 51:23 52:13 53:25 57:4 58:10 60:25 61:9 68:11 71:3,7 78:4,5 82:19 82:23 83:2 84:2 85:19 86:10 88:23 90:3 97:2,5 98:18 106:13 106:17,18 107:19,21 110:2,6,10 111:25 114:2 121:3 135:4 136:3,18 138:23,25 139:19,24	145:4,16 155:8 159:10 161:12 162:18 163:13 164:24 165:3 165:23 168:25 169:2,17 170:15,16 171:14,15,20 172:22 173:6 175:2,16,18 180:14,20 184:9,14 186:15 190:16 191:8,15 192:18 193:5 196:20 198:17 201:16 202:4 206:22,24 213:14 good 4:9 10:23 90:8 105:16 108:4 112:21 131:13 146:4 195:22 199:16 202:14,22 205:18 211:6 gotta 62:19 63:8 104:14 gotten 193:23 grace 79:6 150:25 157:12 157:20,23,24 165:8	grandma 180:7 grandmother 37:19 38:16,18 38:22 154:12 154:14 179:17 201:9 great 64:8 green 91:20 92:4 grew 156:13 ground 199:7 group 195:5 grow 27:25 grown 62:13 guardian 1:7 guess 13:20 23:5 41:20,21 82:18 87:12 88:4 90:18 95:5 110:10 121:5 141:10 154:17 157:23 162:5 164:3,12 164:19 167:19 170:10 207:13 210:4 guest 180:20 guida 2:8 guilty 106:3,6 gulfstream 1:8 1:8,13,13 3:11 3:11 guy 211:17	guys 104:21 h h 1:7 22:16 26:20 68:19 181:24 185:17 186:12 187:15 188:25 189:13 190:3 191:12 191:14 192:7 192:14,16 193:17 194:5 194:13 195:7 195:25 200:14 207:25 209:8 209:12,23 210:6,23 211:10,17 212:2,14 hacked 93:16 166:7 203:5,13 hagerty 2:17 145:18 150:17 half 9:2 105:9 155:10 hallway 178:7 hand 216:17 handful 18:10 138:20 151:6 hang 129:17 198:15,15 hanger 161:8 happen 70:20 83:2 186:12
---	---	---	--

happened 50:6 70:19 73:10 94:3 154:7,22 160:11 179:18 201:19 208:10 happening 185:12 happy 58:3 64:12 98:12 155:5 158:15 hard 155:13 178:5 hardin 2:14 harry 3:14 145:13 hawker 178:23 179:8 head 22:20 41:16,18 122:7 136:2 213:11 heads 186:8 health 195:13 heard 5:13 36:8 166:16 held 49:10 131:7 helicopter 19:7 40:13,17 54:23 57:18 80:23 81:2 119:9 140:8 141:23 149:17 150:11 150:24 151:7 161:5	helicopters 20:19 hello 147:3 153:21 help 37:5 64:12 113:15 151:17 153:3 helping 190:3 helps 169:24 hereinbefore 216:8 hereunto 216:16 hey 73:9 193:5 hi 162:4 hid 101:17 hide 168:11 177:17 hiding 204:9,10 highlighted 123:19 207:15 hills 2:3 history 209:12 hit 60:20 151:18 hold 101:21 128:14 165:22 193:2 home 16:14 17:14 76:21 77:5,11 78:25 79:19 80:6 81:11	hope 52:20 144:16 hoping 27:25 horse 112:13 hospital 151:21 hosted 132:12 hour 9:2 90:2 105:6,9 150:13 hours 38:21 105:6 115:2 159:22 160:2 197:16 house 16:13 44:17,20 50:8 50:10 64:16,21 64:25 78:22 147:9 156:19 161:20,23,24 162:13,16,23 163:10 172:16 173:18 175:10 175:24 180:8 200:23,24 201:2 203:10 203:18 204:22 205:2,4 huh 92:19 122:18 124:12 hundred 20:12 hunt 35:16,17 37:10,16,24 39:5 72:3 154:3,8,20,23 155:10	husband 157:17 husband's 26:14 i idea 18:7 26:4 36:10 58:22,25 65:13 78:18 97:16 99:24 107:10 110:10 123:5,9,14,17 123:24 142:17 143:9,24 144:19 149:16 169:21 170:3 190:4 208:18 210:12 identification 120:20 170:16 identified 16:2 16:7 22:5 56:11 76:10 121:17 195:6 identify 39:14 102:16 132:24 134:15 135:5 136:12,19 identifying 134:25 136:7 ii 109:7 iii 92:15 110:11 110:15
---	--	---	---

imagine 113:8 159:19 210:18 211:9 immediately 96:16 155:3 importance 10:9,15 124:5 inaccurate 126:20 inappropriate 33:15 43:23 44:6,14 48:4 89:11,12 90:6 90:12 163:6 199:2 incarcerated 169:14 182:5,7 182:9 184:8,12 184:22 186:3 190:14 208:4 incarceration 184:5 include 188:8 included 51:20 149:17 189:13 189:16 200:16 including 19:5 39:9 49:4 209:10 index 215:2,11 215:21 indicate 38:4 126:24	indicated 152:5 152:11 158:19 161:19 174:22 indirectly 26:8 individual 11:21 13:9 individually 8:6 indivudualy 1:7 inform 192:7 192:15 information 31:5,6 51:19 51:20 82:22 108:13,15 110:5 117:20 118:5 120:6 210:15 213:16 infrequent 34:22 156:11 ingratiated 153:5 initial 210:25 initially 151:16 initials 43:6 inside 190:2 insidious 11:8 inspect 211:12 inspection 110:5 128:7 134:20 instruct 88:18	instructed 138:6,9 instructing 198:7 instruction 110:2 instructor 65:10,14,15 insurance 195:13,14 intangibles 115:4 intend 120:20 intention 49:3 98:23 interaction 186:21 interactions 183:16 interest 78:17 121:19 122:15 172:7 193:7 interested 216:15 interject 196:21 internal 119:25 internet 122:4 interpretation 31:16 33:5 interrogatories 137:18 interview 125:25 126:2	126:12 interviews 125:22 interworking 210:12 introduce 36:6 158:16 introduction 46:8 68:8 investment 26:19 27:20,25 68:14 149:5 investments 18:24 19:16 26:16,17 33:8 invite 19:4 35:11 72:13 invited 76:20 76:23 77:10 167:9,17 involved 8:17 59:25 130:15 167:22 189:12 190:2 irrelevant 132:12,14 ish 20:6 38:13 issue 142:13 145:3 issued 186:24 item 132:14 174:9 175:19 175:21
--	---	---	--

items 120:20 132:12 iv 111:6	jump 28:22 june 18:12,15 61:19,22,25 63:19 66:23 72:6,15 161:16 181:23 182:4 182:13,16 185:24 187:12 190:11 192:12 194:3 jury 4:25	153:16 156:11 159:25 180:12 180:13 191:22 king 140:8 149:22 150:6 170:7 178:23 179:3,9 kitchen 25:11 30:7 37:21 38:20 64:4,16 154:16,16 158:10 179:24 180:4,12,15 201:22,24 km 171:15 knew 25:9,22 74:4 85:17 86:8 92:6 93:18 97:13 102:24 157:2 158:23 161:22 162:14,15,18 162:19 164:16 165:14,14 176:23 know 6:13 7:5 11:3 12:10 17:15 20:14,15 20:20 21:4 23:3 25:6 31:10 33:11 34:21 39:3 41:18 43:15 48:18 51:10,16	52:24 54:8,9 55:23 62:6 65:15,17 73:24 74:7 77:3 78:3 79:11,24,25 82:7,8,9,22 83:25 84:3,15 86:7,12,18,25 88:15,20 90:10 91:16,17 92:11 93:15 97:8,19 98:9 100:2 102:25 103:19 104:7,25 105:2 110:7 112:6 113:9 115:2,3 115:12 116:16 117:10,15 118:9 119:14 124:4 126:15 128:16 129:16 129:17,23,25 130:6,8,25 131:8,15 132:16,19 133:21,21 137:20 138:14 141:7 142:4 147:2,6,12,21 147:22 148:18 148:19 150:14 150:21 151:14 151:20,25 152:14,23
j	k		
j 3:18,25 jail 182:18 183:17,22 186:21 193:23 jeep 56:16 78:25 jersey 1:1,25 2:3,7,11,16,20 3:3,13,24 4:5 5:20 35:20 121:20 139:10 216:5 jet 149:24 150:8 join 36:10 joined 150:18 joint 8:2,5,7,15 42:10 104:2 jones 18:23 joseph 140:3 judge 4:25 128:5 july 25:20 44:5 44:13,17 49:25 69:8,16,16 70:8 73:22 74:4 84:10 106:11 151:19 161:19	keep 18:22 21:25 62:4 69:5 84:2 124:21 keeping 91:7 91:11 kept 91:19 99:4 kick 190:16 kid 28:25 kids 61:18 79:10 kim 57:2 177:12,21 178:13 kimberly 1:7,9 1:12,14 3:2,21 173:11 174:9 kind 15:18 17:9 84:24 91:18 105:3 113:20 114:2 144:16		

153:23 154:9 154:13,14,25 155:4 156:11 157:19,24 158:10 159:2,4 159:7,21,22 160:24,25 161:7,11,15,25 162:14,23 163:9,11 164:9 164:11,25 165:24 167:18 168:24 172:9 175:9 178:22 178:25 179:4 181:11 184:24 186:14 187:25 188:4,6,13,15 188:16,18 189:10 190:2 191:11,17,19 191:25 192:4 192:23 193:4 193:11 194:12 194:23 195:2 195:19 196:5 196:16 201:25 204:15,19 206:14,19 207:14 208:10 208:11,12 210:11,14,20 212:5 213:7	knowing 147:21 189:25 knowingly 92:25 93:11 knowledge 121:11 122:16 known 37:19 68:17 knows 137:18 kogul 168:4 204:7 kogul's 204:22 205:2,4 krm 146:6 168:6,20 169:4 173:18 175:17 178:18 kundia 2:14 l l 1:2 4:2,2,2 l.l.c. 1:8,8,8,13 1:13,13 3:18 l.l.p. 2:9,18 lab 17:11 late 20:6 74:7,9 158:7 168:22 187:2 192:12 194:3 laughing 195:23 law 1:1 3:18 6:2 100:21 101:2 122:4	146:5 166:15 167:21 lawyer 51:8 lawyers 105:8 leading 196:6 learn 44:22,24 84:12 104:6 142:15 143:7 211:14 learned 44:4,12 62:7 166:6 learning 78:10 89:11 leave 15:22 205:4 leaving 191:14 203:10,17 204:21,25 led 64:2 154:3 ledgers 119:25 left 168:17 204:6 legal 95:24 155:15 length 89:7 lent 170:9 lesson 63:20 lessons 19:8 63:18,21,23 64:2,7 65:9,12 65:22,25 66:3 66:7,11,15,15 66:20 144:22 158:21 159:10	159:18 160:6,9 160:17,20,22 161:15 letter 7:3 42:24 135:11 136:6 140:19 143:16 144:10 170:17 170:23 171:16 171:23 172:23 178:12 186:25 187:5,7,9 191:17,20 192:20,22,24 192:25 193:5,8 193:9,13 213:17 215:17 215:19 letting 86:18 level 60:20 leverage 46:23 liable 49:8,10 101:24 license 64:8 99:19 100:2 141:20,22 159:23 life 164:6 195:13 light 91:20 92:4 liked 78:9,12 156:2 163:10 likely 143:4 likewise 10:11 23:15
---	--	--	---

limited 153:20 line 198:24 202:18 215:3 215:12,22 lisa 181:17 183:13 184:21 186:22 187:23 189:13,19,20 190:5 194:8,23 195:16 197:25 207:25 208:7 208:16 209:25 210:9,22 212:14 list 36:3 121:4 129:8 135:25 listed 129:9 169:18 literally 163:16 litigation 97:25 98:15 122:17 124:11 132:21 135:18 136:13 littered 132:20 little 78:7 113:6 170:18 171:4 175:3 live 132:3 183:21 lived 129:21 lives 91:18 living 180:19 202:3	llc 1:10 loan 172:8,10 173:2,5,17 175:8 178:25 loaned 172:4 172:13 173:3 174:11 175:23 loans 171:24 173:9 located 5:17 locked 181:23 182:17 183:5 lockout 185:16 185:23 log 134:15,21 135:5 136:4,19 logistics 172:12 london 132:5 long 8:25 51:14 58:19 141:8 182:9 look 73:10 95:8 118:7,8 121:25 122:2 124:24 126:24 174:8 199:25 looked 194:11 looking 16:4,9 27:19 45:12 55:2 91:2 174:25 180:13 looks 141:2 169:25 175:8	loss 101:20 lost 25:13,17 lot 29:11 52:14 64:21 97:24 98:14 138:17 142:4 150:20 156:18 157:12 164:3 179:24 186:10 193:18 love 64:11 66:12,21 76:5 76:11 155:6 158:13 159:15 loved 52:19 67:17 loves 81:24 low 180:12 lunch 104:19 104:20,21 105:10,17	191:10,24 192:9 195:18 197:18 198:3 198:11,21 206:13,18,20 208:19 210:24 211:21 212:21 214:3 215:9 mail 34:20 187:21 mailed 12:7 main 46:20 maine 56:14,19 maintain 169:7 maintained 125:7 195:14 make 6:25 8:21 14:11 15:21 52:20 75:12 107:22 157:10 176:19 199:6 209:15 210:8 210:22 213:15 makes 62:21 105:11 173:21 making 53:20 54:11 70:7 man 62:13 71:6 74:9 105:2 154:15 manager 171:17 173:25 managing 193:17
		m	
		m 4:2 made 30:13 78:7,16 97:10 114:14 121:8 122:15 129:4 131:18 171:24 173:17 198:9 205:20 madison 2:11 magrane 2:12 12:21 184:14 185:25 189:8	

manipulate 11:2,3,7,14	matter 4:12 9:11 13:20 106:4 122:17 129:6 133:5 144:8 146:7 216:15	meant 90:10,16 90:21	53:1 54:1 55:1 56:1 57:1,16 58:1,11 59:1,8 60:1 61:1 62:1 63:1,4 64:1 65:1 66:1,23 67:1 68:1,12 68:22 69:1,10 69:11 70:1 71:1 72:1 73:1 74:1 75:1 76:1 77:1 78:1 79:1 80:1,7,9 81:1 81:10 82:1 83:1 84:1 85:1 86:1 87:1 88:1 89:1,15 90:1 91:1,7 92:1 93:1 94:1 95:1 96:1 97:1 98:1 98:22,25 99:1 100:1 101:1 102:1 103:1 104:1 105:1,21 106:1 107:1,23 108:1 109:1 110:1 111:1,9 112:1 113:1 114:1 115:1,3 116:1 117:1 118:1 119:1 120:1,10 121:1 121:16 122:1 123:1 124:1,15
manner 172:4	mcenroe 3:14 145:14	media 132:12 132:14	
manual 99:15	mcguire 3:8	mediator 178:8	
maps 129:4,20	mckeon 2:14	meet 7:7 37:8 154:19	
march 156:14 170:2 178:14	mean 29:12 46:25 55:12 77:23 90:6,12 90:17,21 92:3 101:23 102:4 103:19 112:25 114:2 115:2,11 123:25 126:16 127:6,10 129:17 134:19 140:5 144:20 150:20 162:17 164:16 165:6 178:22,25 197:2,14 201:23 212:5	meeting 7:11 8:25 37:9,23 38:12 39:5	
margin 94:18		mell 1:7,7,7,8,9 1:9,9,12,12,13 1:14,14,21 2:2 3:21,21 4:1,9 5:1 6:1 7:1 8:1 8:6 9:1 10:1 11:1 12:1 13:1 14:1 15:1 16:1 16:14 17:1 18:1,22 19:1 20:1 21:1 22:1 22:16,16 23:1 24:1 25:1 26:1 26:20 27:1 28:1 29:1 30:1 31:1 32:1 33:1 34:1 35:1 36:1 37:1 38:1 39:1 40:1 41:1 42:1 43:1 44:1,7 45:1,16,23 46:1,2,22 47:1 48:1 49:1 50:1 51:1 52:1,2,4	
maria 1:23 205:20 216:4 216:21			
marital 102:6 102:13 103:20 103:21 104:8			
mark 15:8,13 106:18 120:20 168:17 170:16 183:9,14 210:4			
marked 16:3			
market 25:14			
marking 140:9 174:21			
marriage 216:14			
marshall 2:5			
martha's 151:18	meaning 43:10 55:7 67:12 72:25 77:10 94:15 98:8 115:16 121:19 134:17		
material 108:2 119:6 133:16 212:9	means 11:7,8 28:2 117:10		
materials 109:11,16 111:13 112:10 209:23			

125:1 126:1	188:1,2,8,13,25	198:3	minutes 62:18
127:1 128:1	189:1,13 190:1	merlin 11:19	62:18 104:12
129:1 130:1	190:3 191:1,12	12:4,8,20,25	176:9
131:1 132:1	191:14,18	13:9,13	mischaracteri...
133:1 134:1	192:1,7,14,16	merriam 11:6	50:25
135:1 136:1	192:24 193:1	messa 168:5	miserable
137:1 138:1	193:17 194:1,5	message 116:6	81:24
139:1 140:1	194:13 195:1,7	messages 93:17	misfilings
141:1 142:1	195:25 196:1	93:23 109:11	20:25
143:1 144:1	197:1,15 198:1	115:25 119:21	missing 7:14
145:1 146:1,4	198:14 199:1	165:21 176:25	133:6
147:1 148:1	200:1,14 201:1	met 7:9,20	mission 161:9
149:1 150:1	202:1,14 203:1	37:15,18	mix 17:12 62:4
151:1,23 152:1	204:1 205:1	154:20	model 115:22
153:1 154:1	206:1,19 207:1	metz 203:21	143:16
155:1 156:1	207:25 208:1	michael 2:22	models 141:5
157:1 158:1	208:24 209:1	71:16,18	mom 22:5,8
159:1 160:1	209:12,23	139:11 189:16	28:24 37:8,9
161:1 162:1	210:1,6,23	190:8 192:5,13	37:16 39:6
163:1 164:1	211:1,10 212:1	middle 146:24	43:10,17 44:22
165:1 166:1	212:2,10,14	midnight 162:3	44:24 47:7
167:1 168:1,19	213:1,2 214:1	million 47:4,20	62:8 66:5
169:1,11 170:1	mell's 57:18	143:4,8,17	67:12 69:4
171:1 172:1	58:12 68:20	170:8 172:18	77:10 84:5
173:1,12,19	75:15 89:11	mind 33:3	85:17 93:18
174:1,9,20	109:17 131:18	95:19 199:25	95:13 147:24
175:1 176:1,3	196:24 209:8	207:6	162:3 164:19
177:1,10,12	211:17	minus 27:15	204:9
178:1 179:1	melon 174:22	152:4 161:17	mom's 28:14
180:1 181:1,24	membership	172:18 182:11	moment 178:7
182:1 183:1	19:3 35:11,22	minute 62:20	monday 7:13
184:1 185:1,17	mentioned	102:9 104:15	8:20 9:8
186:1,12 187:1	54:21 64:6	174:19 202:8	money 19:18
187:15,24	84:3,7 137:5		19:20 20:10

22:7 23:15,18 23:19 25:13 26:5,7,9 27:9 27:11,20 28:6 28:9 30:11 32:23 41:13 43:9 46:21 47:2 69:5 83:14,21 86:6 102:10 103:7 103:17,22 113:19 152:7 152:15,20 153:9 168:10 170:9 172:8 174:11 193:18 193:18,19 monies 113:9 173:2 175:22 month 18:6 23:2,3 54:6 99:22 156:12 188:16 200:11 monthly 188:4 194:10 200:10 months 23:16 36:3 53:4 moral 95:25 96:3,4,15,23 morning 4:9 162:23 morris 2:15 morristown 146:25 153:22	mother 16:13 37:19 38:23 44:4,12 52:3 52:18 59:17 60:16 66:24 67:3 81:24 82:2 205:21 mother's 44:7 68:14,23 69:12 114:11 motion 82:18 82:20 131:9 mountainside 1:9 2:10 189:6 191:8,12,15,17 192:7,15 193:12 195:10 196:23 197:11 206:21 209:17 212:2 move 71:11 78:5 91:14 161:3 moving 105:3 msa 178:7 multiple 76:22 141:15 151:2 184:6 municipal 188:21	n.j.s.a. 92:16 93:3 nagel 2:18 137:19 name 4:9 11:18 14:9 21:7 23:24 24:2 25:4,24 71:14 71:18 98:7 103:23 146:5 168:10 183:8 203:20 205:25 213:3 named 13:9 104:7 names 17:6 43:4 124:21 132:9 195:5 200:18 205:21 nantucket 78:23 80:6 149:21 narrowed 152:3 nataliana 2:8 nature 146:19 153:18 near 78:20 necessary 120:2 204:17 207:8 need 8:14 21:9 50:15 98:17 104:11 107:20	118:8 160:2 165:2,18 170:12 171:3 176:6 179:6 193:8,13,15 210:10 needed 62:8 102:12 188:3 needs 139:14 negligence 89:2 negligent 101:25 negligently 101:19 neither 47:7,19 never 13:8 31:12,18 64:8 73:14 104:20 117:4 130:14 147:13 149:6 159:23 166:16 189:18 200:21 211:7 new 1:1,25 2:3 2:7,11,16,20 3:3,13,24 4:5 5:20 35:20 57:17 78:25 121:20 132:4 139:10 168:25 170:8 172:20 175:6 193:25 198:17 216:5
	n		
	n 2:1 4:2		

nice 40:11 77:20,24 81:25 91:17 158:11 164:5 night 44:17 47:9 56:20,24 58:2 162:7 164:20 nine 36:3 noll 183:9 210:4 non 62:7 200:3 200:4,5 noncompete 193:2 nondisclosure 143:12,18,19 143:21 nonevent 163:18 nope 68:4 79:14 143:11 normal 202:2 normally 36:2 north 132:5 notary 1:23 4:4 216:4 noted 214:4 notes 6:18,20 6:22,23 7:2 101:21 215:23 notice 1:22 106:20 123:20 135:22 215:15	november 18:15 20:6,7 81:8 165:15 166:6,12 nowadays 143:21 number 15:10 49:4 104:23 108:8,22 109:7 110:9 111:5,22 112:14 113:22 118:11,11,23 120:19 121:6 123:2,13 132:11,22 135:13,22 136:8,24 164:24 172:17 175:19 196:17 213:12 215:25 numerous 184:24	176:17 objection 12:21 30:3 50:24,25 95:23 185:25 189:8 191:10 191:24 192:9 195:18 196:22 197:10 198:9 198:24 210:24 211:21,22 objectionable 78:4 objections 121:15 obligation 95:16,20,25 96:3,4 100:11 100:14,17,19 108:12 obligations 190:19 obtained 124:10 125:7 197:25 obviously 64:11 65:7 95:19 138:11 152:22 155:8 162:22 172:17 193:17 occasions 10:5 occur 52:9 151:11	occurred 9:20 78:21 156:21 170:11 182:8 october 93:15 94:4 165:15 166:6,11 odd 155:7 164:12 offense 106:3 106:10 offer 40:16 41:3,5 55:11 55:14 120:21 149:7 160:15 offered 58:20 59:2 80:24 115:5 149:3 151:22 159:15 office 6:2 104:13 182:24 officer 182:24 officers 194:15 199:21 200:15 oh 63:22 126:4 132:2 oil 41:10,19 okay 5:6,7,15 5:16 15:19,20 21:18 22:2,6 24:10,13,19,20 24:23,24 27:5 43:6 47:19 48:12 53:5 55:6 56:10
	o		
	o'clock 105:15 oath 4:21 10:6 10:12 object 52:12 78:4 110:7 121:13 165:23 184:15 objected 130:25 131:8 133:11 176:14		

59:3,12 61:17 61:18 63:22 71:5,14,24 72:6 76:17,19 85:4,11,12,16 86:12 90:24 91:4 95:11 104:15 106:24 107:21 108:11 108:21 111:5 118:10 121:6 124:23 125:2,5 127:17 128:17 128:19 131:18 133:25 135:8,9 135:15 136:5 136:20,21 139:15,21 140:22 145:7 163:15 165:5 165:25 166:11 171:6,19 172:2 173:14 175:20 176:10 177:9 183:15 185:5 185:22 186:7 186:14 187:12 189:24 198:13 199:3 200:13 202:15 206:23 207:16 212:13 213:14,18 old 12:4 66:18 74:6,9 131:25	older 21:16 75:21 90:15 99:10 146:15 once 29:13 40:2 40:15 41:10 45:14 61:22 79:25 96:18 112:6,18 116:7 120:15 124:13 125:5 129:21 135:16 151:2 183:18,19 one's 11:9 ones 86:5 107:9 117:4 ongoing 83:25 108:11 186:13 open 27:3,22 27:23 193:6 opened 26:19 26:22 opening 27:6 28:4 operate 5:12 operation 200:25 operations 211:11 opposed 156:25 opposite 156:2 oral 162:20 order 46:20 134:12 159:25	outcome 216:15 outside 136:14 161:4 178:8 182:24 outstanding 173:5 174:3 overruled 130:25 owed 170:13 own 11:9 28:6 28:9,13 owner 65:16 owners 158:23	41:10 56:21,22 72:11,12 84:24 143:3 160:16 170:14 174:11 188:3 194:16 194:18 195:6 195:24 196:2,7 196:8 200:10 panic 60:21 paper 94:12,25 95:5 paragano 2:22 paragraph 16:7 18:20 20:15 45:13 46:19 48:7,14 48:15 49:4,7 50:16 51:24,25 54:20 55:4 59:11 61:20 63:17 66:22 68:12 71:25 76:11 85:5 89:10 90:17,24 91:3 95:8 171:22 paragraphs 48:20,24 parent 61:16 92:24 parents 45:15 46:11 48:2 49:5,9,13,16,24 50:4 58:11,18
		p	
		p 2:1,1 7:5 p.c. 2:5 3:1 p.m. 47:13 162:2 214:4 p.o. 2:3 padro 203:21 page 2:25 16:2 16:3 19:3 50:19 51:23 54:19,19 57:15 75:5 85:3,7,10 88:24 94:8 101:20 173:22 175:6 207:3,3 207:7 214:2 215:3,12,22 paid 19:7 22:11 30:12 31:12	

72:14 79:7 81:14,22 83:13 86:6 89:14 93:17 96:12 99:5 113:4 126:23 127:7 127:12,14,20 151:21,24 165:14 176:23 parkway 2:19 3:3 5:22,24 part 91:17,18 94:14 152:15 particular 146:11 153:13 164:9 172:15 173:10 parties 121:9 129:21 130:19 133:3 216:13 party 1:15,17 2:5,14 3:1,9,19 4:11 7:17 13:20,24 14:7 14:14,21 29:18 48:23,24 50:20 50:22 51:16 56:8 68:6 70:14 87:8,20 92:21 95:2 101:23 102:24 106:24 109:4,8 113:23 114:21 117:24 118:6	118:12,17 164:13 passing 146:17 146:23 153:21 past 9:16 32:21 paste 48:23 51:15 pasted 50:22 133:7 pat 145:16,18 177:12 197:6 patrick 2:17 3:18,25 145:13 150:17 195:19 199:8 paul 2:16 145:13 150:18 pay 23:6,13 29:21,25 36:4 41:19 66:3,6 66:10,15,19 86:16 119:12 149:7,10 151:8 159:10,15 160:5,8,16 paying 66:9 payments 18:24 29:19,25 33:8 peanut 202:9 202:11 peapack 35:20 pearlson 3:4 5:23,25 7:23	15:6 30:3 50:24 95:23 104:16 105:7 105:16 145:9 145:22 146:3,5 166:2 174:18 175:2 176:2,15 177:15 179:2 206:5,12 215:6 pelican 43:19 pending 122:17 137:7,13 138:5 139:2,17 pennsylvania 161:8 pensky 71:8 people 6:13 104:24 158:16 189:12 200:4 percent 173:18 173:19 percentage 174:4 196:12 196:18 199:11 199:17,24 percentages 199:13,22 period 18:5,8 18:11 20:3 42:24,24 93:3 146:11 169:22 188:22 192:12 196:6 210:8	perks 148:8 permission 66:25 67:13 permit 93:11 permits 92:25 pershing 68:17 68:19 190:16 person 45:20 93:2,7 98:7 118:20,21 121:14 124:14 124:18,21 125:3 156:17 177:4 186:21 201:23 213:5 personal 6:18 6:20 28:13 30:21 103:16 103:17,20 168:10,11 177:16 205:10 205:11,13 215:23 persons 122:16 persuasive 29:6 29:7 petition 131:5 phone 53:2 62:19 91:15 93:16 104:13 116:6 131:6 156:5,9 157:25 162:5 164:19 166:7 181:5,7
--	--	---	---

181:10 184:3 187:21 191:5 203:5,10,17,25 204:3,7,22,25 205:4,7,9,10,11 205:12,13 213:12 215:25 phones 204:4 204:18 photographs 131:10 photos 129:3 168:2 physically 5:17 190:24 211:7 physician 130:11 pick 62:9 147:12 picked 159:5 211:8 pickens 37:20 pickup 99:20 picture 35:4,8 pictures 93:18 157:25 160:13 166:8 pilot 140:4,5,17 141:8,13 159:8 pilot's 141:20 pilots 141:15 141:17,25 place 7:12 18:14 25:19	64:15 75:18 81:2 97:3 142:5 157:2 placing 198:23 plaintiff 1:5 2:19 3:2,10 7:17 19:8 21:13 44:5 45:15 57:17 59:18 63:18 66:25 69:9 70:10,18 72:13 77:5 80:5 81:14 168:12 177:18 plaintiff's 16:13 18:25 29:19 33:9 44:4,12 45:14 52:3 58:11 59:17 66:24 67:3 68:14,23 69:12 81:11 89:14 114:10 plaintiffs 1:15 3:20 plane 19:6 40:12,17 54:23 55:9 56:25 57:8 58:13 59:19 62:15 67:2,14 75:15 80:7,13,18,23 80:25 90:3	119:7 149:4,17 149:20 150:3,4 150:15,16 161:5 170:10 178:14,20 planes 20:19 161:3 play 11:7 playfully 16:15 please 59:11 76:18 171:6 214:3 pled 106:2,6 plus 27:14 152:4 161:17 172:18 182:11 point 37:7,8 50:19 57:7 66:23 75:19 93:14 132:15 134:16 135:6,7 135:8 148:21 149:2 153:25 156:4 158:4 163:19 165:6 168:20 185:15 189:18,25 212:15 pointed 74:3 pointing 109:13 points 136:8 poletto 2:14	police 47:17 181:12 182:22 182:24 pomeranian 17:10 poorly 133:5 portfolio 27:25 portion 196:10 196:11 207:4 207:15 position 85:17 86:8 95:12 100:10 102:11 102:14,15 130:15 197:6 positions 188:18 posner 200:16 possess 82:22 119:24 121:16 possession 107:24 108:3,7 108:13 109:17 109:20 110:18 111:10 112:7 112:10,18,22 116:8,19,22 118:16 120:10 125:9,11 possible 139:6 posted 116:23 131:11 posture 123:3 123:16
---	--	---	--

potential 70:23 125:22 127:19 127:22 128:2 pre 147:20,21 precise 39:3 precision 123:3 123:15 premature 120:25 preordained 159:12 prep 31:12 preparation 6:17 preparatory 18:25 29:20 31:15 33:9 prepare 7:8 14:23 94:14 131:16 135:5 194:9 prepared 6:23 14:21,25 31:2 45:19 46:8,9 46:10 48:14 51:11,18 94:20 94:25 95:6 98:19 101:6 107:7,14 110:23 111:16 113:15 120:15 121:23 125:16 134:14 173:24	preparing 15:3 48:22 51:7 present 64:18 180:3 190:24 presently 107:24 109:19 121:16 preserved 209:16 pretty 110:16 144:7 180:9 182:6 189:7 210:19 prevent 45:15 46:11 previous 89:6 198:4 previously 97:20 price 84:24 princeton 67:2 161:3 prior 9:23 10:5 11:17 12:6 43:3 97:17 147:9,17 148:4 148:10 153:13 153:14,19 160:10 163:11 196:25 privacy 134:5 private 19:6,7 40:12,17 54:22 55:9 58:13	59:19 67:2 75:15 80:7 134:2,18 149:17,20 150:4,11,16 privilege 133:12,24 134:8,15,21 135:2,5,21 136:4,15,19 privileged 128:12,18,24 133:12 134:17 135:17 pro 2:2 133:20 probably 13:25 20:17 23:4 29:3 34:25 36:8 42:4 48:18 55:22 58:25 94:22 133:5,6 138:16 145:20 150:8 165:14 201:16 210:3,3,25 problem 76:5 79:12 87:14,19 90:19 105:13 126:25 problems 60:6 81:23 212:12 procedural 123:3,16 188:4	proceeds 171:9 172:13 178:11 178:14,18 process 73:25 188:9 processing 191:2 proclivities 89:12 90:7,13 produce 98:11 106:20 123:20 135:22 136:12 136:20 215:15 produced 93:23 117:4 134:20,22 171:8 187:11 product 133:16 135:18,25 production 128:6 profitability 196:9 199:15 200:2 profits 199:11 prohibited 134:11 prom 157:22 promptly 8:22 property 102:18,19,24 proportion 173:18
---	--	---	---

protected 134:4 136:13 prove 120:2 proverbial 91:15 provide 26:17 120:19 121:4 122:13 125:18 126:3,13 127:4 152:6 213:16 215:23,24 provided 16:12 19:15 110:4,17 123:11 148:9 149:14 150:2 167:12 provides 92:24 public 1:23 4:4 132:12 216:4 pull 52:16 53:8 53:16,20 54:5 54:12 59:14 60:10 61:23 62:10 64:23 65:2,5 67:9,19 72:19 74:5 77:22 84:19 pulled 74:10,17 purchased 179:8,11 pursuant 1:22 put 32:17,23 51:11	putting 49:4 139:7 q question 5:4,13 5:14 8:14 13:6 13:7 14:20 30:5 37:22,23 38:24 52:11,13 74:15 78:4 85:20 86:21 87:13,15,19 90:8 92:2 99:11 104:24 107:18 108:21 109:6 110:14 111:25 118:2 127:2,18,19 131:13 132:18 133:5 134:23 134:24 136:24 165:23 166:3 176:15,21,21 177:14 184:10 184:17,18 193:15 194:2 198:18 201:6 208:14,15 211:6 212:23 questioned 178:10 179:16 197:15 questioning 197:7,22	198:25 207:5 questions 5:12 8:23,24 15:19 70:2,22 71:2 74:2 85:25 107:8,19 137:6 137:12,14,21 138:2,4,6,17 139:5,20 145:5 145:10,12,15 145:21 149:13 151:15 165:25 176:18 177:10 196:22 197:8 197:10 198:5 202:17,19,20 203:2,4,6 206:14,16 208:20 213:20 213:22 quick 62:20 104:14 105:9 176:7 203:2 210:19 quickbooks 194:12 200:14 quickly 156:7 quite 178:2 quote 66:22 83:13,14,14,15 92:25 93:3 121:18,19 quotes 83:17	r r 2:1 4:2 raise 117:23 raised 133:12 ran 150:13 188:13 random 132:20 rate 172:7 reach 164:24 183:6 reached 164:25 183:7,13 reaching 62:3 reaction 201:21 read 16:17 19:10 45:17 46:3 48:10 55:4 56:7 59:11 61:20 67:4 68:15 69:14 76:17 80:10 81:16 85:6 89:17 90:25 93:5 95:9 97:22 98:12 103:3 107:19 108:5 120:4,13 121:21 135:13 207:10,10 reading 11:11 56:9 57:19 58:15 75:16
---	---	---	--

85:9 86:25 89:8 98:9,13 143:20 207:7 ready 73:22 162:4 real 27:24 61:2 realleging 89:5 really 29:24 49:17 52:25 60:2 74:24 78:12 85:24 97:11 105:6 108:22 139:2 153:23 154:25 159:14 199:16 199:18 204:11 reason 33:21 40:23 76:3,7,8 76:9 197:14 207:17 208:6 208:16 reasonable 134:5 reasonably 98:23 recall 12:9,24 13:3,5,10,12,16 13:18,21 16:20 17:7 22:19 66:8 88:22 99:18 103:5 168:19 181:18 183:17 185:8 185:10,11,13	187:3,15 194:15,24 200:20 201:8 203:5 receive 187:5 recently 9:17 179:9 187:11 194:11 recess 62:23 105:17 176:11 recollection 9:22 173:7,16 174:8,15 175:22 recommenda... 137:15 reconcile 54:16 record 7:23 107:20 139:8 151:24 176:19 177:6,11 198:10,24 205:19 216:10 recording 125:21 126:20 recordings 125:20,23 126:7 129:3 130:18,22 131:7 records 118:2 119:24 208:2,7 208:13,17 209:4,6,8,11	refer 15:9 21:6 124:17 125:19 126:19 reference 102:22 109:11 122:4 131:24 205:20 referenced 169:22 referencing 130:20 143:25 referred 45:23 referring 7:25 44:16 52:9 75:13 91:5 92:9,11,13 98:10 111:2 114:24 116:4 122:14 124:14 129:22 132:25 134:16 135:6 136:7 142:11 192:25 194:21 refers 103:6 refinancing 172:16,20 173:17 174:23 175:10,13,24 refined 122:25 123:12 reflecting 132:25 reflects 174:3	refrain 87:6 refresh 173:7 173:16 174:7 refreshes 175:22 refrigerator 180:14 refuse 149:3 167:15 refusing 82:25 86:20 137:11 regard 133:4 135:22 191:8 191:14 regarding 80:17 regardless 104:7 regular 172:9 regulation 160:3 reimburse 160:15 relate 70:2,23 86:3 125:19 126:19 171:23 related 116:6 122:14 125:13 127:7,11,13,20 137:23 216:12 relates 85:22 170:4,5 171:2 175:9
--	--	--	---

relating 133:2 138:10 166:8 171:8 relationship 32:21,21 33:15 33:22,25 34:2 34:4 37:4,12 37:17 40:10 43:24 44:6,14 44:25 45:4 48:5 49:6,11 49:15 52:4,17 53:24 54:2 55:22 65:6 69:10,18,22 70:9 82:11 85:18 86:9 87:5,10,16 89:13,15,21 90:14 92:5 95:14,22 96:20 96:21 100:12 146:9,14,21 147:5,10,17 148:5,11,23 151:13 152:2 152:23 153:12 153:15 154:2 154:18 156:6 156:22 157:3,9 157:15,21 163:20 164:10 165:9,11,12,17 166:9 167:22	relationships 93:12 release 131:6 released 182:15 186:20 relevance 122:16 132:13 relevant 51:4,6 124:11 129:5 132:16,19,21 rely 120:21 190:25 relying 71:8,10 71:12 93:24 135:2 remember 43:19 84:6 103:11 131:23 135:12 137:21 159:2 170:7 178:15 179:18 182:2 183:19 206:2,6 remembering 21:23 remind 160:11 remove 185:15 removed 190:19 rental 77:4 200:24 repayment 171:24 174:5	repeat 68:11 71:17 repeating 89:5 rephrase 166:2 195:20 replay 172:25 report 102:17 reporter 24:21 24:24 42:25 71:17,20 213:23 reporting 180:7 reports 137:3 194:10 represent 4:10 7:24 146:6 168:6 177:12 199:4 206:21 206:24 representation 197:20 representatives 121:10 represented 107:10 request 67:13 67:15 108:2,8 109:21 110:3,7 110:20 111:11 112:8,20 116:10 118:11 120:12,25 123:2,12	129:12 133:7 135:4 210:9 213:15 requested 62:5 66:24 requesting 213:24 requests 110:6 215:21 rescind 190:12 rescinded 190:22 research 130:7 reserve 112:9 reserves 111:12 reserving 139:4 residence 213:8 resign 190:15 resignation 186:25 187:8 190:12 resigned 190:11 respect 86:22 121:9 129:4 138:23 167:22 196:22 197:4 197:10 responding 198:12 response 30:17 30:20 108:4,14 108:18 110:7 111:13 114:5
---	---	---	--

116:18 121:4 122:20,22 123:2,12,19 125:12 128:12 129:11 134:24 responses 106:19 107:3,7 responsible 87:10 responsive 107:25 108:2 109:21 110:6 110:20 111:11 112:8,20,21 116:9,20 117:7 120:11 rest 85:11 195:4 restrict 157:17 163:24 result 160:19 160:21 167:25 retained 208:7 208:17 return 185:16 193:24 210:22 reveal 101:25 review 6:17,21 63:10 105:24 reviewed 9:14 9:18 13:24 14:2 rhianna 39:25	rice 137:19 rick 2:18 rid 15:16 84:5 84:16 ride 57:17 79:4 79:10 80:23,24 81:2 149:21 150:5,10 165:2 rides 19:7 40:13,17 54:23 90:3 119:7,9 149:4,17,18 150:3 right 5:18 9:18 14:12 15:25,25 17:23 21:18,22 22:9 23:10,13 24:16 32:7 33:3,6 35:3,7 36:18 37:9 40:16,20 41:18 42:8,15,16 48:5 49:20 51:9 54:11,19 55:16 57:10,15 58:6 59:5,6,15 60:10 61:4,24 62:11,15 67:7 67:23 70:11,16 71:24 72:2,4,7 72:20,23 73:7 74:11 75:7 77:22 78:10,16 79:13,15 80:22	83:10 84:23,25 85:4 86:14,19 87:11 91:3 95:19 96:13 99:7 100:4,25 101:3,6 103:24 104:4,10 106:16 111:12 111:23 112:9 112:15 113:2 113:10,13,24 114:12,13 115:23 116:15 118:14,25 119:12,16,18 120:7,9,25 121:11 122:17 122:19 123:7 123:19,20 124:6,11,15 125:9,10,14,16 126:20 127:19 127:22 128:18 128:24 129:12 130:12,16 133:8,13 134:12 136:9 136:22 137:3 139:4 142:25 143:5 173:14 178:5,6 179:10 179:11 188:20 189:6,7 192:5 193:10 195:11	195:14 198:13 199:25 200:4 204:9 206:10 206:25 riker 2:9 206:20 road 3:12 83:4 rob 198:20 robert 2:7,12 15:7 196:20 206:6,20 roberts 71:16 71:19 139:11 rock 2:6 147:20 role 7:16 roll 140:15 room 6:3,5,5 49:22 50:2,11 56:22 62:14 162:8 163:14 180:19 202:3 rooms 56:21 180:20 roseland 2:7,20 3:3,13 5:20 ross 3:4 5:25 146:5 roughly 22:16 25:16 27:14 41:11 53:14,15 152:4 170:8 184:2 route 43:20
--	--	---	--

ruggles 1:7,12 173:12 174:9	42:1 43:1 44:1 45:1 46:1 47:1	128:1 129:1 130:1 131:1	196:1 197:1 198:1 199:1
rule 121:20	48:1 49:1 50:1	132:1 133:1	200:1 201:1
ruled 128:5	51:1 52:1 53:1	134:1 135:1	202:1 203:1
rules 21:11 86:13,18,25 199:7	54:1 55:1 56:1 57:1 58:1 59:1 60:1 61:1 62:1	136:1 137:1 138:1 139:1 140:1 141:1	204:1 205:1 206:1 207:1 208:1 209:1
run 150:6 188:2,19 210:4	63:1 64:1 65:1 66:1 67:1 68:1	142:1 143:1 144:1 145:1	210:1 211:1 212:1 213:1
running 176:7 187:23	69:1 70:1 71:1 72:1 73:1 74:1	146:1 147:1 148:1 149:1	214:1
ryan 183:13 189:6,21 190:6 192:5,13 193:10 195:24 199:14 209:25 210:9,22 211:20 212:14	75:1 76:1 77:1 78:1 79:1 80:1 81:1 82:1 83:1 84:1 85:1 86:1 87:1 88:1 89:1 90:1 91:1 92:1 93:1 94:1 95:1	150:1 151:1 152:1 153:1 154:1 155:1 156:1 157:1 158:1 159:1 160:1 161:1 162:1 163:1	safe 189:11 safety 44:8 salaries 194:15 200:15 salary 196:2 199:10,23 sale 170:10 171:9 178:20 179:7
ryan's 199:9	96:1 97:1 98:1	164:1 165:1	salesmen 200:3 200:5,9
s	98:22 99:1	166:1 167:1	sammoms 2:21 202:22 212:22 212:25 213:14 213:19 215:10
s 1:7 2:1 4:1,2 5:1 6:1 7:1 8:1 9:1 10:1 11:1 12:1 13:1 14:1 15:1 16:1 17:1 18:1 19:1 20:1 21:1 22:1 23:1 24:1 25:1 26:1 27:1 28:1 29:1 30:1 31:1 32:1 33:1 34:1 35:1 36:1 37:1 38:1 39:1 40:1 41:1	100:1 101:1 102:1 103:1 104:1 105:1 106:1 107:1 108:1 109:1 110:1 111:1 112:1 113:1 114:1 115:1 116:1 117:1 118:1 119:1 120:1 121:1 122:1 123:1 124:1,14 125:1 126:1 127:1	168:1 169:1 170:1 171:1 172:1 173:1 174:1 175:1 176:1 177:1 178:1 179:1 180:1 181:1 182:1 183:1 184:1 185:1 186:1 187:1 188:1 189:1 190:1 191:1 192:1 193:1 194:1 195:1	sara 168:5 204:14 sat 11:17 154:24 saw 29:13 38:19 180:11 186:24 saying 39:2,11 58:19 73:22

83:5 84:5 87:18 96:14 100:16 117:17 159:3 162:4 165:2 says 11:16 26:15 44:3 45:11 52:2 66:22 68:12 69:8 75:9,14 81:10 101:4,5 106:19 107:23 111:8 119:19 119:23 123:8 126:18 127:18 127:22 136:11 142:9,23 143:3 169:11 174:13 193:5 sbm 177:13,16 scenes 81:4 schedule 172:23 173:23 174:13 school 10:23 19:2 29:20 31:12,15 32:13 33:10 35:5,9 53:15 57:3 65:18,19 83:9 146:25 153:22 160:14 164:4 168:3	scope 136:14 136:15 scrambling 183:8 screen 14:12 15:22 206:23 scroll 14:10 113:6 171:4,15 171:21 175:3 207:11,13 se 2:2 133:20 seat 19:5 39:10 seats 81:12 167:10,18 second 24:10 48:3,13 88:6 135:7 165:22 171:5 187:8 203:25 section 137:22 securities 1:10 2:10 206:21 security 16:12 see 14:5,16 15:22 16:4,9 24:13 35:12 39:11 40:13 42:15 44:3,9 45:11 46:23 48:7 51:25 52:6 54:25 57:19 58:2,15 60:5 61:19 63:13 73:24	75:16 76:14 83:15 85:10,14 88:25 89:3 90:19 91:2 92:18 94:8,9 94:18 97:9,10 97:23 98:17 99:15 103:14 106:14,25 109:3,4,8,13,22 110:12,21 111:6 114:3 118:14 119:19 122:20 124:25 127:18 128:21 129:6,9 135:19 136:16 139:25 143:23 145:10 156:16 163:9 169:4,4,10,19 170:12,22 171:17 173:12 174:2,5 179:6 179:20 180:10 180:13,19 193:8,13 200:14 201:18 seeing 30:18 98:3 201:16 seems 103:20 104:8,23 165:25 seen 38:16 51:15 93:17	117:5 146:16 147:2 181:14 187:11 191:16 198:6 sell 179:14 selling 188:17 send 7:3 130:21 140:25 141:5 206:7,7 sense 62:21 105:11 155:4 173:21 sent 37:20 38:22 47:24 107:4 113:11 154:12 191:17 sentence 44:9 45:24 46:3 85:11,13 separate 87:22 167:7,11 188:24 189:3 september 30:11 50:16 53:10,11,15 216:17 served 137:2,18 servers 209:20 211:3,4,12 212:3,15 services 1:8,13 set 68:7 89:6 95:19 168:7 191:22 216:8
---	---	--	--

216:16 settle 57:2 settlement 47:16 seven 12:5 sex 91:21 sexual 33:25 34:2,4 44:25 45:3 48:5 49:5 49:11,15 69:10 69:18,22 70:9 85:18 86:9 87:4,10,16 89:12 90:7,12 92:4,15,16 93:2,3,12 95:21 106:7 146:21 151:13 151:25 163:20 165:12,16 sexually 45:16 46:2,12,16 shahinian 3:1 sham 177:22 share 128:4 206:22 sharing 63:14 shift 100:6 ship 17:7 shoes 32:18 shop 43:20 short 62:23 176:11 206:15	shortfall 32:14 shortly 212:15 show 24:9 103:9 139:24 168:14,25 169:17 170:15 174:20 181:4 showed 160:13 179:2 180:2,25 showing 206:25 shows 14:9 sic 164:22 side 86:15 sign 25:4 63:22 192:19 signature 24:25 216:20 signed 23:24 24:2 114:17 178:7 significant 18:21 similar 51:17 177:14 184:18 sir 5:19 6:6,7 14:20 15:17 16:9 21:11 32:16 44:9 48:8,15 50:18 51:25 61:20 63:17 66:13 69:2 71:15,18 82:20 85:16 86:12 90:25	92:18 95:12 117:11 126:9 138:2 139:24 141:21 194:2 202:7 203:3 205:16 sister 21:16 59:18 75:21 164:21 sisters 43:17 58:12 72:14 sit 74:25 sitting 30:6 39:3 74:22 122:7 195:3 situation 142:10,11,16 142:21 144:5 152:12 166:4 186:9,16 six 12:5 51:14 124:25 182:11 184:13 skating 35:18 sketches 129:3 131:18,20 ski 43:19,20 skip 50:14 slash 91:15 sleep 162:7,18 sleepover 163:23 slept 161:19 162:15	slide 85:9 slowly 127:3 small 200:25 smith 168:5 204:14 snapchat 12:10 12:12,14,19 34:17 52:25 88:8,11,14 snapchat'd 12:7 13:8 snaphcats 88:16,19 snaphchatting 12:24 13:12 social 19:4 35:12,14 socialize 147:6 sold 171:12 201:3 solo 159:24,25 160:4,20 somebody 31:8 58:23 79:16 80:22 94:20 96:15 104:12 115:16 122:23 123:6 133:6,7 202:17 somerset 64:13 65:10 158:16 158:22 159:6 162:10
--	--	---	--

soon 180:9 sorry 15:6 34:3 38:8 46:12 53:12 65:8 67:24 100:5 140:14 154:25 209:14 212:22 sort 17:11 156:5 sorts 122:5 sound 33:2 sounded 185:7 sounds 105:16 176:10 source 102:2 south 3:23 213:8 space 161:8 speak 9:6 63:5 63:8 105:22 118:20 144:9 156:8 special 213:15 specific 53:3 60:4,16 61:15 77:8 86:2 87:12 192:10 196:17,17 specifically 30:10 77:3 86:3 121:18 195:2 specifics 118:23	spend 90:2 98:22 99:5 spent 29:9 156:18 179:24 spoke 29:14 52:23 144:12 144:14 155:10 spotted 180:8 spring 34:5,12 41:21 52:16 53:5,7,11,18,19 54:5,9 59:10 59:13 60:14 67:6 158:7,7 springfield 2:16 springsteen 39:24 148:7 st 25:15 26:13 30:8,14 31:14 31:20 160:14 stairs 201:17 stamped 175:17 stand 97:21 182:24 standing 196:21 197:9 198:23 start 63:20 69:23 156:4 159:9,11 161:14	started 148:22 151:16 157:10 164:12 210:10 starting 182:12 starts 21:25 89:10 state 1:25 4:4 216:5 stated 107:9 207:19 statement 29:23 46:7 56:7 68:8 70:7 98:21 99:3 124:2 127:25 169:3,23 207:18,22 215:18,20 statements 109:12 119:24 121:8 124:10 125:8,13 states 111:9 121:16 stating 44:11 49:7 98:16 154:11 station 64:17 stay 50:8 152:20 155:11 155:20,23 162:7 165:3 stayed 44:17,18 44:19,20 50:10	56:17,24 163:14 190:23 staying 78:19 163:13 step 19:13 37:7 91:14 stepped 21:21 96:16 steps 45:15 46:11 steven 1:9,12 1:21 2:2 3:21 169:11 173:19 stick 100:5 stock 25:14 stop 34:23 175:4 stopped 143:5 store 194:4 straight 124:22 straits 152:11 152:25 strapped 41:13 street 3:23 129:20 stress 201:15 stringsteen 147:20 strongest 93:14 struggling 59:24 stuart 211:8 213:4
--	---	--	--

studying 162:20 stuff 15:16 24:23 54:24 86:6 117:2 122:3,5 129:8 129:25 130:10 132:20 210:13 stunningly 67:3 subject 122:17 129:5 133:4 145:3 submit 190:15 submits 117:16 submitted 116:14,17,23 116:25 117:3,8 117:12,14 134:22 subsequently 131:9 substance 9:3 substantial 114:6 successful 65:7 sudden 21:6 suggested 79:9 suggestion 27:2 suicide 59:24 suit 121:9 suite 2:6,11 3:12 summer 55:2,4 55:24 75:4,6	75:14 76:10,14 77:11 80:4 83:14 192:21 210:17 summit 182:22 superior 1:1 supplement 108:3,14 111:12 112:9 112:21 121:3 supplemented 108:17 supplementing 117:18 support 117:23 supports 118:5 supposed 198:19 sure 8:22 14:11 14:25 15:11 42:5 61:12 80:2 102:21 103:9 107:22 113:7 134:9 138:15 144:7 168:5 176:19 178:24 182:6 199:6 209:15 210:22 suspicion 97:14 98:5 sworn 4:3 122:9 216:8	t	talked 68:25 72:2 83:8,9 114:6,25 119:15 146:8 189:23 talking 23:16 33:24 35:14 41:8 54:6,7 91:9 94:2 95:24,25 102:20 103:2 117:21,22 119:19 124:13 131:20 137:25 143:17 156:14 180:15 203:12 203:14 talks 39:9 63:18 68:21 72:7 109:6,7 113:22 142:9 tape 125:20 129:3 teach 99:14,21 100:5 team 195:4 tears 26:12 59:23 technically 28:19 tee 104:22 teen 89:13 tell 5:8 6:16 8:14 10:9 31:8
		t t 2:7 4:2 take 4:15 7:11 18:14 19:13 25:18 32:16 37:7 45:15 46:11 55:8 61:13 62:17,19 64:15 66:14 67:13,16,22 69:5 74:20 75:18 78:24 79:3,9 80:12 82:7,21 85:6 92:3 101:7 104:14 105:9 151:4 160:20 176:6,9 195:20 200:21 taken 1:22 48:18 62:24 97:24 98:14 100:23 105:18 176:12 215:24 talk 7:9 16:6,11 18:20 22:7 39:13 40:12 43:8 54:19,23 91:6 112:17 114:9 115:25 135:17 147:6 184:11,21	

33:13,17 38:8 48:10 56:8 63:23,23 66:13 69:4 71:10 82:19 85:8 95:9,21 96:5 100:11 110:16 121:14 122:6 128:11 142:18 143:10 155:11 155:17,20,23 164:2 170:25 173:6 175:5 178:20 187:19 201:13 telling 13:3,8 13:10 19:14 25:21 30:18,19 54:13 72:19 77:9,12,13 86:21 96:13 116:7 120:24 125:6 137:12 ten 36:2 47:4 47:20 62:18 104:11,15 143:4,7,17 150:21 tens 18:23 19:15 33:7 term 11:2,14 90:12 92:9 terms 104:17 148:8,16 149:4	157:16 172:11 testified 4:5 54:22 70:7 97:20 181:22 183:15 199:9 207:24 208:8 testify 38:15 82:24 testifying 10:16 30:20 124:6 testimony 4:23 9:23 20:21 28:12,15 53:20 91:24 93:21 97:17,21,23 98:13 122:10 137:9 144:3 152:5 157:24 158:20 182:2 183:17 184:16 185:11,22 186:4 187:3,13 188:11 201:8 212:13 215:2 216:10 teta 37:20 text 34:14 47:24 52:24 67:12 84:4,9 84:13 93:17,22 109:11 115:25 116:5 119:21 147:6 156:5,9 161:11 165:21	176:25 texted 12:7 13:17 47:4,5,7 66:24 162:3,24 164:21 texting 148:3 159:2 texts 52:25 53:2 131:7 157:25 166:8 thank 6:15 62:22 63:16 71:20 83:6 90:9 122:23 176:2 177:6 202:7,14,23 205:17 207:12 208:20 213:20 thanking 122:23 123:4,6 141:2 143:16 thanks 145:2 theirs 27:4 152:19 thing 16:6 18:9 40:11 57:5 77:20 91:18 103:4 105:4 114:3 118:3,14 134:19 144:16 158:8,24 171:21 205:24 things 43:16 81:3 97:24	148:19 156:19 161:5 181:21 188:4,17 think 7:25 8:9 10:11 12:18 17:5 24:2,5 27:14 30:17 31:16 39:14 44:23 73:22 80:3 82:23,25 83:8 87:6 97:6 97:9 104:18 108:9,10,23 116:24 129:18 130:9 132:15 133:25 141:15 142:19 143:14 144:14,17 159:11,12 162:17 163:12 163:16 166:23 167:10 170:11 173:4 178:12 179:12 181:22 181:25 182:3 182:17 183:18 183:25 185:3 186:25 187:13 189:17 190:10 191:16 197:24 198:25 201:20 202:4 207:7,20 third 1:15,17 2:5,14 3:1,9,19
---	--	---	---

4:11 7:17 13:20,24 14:7 14:14,21 29:18 45:20 48:23,24 50:20,22 56:8 68:6 70:14 87:8,20 92:21 95:2 101:23 102:24 106:8 106:24 109:4,7 113:23 114:21 117:24 118:6 118:12,17,20 118:21 121:14 124:14,18,21 125:3 130:19 thomas 140:3 140:16 thompson 3:8 thought 40:10 81:25 117:2 119:13 141:12 155:8 198:11 thoughts 101:8 thousand 41:11 41:23 42:20 thousands 18:23 19:15 33:7 threat 86:17 threaten 155:15,17 166:14,18	three 42:20 56:23 thrown 200:19 ticket 23:22 24:15 25:24 31:2 tickets 19:6 39:10,15,20,24 39:25 40:24 72:9,10,11,12 72:17,25 74:20 75:2 81:11,19 147:19,23 148:8 149:4 167:13,16 tight 27:20 83:13,20,21 152:12 199:18 time 1:23 6:12 9:23 10:8 13:23 14:3 17:5 18:5 19:13 20:3,8 27:21 28:25 29:3,9,10 32:16 33:3,6 37:3 43:22 45:2,4 54:17 55:22 60:3,9 61:25 62:8 64:22 67:18 69:9,17 70:18 72:18 74:6 78:20 79:23	82:4,10 85:20 86:11 87:7 91:13 92:12 97:4,4 98:22 99:5 103:5 104:22,25 107:10 110:20 111:12 120:12 121:8 131:17 144:12,20 145:2 146:11 148:21 149:2 154:15 155:7 156:18 161:15 166:5,13,15 168:9 169:16 170:12 171:3 175:15,24 176:5,16,22 179:25 184:17 188:22 192:12 203:8 204:15 205:3,17 210:5 210:8,17 211:23 212:10 214:4 timelines 210:13 times 17:13 18:10,17 73:20 76:22 124:21 150:23 151:2,6 156:12 184:21 184:24 205:5,6	210:21 today 4:15,21 4:23 5:4 6:17 10:11,16 12:4 12:6 13:3 15:14 21:20 22:3 24:19 74:22 83:10 109:24 114:7 116:12 122:8 138:2,18 139:5 151:15 195:3 207:24 today's 138:8 together 51:11 56:23 58:12 75:2 147:7 told 7:20 10:12 25:12 30:6 32:15 44:23 58:3 65:3 67:19 70:10 73:6 95:13 109:10 116:19 138:3 152:24 154:17 164:23 190:13,18 211:16 ton 137:21 took 45:21 64:7 65:21 81:2 94:22 142:4 150:15 157:2 181:9
---	--	---	--

top 14:16 22:20 41:16,18 103:23 106:17 122:7 135:25 213:11 topic 64:5 197:5,15 topics 197:21 toscano 117:3 total 141:16 144:21 174:4 totally 87:23 128:8 towards 30:8 town 129:21 tracked 35:24 tracking 36:17 204:14 trade 25:14 209:12 trading 26:14 transaction 118:24 transactions 102:18,19,25 109:12 115:13 transcript 43:5 205:23 207:2 213:24 216:9 transcripts 9:15 43:3 transfer 168:9 177:16	transfers 114:20,23 transition 191:23 transitioned 193:25 transitioning 195:10 transmission 99:15 travel 119:7 tremendous 20:25 trenton 3:24 trial 120:22 121:4 tried 46:25 91:13 131:5 138:19 153:3 164:18 trip 59:8 80:7 80:13,25 trips 80:8,18 trouble 21:23 85:24 troubling 202:5 trte 169:11 truck 99:15,20 true 116:12 166:22 216:9 trump 161:2 trust 1:9,9,13 1:14 3:2,22 146:6 168:6,7	168:11,21 169:4,8 170:9 170:13 172:4,6 172:7,12 173:12,19,20 174:10,10 175:17 177:13 177:17 178:18 trustee 168:20 169:12,15 truth 10:9 177:24 truthful 9:24 51:21 truthfully 5:15 10:16 124:6 truths 62:7 try 124:21 138:13 166:3 206:22 trying 46:21 52:15 53:8,16 54:4,15 59:14 60:10 61:23 62:4,10 64:23 65:2,5 67:9,19 72:19 73:13 74:4 77:21 84:5,16,18,18 96:11 100:14 112:13 130:23 133:21 165:19 199:6	tuition 18:24 29:19,21,25 33:8 83:9 119:11,12 turn 54:18 128:9 135:3 169:24 173:22 175:16 turned 181:11 turns 164:19 165:11 twenty 12:5,5 twice 9:10 two 6:10 17:5 18:8,18 26:19 42:6 56:21 72:13 79:6 82:3 105:5 108:22 136:8 147:23 173:15 180:23 183:16 184:2 197:17 202:16 205:3 206:15 type 94:12,15 94:25 typed 94:11
u			
u 190:15 uh 92:19 122:18 124:12 ultimately 80:25			

unable 172:25 uncover 102:16 under 4:20 5:12 10:6,12 86:13 92:16 underaged 92:5 understand 4:13,20,25 5:5 5:9 8:10,13,22 10:12,15 20:22 21:12,15 71:9 90:11 106:22 108:15,25 112:3 124:5 127:5,9,15 128:23 139:16 145:8 165:7 172:24 188:11 188:12 193:16 199:3,7 understanding 22:4 106:2,9 126:25 understood 5:14 10:4,8 159:9 unfair 11:8 unfettered 187:25 unfortunately 130:24 unhappy 165:8	university 10:22 unknown 201:23 unpleasant 185:7 unrelated 130:19 unsecured 174:4 unsurprisingly 44:3 upset 32:12 upstairs 180:20 180:22,24 202:4 use 43:5 83:18 83:19 115:8 187:12 204:20 205:6 used 28:24 42:4 48:16 51:5,13 92:9 98:7 99:20 130:21 174:23 175:13 using 43:4 46:22 51:16	vacationing 77:11 various 19:5 148:15 173:9 vary 196:13,14 verbiage 45:21 verify 101:25 version 122:25 123:12 vi 94:7 95:6 98:19 112:14 victim 96:25 97:6,10 video 37:20 38:17,23 154:12 179:17 179:17,20 180:2 181:6 201:7,14 videos 125:20 view 180:16 vii 113:23 116:21 117:24 118:5 viii 118:12,17 vineyard 151:18 virtual 1:21 visit 183:21 visiting 131:19 voicemails 130:19 vs 1:15	w w 1:7 22:16 26:20 68:19 181:24 185:17 186:12 187:15 188:25 189:13 190:3 191:12 191:13 192:7 192:14,16 193:17 194:5 194:13 195:7 195:25 200:14 207:25 209:8 209:12,23 210:6,23 211:10,17 212:2,14 wachenfeld 3:8 wagenglast 3:5 wait 102:9 145:24 202:8 waiting 36:3 waiving 121:15 192:25 walk 17:14,23 walking 18:6 180:11,14 207:9 want 5:5,8 6:12 6:14 8:11 14:11 15:25 16:6 18:19 40:8 44:2
	v v 1:6 4:2 111:22 vacation 76:21 77:4 79:19		

45:10 54:18,23 60:12 63:12 71:2 77:3 85:8 86:7,24 90:25 94:6 95:9 98:11 102:25 104:21 106:13 107:22 142:7 145:22 155:5 156:13 160:24 161:16 163:5 176:13 181:20 209:3,5 wanted 27:22 27:23 40:7,19 47:15 49:16 58:20 66:6,14 72:16 74:16 76:4 99:19 124:8 139:20 145:10,12 158:2,11 161:12 176:19 177:2,5 178:19 204:20 205:8 wanting 98:21 99:4 104:25 wants 202:18 warned 100:21 101:2 warrant 197:21 warrants 197:3 warren 3:23	watch 16:14 115:12 watching 194:4 194:4 water 6:10,12 way 68:6 136:19 153:9 155:2 187:23 194:16 204:9 216:14 ways 32:14 websites 132:13 webster 11:6 11:15 week 29:14 182:12 184:2 weekend 55:13 58:13,19 weekly 52:23 weeks 181:17 182:11 184:13 weight 4:24 welcoming 155:4 welfare 106:7 wellington 200:19 went 53:9,14 55:12 57:17 72:22 77:4 146:24 148:14 159:5 161:7 163:16 166:22	166:24 167:2 178:18 179:23 195:21 western 56:18 wfw 140:18 whalen 3:18,25 62:21 140:9,13 145:20,23 170:17 176:10 177:8,12 197:23 198:7 198:13 202:13 207:5 208:21 208:23 212:19 213:21 215:7 whereof 216:16 whitehouse 64:17 wife 20:10 33:11 42:14 54:16 95:14,21 96:5,13 97:13 98:4 100:11,21 101:2,11 102:12 170:20 171:17 173:25 177:21 william 132:10 willing 27:5 wind 188:9,20 189:13 190:3 winding 188:17 212:10	wine 81:13 82:4 wiped 211:15 212:2,6 wired 170:2 wise 196:9 withdrawal 190:16 witness 4:3 7:24 8:4 71:19 125:7 127:19 127:23 128:2 145:7 176:6,13 197:17 198:19 199:3 202:15 205:18 213:18 216:7,11,16 witnesses 125:22 woman 98:7 wonderful 52:19 91:16 164:5 word 83:18,19 133:6 worded 133:5 words 51:17,17 115:8 139:23 172:12 work 52:21 133:16 135:18 135:24 140:16 185:16
---	--	--	---

worked 187:14	88:3,12 90:18	138:9 141:9
working 34:10	93:9,25 99:16	158:18 196:6
world 21:24	100:18 103:18	200:23 201:4
worthless	105:12 113:17	york 57:18
143:22	118:22 119:8	132:4 172:20
write 48:16	121:2,12,22	175:6
83:12 118:21	124:19 128:21	young 49:12
writing 143:15	129:10,18	158:12
writings 101:8	131:4 134:3	younger 59:18
118:2	139:15 140:13	64:7 157:18
written 101:22	141:19,19	yup 6:16 14:19
123:2 124:10	143:24 144:7	16:10 46:14
125:7,12 133:3	145:21 154:9	55:19 59:7
wrong 30:19	158:6 160:23	72:21,22 73:2
195:16	162:17 168:4	73:8 78:11
wrote 31:18	171:5,19	79:17 83:7,7,7
48:17 113:17	175:15 180:23	85:4 101:4
123:15	182:19 183:25	107:17 111:24
x	184:6,9 185:3	112:16 113:17
x 1:3,12,18	190:13 191:3	113:25 114:8
161:12	196:15,15	119:2,5,10,17
y	200:21 201:2	119:17 122:21
y 4:2 161:12	207:23	136:10 143:6
yeah 13:5	year 18:6,8	174:14 204:12
14:11 15:11	23:2 36:2 53:6	206:12 207:16
16:5 21:3,21	66:18 74:9	z
29:16 37:14	99:22,25	z 161:12
39:17 42:4	179:13 195:9	zac 72:7 74:19
57:14 64:24	196:3,4,14,18	zoo 131:19
65:2 67:15	199:11,16,18	
74:23 75:17,17	200:6	
76:22 77:23	years 6:24 9:20	
83:22 84:14	21:2 51:14	
	84:15 124:25	

New Jersey Rules Governing Civil Practice

Part IV, Rule 4:14

Depositions Upon Oral Examination

4:14-5. Submission to Witness; Changes; Signing

If the officer at the taking of the deposition is a certified shorthand reporter, the witness shall not sign the deposition. If the officer is not a certified shorthand reporter, then unless reading and signing of the deposition are waived by stipulation of the parties, the officer shall request the deponent to appear at a stated time for the purpose of reading and signing it. At that time or at such later time as the officer and witness agree upon, the deposition shall be submitted to the witness for examination and shall be read to or by the witness, and any changes in form or substance which the witness desires to make shall be entered upon the deposition by the officer with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness. If the witness fails to appear at the time stated or if the deposition is not signed by the witness, the officer shall sign it and state on the record the fact of the witness' failure or

refusal to sign, together with the reason, if any, given therefor; and the deposition may then be used as fully as though signed, unless on a motion to suppress under R. 4:16-4(d) the court holds that the reasons given for the refusal to sign require rejection of the deposition in whole or in part.

DISCLAIMER: THE FOREGOING CIVIL PROCEDURE RULES ARE PROVIDED FOR INFORMATIONAL PURPOSES ONLY. THE ABOVE RULES ARE CURRENT AS OF APRIL 1, 2019. PLEASE REFER TO THE APPLICABLE STATE RULES OF CIVIL PROCEDURE FOR UP-TO-DATE INFORMATION.

VERITEXT LEGAL SOLUTIONS

COMPANY CERTIFICATE AND DISCLOSURE STATEMENT

Veritext Legal Solutions represents that the foregoing transcript is a true, correct and complete transcript of the colloquies, questions and answers as submitted by the court reporter. Veritext Legal Solutions further represents that the attached exhibits, if any, are true, correct and complete documents as submitted by the court reporter and/or attorneys in relation to this deposition and that the documents were processed in accordance with our litigation support and production standards.

Veritext Legal Solutions is committed to maintaining the confidentiality of client and witness information, in accordance with the regulations promulgated under the Health Insurance Portability and Accountability Act (HIPAA), as amended with respect to protected health information and the Gramm-Leach-Bliley Act, as amended, with respect to Personally Identifiable Information (PII). Physical transcripts and exhibits are managed under strict facility and personnel access controls. Electronic files of documents are stored

in encrypted form and are transmitted in an encrypted fashion to authenticated parties who are permitted to access the material. Our data is hosted in a Tier 4 SSAE 16 certified facility.

Veritext Legal Solutions complies with all federal and State regulations with respect to the provision of court reporting services, and maintains its neutrality and independence regardless of relationship or the financial outcome of any litigation. Veritext requires adherence to the foregoing professional and ethical standards from all of its subcontractors in their independent contractor agreements.

Inquiries about Veritext Legal Solutions' confidentiality and security policies and practices should be directed to Veritext's Client Services Associates indicated on the cover of this document or at www.veritext.com.